



Regulation of E-Cigarettes

Canada • England and Wales • European Union
France • Germany • India • Israel • Japan • South
Korea • Sweden • Taiwan • Turkey • World Health
Organization

January 2020

LL File No. 2006-018469
LRA-D-PUB-002309

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Comparative Summary

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I. Introduction

Surveying the domestic legislation of eleven jurisdictions, EU regulations, and the WHO Framework Convention on Tobacco Control, this report identifies numerous legal and regulatory approaches to regulating e-cigarettes. In the majority of countries surveyed, where regulations exist, e-cigarettes are treated as a tobacco product. However, in several jurisdictions, the e-cigarette device and the nicotine pods are subject to new regulations, or are regulated as pharmaceutical products or in a hybrid manner.

Beyond identifying and analyzing the applicable laws and regulations across the eleven jurisdictions and the international legal framework, this report also discusses the varying statistics available regarding the use of e-cigarettes, the health risks associated with vaping, and the decrease in the number of traditional cigarette smokers in the various jurisdictions. It also addresses marketing and advertising restrictions as well as public safety concerns in the selected jurisdictions, including age limits and flavor restrictions.

II. Existing Regulation of E-Cigarettes

A. Regulation of E-Cigarettes as Tobacco Products

The **European Union (EU)**, **France**, **Germany**, **Israel**, **South Korea**, **Sweden**, and the **World Health Organization** currently regulate e-cigarettes similar to tobacco products or products similar to tobacco products. The restrictions on age, advertising, sale, and packaging are generally the same for traditional cigarettes and e-cigarettes in these jurisdictions. The EU Tobacco Products Directive provides restrictions on placing nicotine-containing e-cigarettes on the market, their labeling, and the content of refill containers (nicotine at a maximum concentration of 20 mg/mL) for EU Member States; however, areas outside the scope of the directive are left to the discretion of the Member States. Although Israel generally regulates e-cigarettes in the same manner as tobacco products, the Ministry of Health has recently announced that it intends to ban the distribution of e-cigarettes altogether.

B. Regulation of E-Cigarettes as Pharmaceutical Products

Japan¹ was the only country surveyed that generally regulates e-cigarettes through its pharmaceutical and medical devices law.

¹ Excluding non-combusted cigarettes, which are regulated by the tobacco regulation.

C. New Regulations

Canada has enacted new legislation, the Tobacco and Vaping Products Act 2018 (TVPA), to explicitly address the public health concerns, particularly for minors, and potential positive health outcomes of vaping for adults as an alternative to smoking.

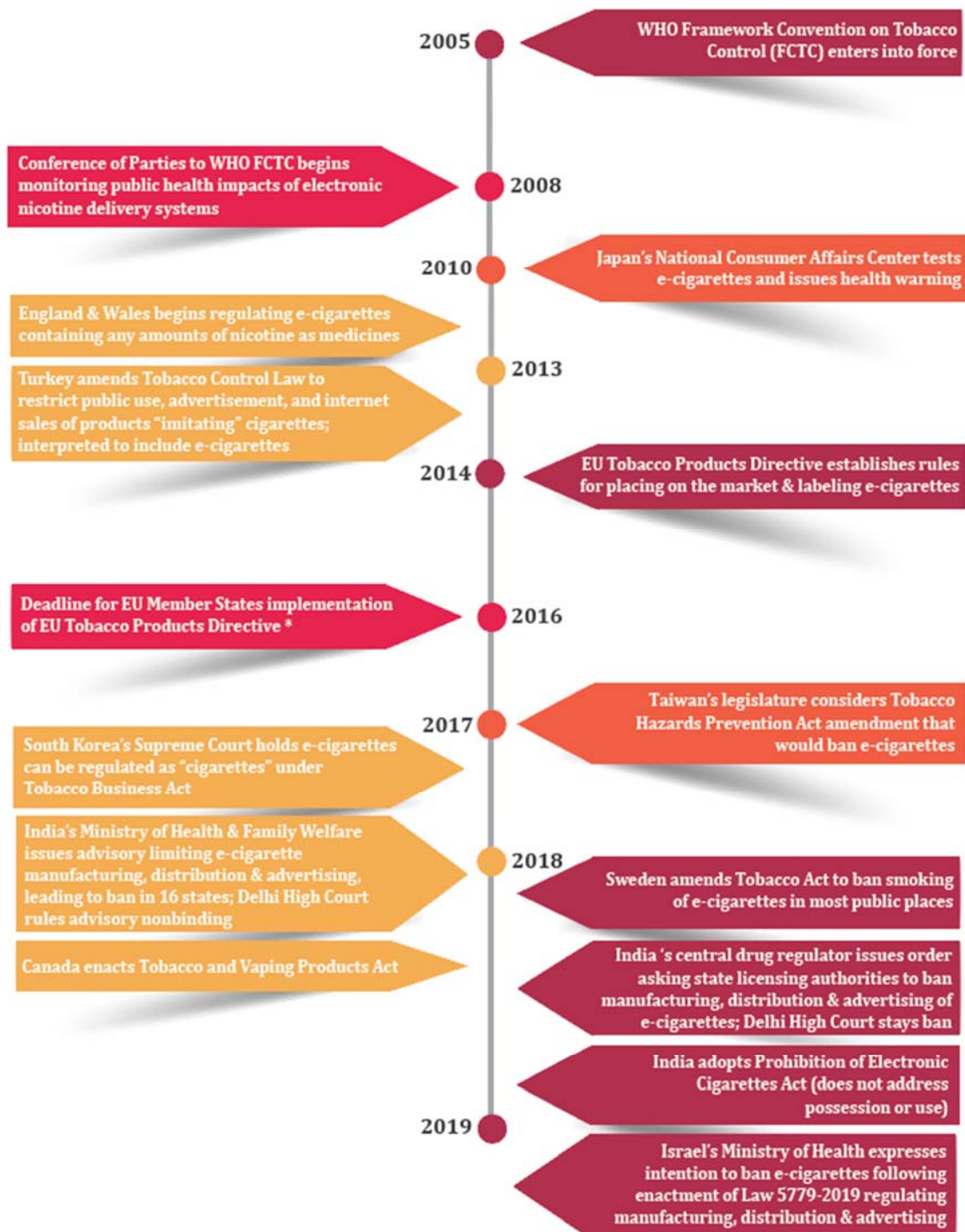
D. Hybrid Approaches to Regulating E-Cigarettes

In **Taiwan** and the **United Kingdom (UK)**, e-cigarettes are regulated by a hybrid of various laws related to pharmaceuticals, tobacco, and consumer protection. In the UK, the Medicines and Healthcare Products Regulatory Agency (MHRA) began licensing e-cigarettes as medicines in 2013 to improve their quality and increase the effectiveness of e-cigarettes in reducing the harms from smoking; however, following the 2014 EU Tobacco Products Directive, only e-cigarettes with nicotine concentrations greater than 20 mg/mL are regulated as pharmaceutical products. Similarly, in Taiwan e-cigarettes are currently regulated by the Pharmaceutical Affairs Act and the Tobacco Hazards Prevention Act, with an amendment to the latter forthcoming.

E. Unclear Regulatory Framework and Pending Legislation

In a handful of jurisdictions surveyed, the legal status of e-cigarettes is unclear under current law. In **India**, the production, manufacture, import, export, transport, sale, distribution, storage, and advertisement of e-cigarettes is prohibited, but possession and use are not. In **Turkey**, it is unclear whether e-cigarettes are banned or allowed under the current legal framework.

Timeline of Selected Regulatory Developments



* EU Member States France, Germany, Sweden, and the United Kingdom are included in this report.

Source: Susan Taylor, Law Library of Congress, based on information provided in this report.

WHO Framework Convention on Tobacco Control

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The primary international legal instrument addressing the regulatory and policy issues surrounding electronic cigarettes (e-cigarettes) is the World Health Organization (WHO) Framework Convention on Tobacco Control (FCTC).¹ The FCTC is a binding international legal instrument that establishes broad commitments and a general system of governance to: regulate tobacco advertising, promotion and sponsorship; take steps to monitor and control illicit trade in tobacco products; reduce supply and demand of tobacco; and encourage scientific and technical cooperation. The FCTC has been ratified by 181 countries.²

The Conference of Parties (COP) to the WHO FCTC began monitoring the potential impact of electronic nicotine delivery systems (ENDS) on individual and public health, as well as tracking associated regulatory developments among its members, in 2008.³ While noting the increase in sales of ENDS worldwide, the COP has identified several different regulatory approaches taken by governments, including the creation of specific new laws or other legal mechanisms for regulating ENDS; using existing legislation; amending existing laws; or a combination of these measures.⁴ Most recently, the COP recommended that health claims related to ENDS should be prohibited until they are scientifically proven.⁵

As the WHO FCTC Secretariat notes:

In the 2018 Global Progress Report on Implementation of the WHO FCTC,⁶ based on mandatory reports submitted biannually by all Parties, an increasing number of countries indicated the arrival of new and emerging nicotine and tobacco products on their markets, often outside of a domestic legal or regulatory framework. According to data from the 2018 WHO FCTC reporting cycle, 102 out of 181 Parties reported having ENDS on their markets but only 63 of those regulate ENDS. Those that regulate ENDS, include them in categories such as tobacco products; products imitating tobacco; medicinal products; pharmaceutical

¹ World Health Org. [WHO] Framework Convention on Tobacco Control, *adopted* May 21, 2003, 2302 U.N.T.S. 166 (entered into force Feb. 27, 2005), <https://perma.cc/7NCT-C3CD>.

² The United States signed the FCTC in 2004 but has not ratified the treaty. See list of signatories and ratifications at <https://perma.cc/5LFZ-NQ7K>.

³ WHO, *Elaboration of Guidelines for Implementation of Articles 9 and 10 of the WHO Framework Convention on Tobacco Control: Progress Report of the Working Group*, ¶ 38(a), FCTC/COP/3/6 (Aug. 21, 2008), <https://perma.cc/J2LD-QAKA>.

⁴ WHO, *Progress Report on Regulatory and Market Developments on Electronic Nicotine Delivery Systems (ENDS) and Electronic Non-Nicotine Delivery Systems (ENNDS)*, ¶ 20, FCTC/COP/8/10 (June 27, 2018), <https://perma.cc/FAK6-9A4Q>.

⁵ WHO, *The Convention Secretariat Calls Parties to Remain Vigilant towards Novel and Emerging Nicotine and Tobacco Products* (Sept. 13, 2019), <https://perma.cc/93AQ-GNAM>.

⁶ WHO, *Global Progress Report on Implementation of the WHO Framework Convention on Tobacco Control* (2018), <https://perma.cc/SJU5-XFYG>.

products; consumer products; poisons or ENDS as a new product category. This shows that from a regulatory and enforcement point-of-view these products represent a growing challenge for the Parties. Further, in many countries, illicit trade of novel and emerging nicotine and tobacco products have been reported.⁷

While the COP to the FCTC continues to monitor the progress of governments in regulating e-cigarettes, providing research, guidance, and recommendations, the Working Group on Articles 9 (Regulation of the Contents of Tobacco Products) and 10 (Regulation of Tobacco Product Disclosures) has not yet made a decision whether e-cigarettes should be considered tobacco products.⁸ Article 8.2 of the FCTC requires “effective” policies to create a 100% smoke-free environment.⁹ However, if ENDS are proven to be a healthier substitute for cigarettes and reduce the overall production of tobacco smoke, then, under article 14 of the FCTC,¹⁰ ENDS should alternatively be encouraged as an “effective measure to promote cessation of tobacco use.”¹¹

⁷ WHO, The Convention Secretariat Calls Parties to Remain Vigilant towards Novel and Emerging Nicotine and Tobacco Products, *supra* note 5.

⁸ *Progress Report on Regulatory and Market Developments*, *supra* note 4, at ¶ 3.

⁹ WHO, Guidelines on Protection from Exposure to Tobacco Smoke, para. 6, <https://perma.cc/B735-8B44>.

¹⁰ WHO, Guidelines for Implementation of Article 14 of the WHO Framework Convention on Tobacco Control, FCTC/COP4(8), <https://perma.cc/5VP2-6J28>.

¹¹ Kevin Oliver, *Regulations Are a Drag: The WHO Framework Convention on Tobacco Control and Its Potential Application to Electronic Cigarettes*, 16 Chi. J. Int'l L. 185 (2015), <https://perma.cc/GPD4-ZRBT>.

Canada

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SUMMARY Canada has laws and regulations that govern e-cigarettes at the federal, provincial, and municipal level. At the federal level, legislation applicable to vaping and e-cigarettes includes the Tobacco and Vaping Products Act (TVPA), Canada Consumer Product Safety Act (CCPSA), Food and Drugs Act (FDA), and the Non-Smokers Health Act (NSHA). Health Canada is the main federal department of the government of Canada that is responsible for national public health.

The FDA and its regulations apply to any vaping product that makes a health claim, including those that contain nicotine or any other drugs as defined by the FDA. These products must receive an authorization from Health Canada before they can be commercially imported, advertised or sold in Canada. Vaping products that do not make health claims are not subject to the FDA and do not require a market authorization from Health Canada. However, these products are prohibited from containing any drugs other than nicotine and must be sold according to the provisions and regulations of the TVPA and the CCPSA. The TVPA established a new legal framework for regulating vaping products to protect young persons from nicotine addiction and tobacco use, while allowing adults access to vaping products, which are seen as a less harmful alternative to smoking.

I. Introduction

Under Canada's constitutional framework, responsibilities for health-related issues are shared between the federal government and the provinces/territories. Therefore, legislation and regulations have been implemented at the federal, provincial, and municipal level to regulate e-cigarettes. At the federal level, legislation applicable to vaping and e-cigarettes includes the Tobacco and Vaping Products Act (TVPA), Canada Consumer Product Safety Act (CCPSA), Food and Drugs Act (FDA), and the Non-Smokers Health Act (NSHA). Health Canada is the main federal department of the government of Canada that is responsible for national public health.

Canada's current legal framework for e-cigarettes has been described as a "modernized approach" that seeks "to strike a balance between the goals of restricting access to tobacco and vaping products for minors, while allowing adult smokers to access vaping products and less harmful alternatives to traditional tobacco products."¹ According to the Director General of the Tobacco Control Directorate in Health Canada, James Van Loon, "[a] balanced, flexible and

¹ Azim Chowdhury & Kristina DiPano, *Canada's New Regulatory Framework for Vaping Products*, The Continuum of Risk (Oct. 9, 2018), <https://perma.cc/YJP7-AP22>.

comprehensive regime is required to maximize the potential benefits and minimize the risks of vaping products as the science evolves.”²

It appears that nine provinces/territories have legislation or regulations related to e-cigarettes (some of these jurisdictions have requirements that are going into effect this year). These laws include “bans on use and sales of e-cigarettes where smoking is banned, use of e-cigarettes in stores such as specialty retailers, restrictions on advertising and promotion, sponsorship bans, ban on stretching tobacco brand names to e-cigarettes, display bans and authority to restrict flavours.”³

II. Relevant Studies

A. Usage

The Canadian Tobacco, Alcohol and Drugs Survey (CTADS) is a biennial general population survey of tobacco, alcohol, and drug use among Canadians aged fifteen years and older which is conducted by Statistics Canada on behalf of Health Canada. The 2017 survey⁴ found that:

- 15% of Canadians have tried a vaping product (referred to as an e-cigarette in the survey). Youth (15 to 19 years) and young adults (20 to 24 years) have the highest rates of trying vaping. This compares to adults 25 years and older.
- Among Canadians who used a vaping product in the past 30 days, 65% are current smokers and 20% are former smokers. 15% reported having never smoked cigarettes.
- 32% of current or former cigarette smokers who had ever used vaping products reported using it as a quit-smoking aid.⁵

This survey “did not include questions about the rate of success of attempts to quit smoking using vaping products.”⁶

The Canadian Student Tobacco, Alcohol and Drugs Survey (CSTADS), is a biennial survey “administered to students in grades 7-12 across Canada” which is implemented with the

² James Van Loon, *The Canadian Experience: Considerations for Regulating E-Cigarettes* 7 (Presentation to the E-Cigarette Summit, Nov. 2018), <https://perma.cc/5X24-SV5T>.

³ *Vaping and E-Cigarette Regulations Across Canada*, CBC (Oct. 18, 2019), <https://perma.cc/C2DT-L3NG>; *Here's How Vaping is Regulated in Each Province*, GlobalNews (Nov. 20, 2019; updated Dec. 5, 2019), <https://perma.cc/K2QR-T9AQ>.

⁴ *Canadian Tobacco, Alcohol and Drugs Survey (CTADS): Summary of Results for 2017*, Health Canada, <https://perma.cc/E32U-Z5KK>.

⁵ *Vaping in Canada: What We Know*, Health Canada, <https://perma.cc/2BDW-FUCL>.

⁶ Id.

“cooperation, support and funding” of Health Canada.⁷ Results from the 2016-2017 survey⁸ “indicate that 15% of students in grades 10-12 (Secondary IV and V in Quebec) used a vaping product in the past 30 days, up from 9% in 2014-15. This represents a 64% increase, or roughly 30% per year.”⁹ According to this survey, “Youth (15 to 19 years) and young adults (20 to 24 years) have the highest rates of trying vaping. This compares to adults 25 years and older.”¹⁰ The 2016-2017 CSTADS also showed that

- 23% of students in grades 7-12 had ever tried a vaping product (referred to as an e-cigarette in the survey). 10% reported using them within the last 30 days.
- most students who had tried a vaping product (such as e-cigarettes) had also tried a cigarette.
- 53% of all students thought it would be “fairly easy” or “very easy” to get a vaping product such as e-cigarettes if they wanted one.¹¹

Preliminary results from the International Tobacco Control Youth Tobacco and Vaping Survey “suggest that there has been an increase in the proportion of 16- to 19- year old Canadians who have tried vaping in the last 30 days between September 2017 and September 2018. It appears that the rate of youth uptake is rapidly accelerating.”¹²

Most recently, the results of the 2018-2019 CSTADS include the following:

E-cigarette prevalence rates have doubled among students in 2018-19 since the last survey in 2016-17. Twenty percent (20%) of students (approximately 418,000) had used an e-cigarette (with or without nicotine) in the past 30 days, an increase from 10% in 2016-17. Prevalence of past-30-day use of e-cigarettes was not different between male (21%) and female (19%) students, but higher among students in grades 10 to 12 (29%) than those in grades 7 to 9 (11%). Students who have used an e-cigarette (with or without nicotine) in the past 30 days, are vaping frequently, with 40% (approximately 165,000 students) reporting daily or almost daily use.

Furthermore, many students are using vaping products that contain nicotine. Among students who used a vaping product in the past 30 days, 90% used a product with nicotine and 57% used a product without nicotine.

Of the students who had used an e-cigarette (with or without nicotine) in the past 30 days, 12% were current smokers, 14% were former smokers, 10% were experimental smokers,

⁷ *Canadian Student Tobacco, Alcohol and Drugs Survey (CSTADS)*, University of Waterloo, <https://perma.cc/H9TJ-WRN4>.

⁸ *Summary of Results for the Canadian Student Tobacco, Alcohol and Drugs Survey 2016-17*, Health Canada, <https://perma.cc/GSW3-X8LN>.

⁹ Health Canada, *Reducing Youth Access and Appeal of Vaping Products: Consultation on Potential Regulatory Measures* 1 (Apr. 2019), <https://perma.cc/E4E6-WAN4>.

¹⁰ *Id.*

¹¹ *Vaping in Canada: What We Know*, *supra* note 5.

¹² *Notice of Intent – Potential Measures to Reduce the Impact of Vaping Products Advertising on Youth and Non-users of Tobacco Products*, Health Canada, <https://perma.cc/W7J4-MKSA>.

22% were puffers, and 42% indicated that they had never smoked a cigarette, not even a puff.

Sixteen percent (16%) of students (approximately 340,000) had ever tried both cigarettes and e-cigarettes, an increase from 13% in 2016-17. Among students who had tried both cigarettes and vaping products, 41% tried a cigarette first (approximately 139,000 students), 47% (approximately 158,000 students) tried a vaping product first, and the remainder could not remember or provided inconsistent answers. The prevalence of trying an e-cigarette first was higher among students in grades 10 to 12 (49%) than in grades 7 to 9 (40%).¹³

B. Health Risks and Use for Smoking Cessation

According to data from the Canadian Hospitals Injury Reporting and Prevention Program (CHIRPP), an “injury and poisoning surveillance system that collects and analyzes data on injuries to people who are seen at the emergency rooms of 11 pediatric hospitals and 8 general hospitals in Canada,”¹⁴ “while there were no reports of injuries prior to 2013, there were 32 reported injuries related to vaping products between January 2013 and August 2018.”¹⁵ Also according to data collected by CHIRPP,

[s]eventy-eight percent (78%) of the injuries reported were poisonings from ingesting vaping liquid, and 92% of those were among children aged 4 years or younger. Among all ages, nearly two-thirds (64%) of the poisoning cases specified nicotine. The remaining patients were burned from e-cigarettes exploding or catching fire (9%), or sustained another type of injury or had no injury detected (12%).¹⁶

The government of Canada notes that “[t]he rise in paediatric poisoning cases in Canada in recent years corresponds to a rise in sales of refillable vaping devices.”¹⁷

In Canada, as at December 10, 2019, “there have been 14 cases of vaping-associated lung illness which were reported to the Public Health Agency of Canada from British Columbia (3), New Brunswick (2), Ontario (4), and Quebec (5). Symptom onset was between May and November 2019. Eleven people required admission to a hospital and all but one are now recovering at home. Four patients presented with respiratory symptoms only (shortness of breath, cough), while ten presented with a combination of respiratory, gastrointestinal, and/or constitutional symptoms, such as fever or weight loss.”¹⁸

¹³ *Summary of Results for the Canadian Student Tobacco, Alcohol and Drugs Survey 2018-19*, Health Canada, <https://perma.cc/L8WY-T4HT>.

¹⁴ *Canadian Hospitals Injury Reporting and Prevention Program*, Public Health Agency of Canada, <https://perma.cc/N4G9-RMRH>.

¹⁵ *Vaping Products Labelling and Packaging Regulations*, Canada Gazette, Part I, Volume 153, Number 25 (June 22, 2019), <https://perma.cc/A9UT-LC5T>.

¹⁶ *Injuries and Poisonings from Vaping Products including E-Cigarettes*, Data Blog, Public Health Infobase (Oct. 11, 2018), <https://perma.cc/K6HQ-XU23>.

¹⁷ *Vaping Products Labelling and Packaging Regulations*, *supra* note 15.

¹⁸ *Vaping-Associated Lung Illness*, Health Canada, <https://perma.cc/B6RG-RCXY>.

Health Canada has also been advising Canadians who use vaping products to “monitor themselves for symptoms of pulmonary illness (e.g., cough, shortness of breath, chest pain) and to seek medical attention promptly if they have concerns about their health.”¹⁹

Health Canada also provides online information about vaping to the public where it discusses “vaping and quitting smoking.”²⁰ The government website states that “[v]aping is less harmful than smoking. Many of the toxic and cancer-causing chemicals in tobacco and the tobacco smoke form when tobacco is burned.”²¹ It also states that vaping products and e-cigarettes “deliver nicotine in a less harmful way than smoking cigarettes” and these products “may reduce health risks for smokers who can’t or don’t want to quit using nicotine” on their own, such as by using counselling services or “medication or approved nicotine replacement therapies.”²² The Health Canada website concludes that “[w]hile evidence is still emerging, some evidence suggests that using e-cigarettes is linked to improved rates of success.”²³

III. Federal Laws

The Tobacco and Vaping Products Act (TVPA)²⁴ became law on May 23, 2018. It was enacted in response to a 2015 report of the House of Commons Standing Committee on Health entitled *Vaping: Towards a Regulatory Framework for E-Cigarettes*.²⁵ According to the Canadian government, the TVPA “creates a new legal framework for regulating vaping products to protect young persons from nicotine addiction and tobacco use, while allowing adults access to vaping products as a less harmful alternative to smoking.”²⁶ The purpose of the Act is set out in section 4. Subsection 4(3) specifically relates to vaping products, stating that the purpose of the Act is to “prevent vaping product use from leading to the use of tobacco products by young persons and non-users of tobacco products” and, in particular,

- (a) to protect young persons and non-users of tobacco products from inducements to use vaping products;
- (b) to protect the health of young persons and non-users of tobacco products from exposure to and dependence on nicotine that could result from the use of vaping products;
- (c) to protect the health of young persons by restricting access to vaping products;

¹⁹ *Information Update - Health Canada Warns of Potential Risk of Pulmonary Illness Associated with Vaping Products*, Health Canada (Sept. 4, 2019), <https://perma.cc/ZVM5-SFVH>.

²⁰ *Vaping and Quitting Smoking*, Health Canada, <https://perma.cc/BYH3-7FGF>.

²¹ *Id.*

²² *Id.*

²³ *Id.*

²⁴ Tobacco and Vaping Products Act (TVPA), S.C. 1997, c. 13, <https://perma.cc/HHY7-ZB2Z>.

²⁵ Standing Committee on Health, *Vaping: Towards a Regulatory Framework for E-Cigarettes* (Mar. 2015), <https://perma.cc/54SG-D9MV>.

²⁶ *Tobacco and Vaping Products Act*, Health Canada, <https://perma.cc/9U63-Q6RJ>.

(d) to prevent the public from being deceived or misled with respect to the health hazards of using vaping products; and

(e) to enhance public awareness of those hazards.²⁷

The Act also allows adults to legally obtain vaping products with nicotine.²⁸ There are also regulations that exclude “certain categories of vaping products” authorized under Canada’s Food and Drugs Act (FDA) “from the application of the TVPA in cases where they do not cause tobacco or vaping-related harms and/or already have sufficient oversight under the provisions and regulations of the FDA.”²⁹ These are health products authorized under the FDA, including prescription drugs, certain natural health products (NHP) and non-prescription drugs, and certain medical devices.³⁰

A. Age and Access Requirements

The TVPA defines “young person” to be someone under the age of eighteen. Part II of the Act contains sections on “Access” applicable to this age group. It prohibits the furnishing of a vaping product to a young person in “a public place or in a place to which the public has access.”³¹ It also prohibits the sending or delivering of a vaping product to a young person. Essentially, the requirements do not allow vaping products “to be sold or given to anyone under 18 years of age.”³² Some provinces, such as British Columbia, have a higher age limit (e.g. nineteen years) for the sale and supply of vaping products to minors.³³

B. Safety and Quality Standards

As noted above, the FDA and its regulations continue to apply to any vaping product that makes a health claim, “including those that contain nicotine or any other drugs as defined by the FDA.”³⁴ According to Health Canada,

[t]hese products must receive an authorization from Health Canada before they can be commercially imported, advertised or sold in Canada. Before Health Canada issues a market authorization, it conducts a careful review of evidence provided by the product sponsor to confirm that the product meets the requirements for safety, efficacy and quality established by the FDA and its regulations. In addition, product sponsors must obtain a

²⁷ TVPA § 4(3).

²⁸ *Vaping Product Regulation*, Health Canada, <https://perma.cc/6NDW-CAL3>.

²⁹ *Id.*

³⁰ *Id.*

³¹ TVPA § 8(1).

³² *Vaping Product Regulation*, *supra* note 28.

³³ *Vaping and E-Cigarette Regulations Across Canada*, *supra* note 3.

³⁴ *Notice: Implications of the Tobacco and Vaping Products Act for Health Products Regulated Under the Food and Drugs Act*, Health Canada, <https://perma.cc/D6G8-RBSB>.

valid establishment or site license from Health Canada before commercially importing, manufacturing, packaging or labelling a vaping health product in Canada.³⁵

Vaping products that do not make health claims or that are “not marketed for a therapeutic use” are not subject to the FDA and do not require a market authorization from Health Canada. However, these products are prohibited from containing any drugs “other than nicotine and must be sold in accordance with the provisions and regulations of the TVPA and the Canada Consumer Product Safety Act (CCPSA).”³⁶ The CCPSA has a number of requirements,³⁷ including

- mandatory incident reporting and mandatory document retention requirements relating to suppliers and the location and duration of retail sale of a product (see section 13 and 14); and
- prohibition on the manufacture, import, advertisement or sale of any consumer product that is a “danger to human health or safety” as defined in the CCPSA (see paragraphs 7(a) and 8(a)).³⁸

There are currently no product-specific regulations under the CCPSA for vaping products. According to Health Canada, “[w]hile provisions of the CCPSA will always apply to vaping products, Health Canada intends to introduce regulations under the CCPSA to address health or safety risks posed by these products.”³⁹

Vaping liquids are also subject to the Consumer Chemicals and Containers Regulations (CCCR), 2001, a regulation under the CCPSA.⁴⁰ The CCCR, 2001 sets out a “classification-based approach to establishing rules for consumer chemicals, including a prohibition against the sale of very toxic substances and requirements for labelling and child-resistant containers for toxic substances.”⁴¹ After reviewing the toxicity of nicotine, Health Canada has determined the following “classifications for vaping liquids manufactured, imported, advertised, or sold as consumer products”:

1. Vaping liquids containing equal to or more than 66 mg/g nicotine meet the classification of “very toxic” under the CCCR, 2001 and are prohibited from being manufactured, imported, advertised, or sold under section 38 of the CCCR, 2001.
2. Vaping liquids containing between 10 mg/g and less than 66 mg/g nicotine meet the classification of “toxic” under the CCCR, 2001. Stand-alone containers of these liquids must meet the CCCR, 2001 requirements for “toxic” chemicals, including child-resistant containers and hazard labelling.

³⁵ Id.

³⁶ Id.

³⁷ Canada Consumer Product Safety Act (CCPSA), S.C. 2010, c. 21, <https://perma.cc/KM8A-XEUC>

³⁸ *Guidance on Vaping Products Not Marketed for a Therapeutic Use*, Health Canada, <https://perma.cc/MF8K-65CH>.

³⁹ Id.

⁴⁰ Consumer Chemicals and Containers Regulations, 2001 (SOR/2001-269), <https://perma.cc/TQP5-DF56>.

⁴¹ *Guidance on Vaping Products Not Marketed for a Therapeutic Use*, *supra* note 38.

3. While the CCCR, 2001 excludes ingredients present between 0.1 mg/g and 10 mg/g when calculating a chemical product's toxicity, Health Canada has determined that nicotine is potentially toxic via oral exposure in this concentration range. Therefore, vaping liquids containing nicotine between 0.1 mg/g and 10 mg/g or under 1% (m/m) that do not meet the requirements for the "toxic" classification under the CCCR, 2001 are a violation of the general prohibition set out in paragraphs 7(a) or 8(a) of the CCPSA and are subject to enforcement action.

Vaping devices with refillable tanks and other vaping device parts that hold or may hold vaping liquids with nicotine have been excluded from the scope of the CCCR, 2001 by subsection 4(4) of the CCPSA.⁴² According to guidance issued by Health Canada, "[t]his is an interim measure, intended to provide time for industry members to manufacture or source vaping devices with refillable tanks that meet the requirements of the CCCR, 2001 (which include child-resistant containers and toxicity labelling)."⁴³ In the meantime, vaping devices are still subject to the CCPSA, including sections 7 and 8 of the Act. The government has published regulation proposals which set out that a

child-resistant container requirement for any vaping product that may hold a vaping substance containing nicotine in a concentration of 0.1 mg/mL or more. The proposed child-resistant container requirements are modelled on those found in the CCCR, 2001. The child-resistant container requirement would be applied to refillable vaping devices and their parts, including component tanks or reservoirs that may hold vaping substances, and to stand-alone containers of vaping substances containing nicotine in a concentration of 0.1 mg/mL or more.⁴⁴

The TVPA also authorizes regulations to be issued on industry reporting and manufacturing standards. Section 7.2 states that "[n]o manufacturer shall manufacture or sell a vaping product that does not conform with the standards established by the regulations."⁴⁵ Vaping substances are prohibited from containing certain ingredients, including caffeine, coloring agents, probiotics, and vitamins. Substances containing these ingredients cannot be manufactured or sold, "except prescription vaping substances that are manufactured or sold for export." The prohibited ingredients are listed in column 1 of schedule 2 of the Act.⁴⁶

⁴² CCPSA § 4(4).

⁴³ *Guidance on Vaping Products Not Marketed for a Therapeutic Use*, *supra* note 38.

⁴⁴ *Id.*

⁴⁵ TVPA § 7.2.

⁴⁶ *Id.* §§ 7.21 & 7.22.

C. Labelling Requirements

Section 15.1 of the TVPA specifies that no manufacturer or retailer can sell a vaping product,⁴⁷ manufacture a vaping product,⁴⁸ or package a vaping product⁴⁹ unless it displays, in a prescribed form and manner, particular information (contained in regulations) about the product and its emissions and “about the health hazards and health effects arising from the use of the product and from its emissions.” Subsection 15.1(4) also stipulates that every manufacturer or retailer must provide with a vaping product, in the prescribed form and manner, “a leaflet or tag that displays the information required by the regulations about the product and its emissions and about the health hazards and health effects arising from the use of the product and from its emissions.”⁵⁰

As noted in the previous section of this report, Health Canada is proposing new regulations under the TVPA and the CCPSA. The proposed regulations include labelling requirements pursuant to both laws. The proposed labelling requirements include “a list of ingredients, and, depending on the presence of nicotine and its concentration, a health warning that nicotine is highly addictive, the concentration of nicotine, and warnings regarding the toxicity of nicotine when ingested. In addition, the proposed Regulations would set out expressions that may be used on the product or package to indicate when a vaping product is without nicotine.”⁵¹

D. Advertising and Promotion

The TVPA also sets rules about promoting vaping products, including “not promoting flavours that appeal to youth” and “not misleading consumers about the health effects of these products.”⁵² Promotion requirements for vaping products are set out in division 2 of part IV of the TVPA.

The TVPA prohibits advertising appealing to young persons, stipulating that “[n]o person shall promote a vaping product, a vaping product-related brand element or a thing that displays a vaping product-related brand element by means of advertising if there are reasonable grounds to believe that the advertising could be appealing to young persons.”⁵³ Section 30.2 prohibits lifestyle advertising of vaping products, stipulating that “[n]o person shall promote a vaping product, a vaping product-related brand element or a thing that displays a vaping product-related brand element by means of lifestyle advertising.”⁵⁴ Section 2 of the TVPA defines “lifestyle advertising” as “advertising that associates a product with, or evokes a positive or negative emotion about or image of, a way of life such as one that includes glamour, recreation, excitement,

⁴⁷ Id. § 15.1(1).

⁴⁸ Id. § 15.1(2).

⁴⁹ Id. § 15.1(3).

⁵⁰ Id. § 15.1(4).

⁵¹ Vaping Products Labelling and Packaging Regulations, *supra* note 15.

⁵² *Vaping Product Regulation*, *supra* note 28.

⁵³ TVPA § 30.1.

⁵⁴ Id. § 30.2.

vitality, risk or daring.”⁵⁵ There is also a prohibition on promoting vaping products through testimonials or endorsements under subsection 30.21(1) of the TVPA, which states as follows:

(1) No person shall promote a vaping product through a testimonial or an endorsement, however, displayed or communicated, including by means of the packaging.

(2) For the purposes of subsection (1), the depiction of a person, character or animal, whether real or fictional, is considered to be a testimonial for, or an endorsement of, the product.⁵⁶

According to the government, “[t]he purpose of this prohibition is to protect young persons and non-users of tobacco products from inducements to use vaping products by banning promotions through testimonials and endorsements. The use of testimonials and endorsements as a marketing technique is known to contribute to creating and maintaining the perception that the use of the endorsed product is socially desirable.”⁵⁷ Provisions also exist on false, misleading, or deceptive promotions; promotions that cause a person to believe there are health benefits derived from the product; and promotions that discourage tobacco cessation. Subsection 30.48(1) of the TVPA also prohibits the promotion of vaping product flavors that appeal to young persons:

No person shall promote a vaping product set out in column 2 of Schedule 3, including by means of the packaging, through an indication or illustration, including a brand element that could cause a person to believe that the product has a flavour set out in column 1.⁵⁸

According to the government,

the purpose of this prohibition is to protect young persons and non-users of tobacco products from inducements to use vaping products. The availability of attractive flavours in vaping products has raised concerns that the flavours make them more appealing to youth, especially since flavoured tobacco products are popular among youth. The TVPA limits vaping product marketing aimed at young persons with a ban on the display of indications or illustrations representing attractive flavours, namely the classes of flavours listed in Schedule 3 of the TVPA (e.g. confectionery flavours).⁵⁹

Stricter regulatory measures under the TVPA are currently being considered in order to “protect youth and non-users of tobacco products from inducements to use vaping products.”⁶⁰ Health Canada is looking at proposing regulations that limit where advertisements can be placed:

1. **Points of sale:** Vaping product advertisements would not be permitted at any point of sale where youth is allowed access, including online. However, signs that indicate the

⁵⁵ Id. § 2.

⁵⁶ Id.

⁵⁷ *Protection of Young Persons – Some Key Prohibitions and Related Penalties under the Tobacco and Vaping Products Act*, Health Canada, <https://perma.cc/MN5E-54R3>.

⁵⁸ TVPA § 30.48(1)

⁵⁹ Id.

⁶⁰ *Notice of Intent – Potential Measures to Reduce the Impact of Vaping Products Advertising on Youth and Non-users of Tobacco Products*, Health Canada, <https://perma.cc/W7J4-MKSA>.

availability and price of vaping products could be displayed under certain conditions. As well, catalogues or pamphlets that provide information on the brands of vaping products available would be allowed at any point of sale, provided that they are not publicly displayed and are only made available to an adult customer upon request. These restrictions would not apply at points of sale where youth do not have access (e.g. a vape shop that does not allow youth on its premises or on its website), as long as the advertising material cannot be seen from the outside of these places.

2. **Public Places:** Vaping product advertisements (e.g. signs) would not be permitted in certain public places where youth have access such as shopping malls; recreation, arts and cultural facilities; parks; in public transit vehicles and stations; billboards and other outdoor physical supports for commercial advertising.
3. **Broadcast Media:** Vaping product advertisements would not be permitted in broadcast media during or adjacent to (within 30 minutes before or after) all children's and youth-oriented programming at all times of day and night and on all channels.
4. **Publications:** Advertisements of vaping products would not be permitted in children's and youth-oriented publications. This would include electronic publications such as websites and social media platforms.⁶¹

As noted in the previous section, the FDA also applies to vaping products that make a health claim, such as the product helps quit smoking, and they must receive an authorization from Health Canada before they can be advertised.⁶²

⁶¹ Id.

⁶² *Vaping Product Regulation*, supra note 28.

England and Wales

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SUMMARY England and Wales has implemented the EU Tobacco Products Directive into its national law through the Tobacco and Related Products Regulations 2016. These regulations provide for a system of notification requirements for e-cigarettes and refill products, requiring certain information and standards to be met before they can be placed on the market, along with safety standards and labeling requirements. Individuals must be 18 years of age or over to purchase these items. Controls on the advertisement of e-cigarettes, which is permitted in limited circumstances, is provided for thorough regulation and industry standards. A number of reports from health organizations, government committees, and public health bodies have proposed the use of e-cigarettes as a means to help users of traditional cigarettes stop smoking.

I. Introduction

Smoking tobacco is the leading cause of preventable death in England and Wales, resulting in 77,800 deaths and 489,300 admissions into hospital.¹ As the healthcare system is taxpayer funded, the use of cigarettes and associated health issues presents a significant burden to the system. Public Health England has stated that smoking costs approximately £12.6 billion each year (approximately US\$16.5 billion), with £1.4 billion (US\$1.8 billion) spent on social care, £2.5 billion (US\$3.25 billion) spent by the NHS and £8.6 billion (US\$11.25 billion) due to lost productivity.² The total cost of prescription items used to help people stop smoking across England was £23 million (US\$31 million) in 2018/19, which is a significant fall of 65% when compared with the period 2010/11 when it was £65.9 million (US\$88 million).³

The use of e-cigarettes, also referred to as electronic cigarettes, electronic nicotine delivery systems, vaporisers, or vapes, has received widespread attention across England and Wales, most notably as a potential aid to help users of traditional cigarettes stop smoking. Public Health England has estimated these products are 95% less harmful than traditional cigarettes.⁴ A government Committee Report has stated that while the long term risks of e-cigarettes is uncertain, smoking traditional cigarettes is more harmful, thus “[e]xisting smokers should be

¹ NHS Digital, *Statistics on Smoking, England: 2019* (July 2, 2019), <https://perma.cc/5QM7-ND8D>.

² *Guidance, Health Matters: Stopping Smoking – What Works?*, Public Health England (last updated Dec. 17, 2019), <https://perma.cc/CP6U-L9SQ>.

³ NHS Digital, *supra* note 1, at 17.

⁴ Public Health England, *Evidence Review of E-Cigarettes and Heated Tobacco Products 2018* Table 5 (Feb. 2018), <https://perma.cc/66VJ-4BD6>.

encouraged to give up, but if that is not possible they should switch to e-cigarettes as a considerably less harmful alternative.”⁵

II. Regulation of E-Cigarettes

E-cigarettes were first introduced in England and Wales in 2007⁶ and the market for these products grew significantly from £1.7 million (approximately US\$2.2 million) in 2010 to £13.1 million (US\$17.2 million) in 2012.⁷ E-cigarettes were originally regulated as a consumer product, rather than a tobacco or medicine, and producers were only required to comply with consumer product safety legislation.⁸

In 2013, the government determined that all products containing nicotine would be “regulated as medicines in a move to make these products safer and more effective to reduce the harms of smoking.”⁹ This was a result of research commissioned by the Medicines and Healthcare Products Regulatory Agency (MHRA), an executive agency of the United Kingdom’s Department of Health responsible for regulating medicines, medical devices, and blood transfusion components, which found that there were significant variances in the quality of e-cigarettes and differences in the contents listed on the label, along with products being contaminated.¹⁰ The study also found that e-cigarettes “were often poorly manufactured, containing contaminants and with leaks of nicotine from the cartridges.”¹¹ As a result the MHRA determined that e-cigarettes should be licensed as medicines to provide the public with “confidence that they are safe, are of the right quality and work.”¹²

The MHRA’s plans to regulate all e-cigarettes as medicines was superseded by the European Union’s Tobacco Products Directive,¹³ which requires e-cigarettes with nicotine concentrations above 20mg/mL to be licensed as a medicine and those with concentrations below this amount to be regulated in accordance with the provisions of the Directive. The UK implemented this Directive into its national law through the Tobacco and Related Products Regulations 2016.¹⁴ The government has stated that the regulations are “a precautionary approach to managing any risk

⁵ House of Commons Science and Technology Committee, *E-Cigarettes* (2017-19) HC 505, <https://perma.cc/9ZRH-2F56>.

⁶ *Id.* ¶ 1.

⁷ House of Commons Library, *Advertising: Vaping and E-Cigarettes*, June 25, 2019, No. 7001 at 3, <https://perma.cc/49VS-G3T2>.

⁸ Details that must be included in the notification are set out in Public Health England, *supra* note 4, Table 2.

⁹ Press Release, MHRA, UK Moves Towards Safe and Effective Electronic Cigarettes and Other Nicotine-Containing Products (June 12, 2013), <https://perma.cc/W9NP-D8ZT>.

¹⁰ *Id.*

¹¹ Ingrid Torjesen, *E-Cigarettes Are to Be Regulated as Medicines*, *Brit. Med. J.* 2013 at 346 (2016).

¹² Press Release, MHRA, *supra* note 9.

¹³ Directive 2014/40/EU, 2010 O.J. (L 127) 1, <https://perma.cc/4VYC-KH2J>.

¹⁴ Tobacco and Related Products Regulations 2016, SI 2016/507, <https://perma.cc/AU7F-GWHZ>.

that e-cigarettes renormalise smoking behaviours”¹⁵ and provide minimum safety and quality standards for e-cigarettes along with reporting requirements to ensure consumers that the products are of a high quality. Labeling and advertising, along with a requirement to comply with a notification system prior to placing products on the market, are also included in the regulations.

A. Notification Requirements for E-Cigarettes

Producers and manufacturers of e-cigarettes and associated refills must submit a notification to the MHRA six months before they intend to place a product on the market in the UK and pay a fee.¹⁶ In order to receive approval from the MHRA, the producer must include the following information:

- the name and contact details of the producer;
- a list of all ingredients, including quantities, by both brand and variant name in the product and emissions resulting from the product;
- toxicological data about the product’s ingredients and emissions and the effects of these on the user’s health, including any addictive effect of the product;
- information on the nicotine dose and uptake of the product;
- a description of the product data and process with a declaration that it complies with the regulations; and
- a declaration that the producer is fully responsible for the quality and safety of the product when it is used under normal conditions.¹⁷

The Regulations provide that it is the producer’s responsibility to ensure their product complies with the regulations and they must also make a declaration to this effect, as well as update submissions when products are withdrawn or modified.¹⁸

The MHRA aims to publish new products within forty-five to sixty days of receiving submissions. Upon publication in the list, the product may be sold across the UK. The MHRA checks submitted notifications to ensure the information has been completely filled out and verifies e-cigarette producers’ compliance with the regulations.¹⁹ The lists of approved products provided by the MHRA may be consulted by retailers, the Chartered Trading Standards Institute (Trading

¹⁵ 773 Parl. Deb. HL 2016 (5th ser.) 1831, <https://perma.cc/3PKY-2ZYC>.

¹⁶ Electronic Cigarettes etc. (Fees) Regulations 2016, SI 2016/521, <https://perma.cc/95XF-DBQY>.

¹⁷ Id. ¶ 31.

¹⁸ *Guidance, E-Cigarettes: Regulations for Consumer Products*, MHRA (last updated Dec. 6, 2019), <https://perma.cc/68AF-Y6F5>.

¹⁹ Producers are those who manufacture or import e-cigarettes, or refill products, or rebrands these products. Id.

Standards), and consumers to ensure that the products they are selling or purchasing have been properly notified to the MHRA and meet appropriate product standards.²⁰

Producers of e-cigarettes and refill containers are also required to submit annual reports to the Secretary of State, which must include data on the sales of products; the preferences of consumer groups, such as young people and nonsmokers; the mode of sale of the products; and executive summaries of any market surveys relating to these issues that the producer has conducted.²¹

Public Health England noted in 2018 that over 32,000 e-cigarettes and refill products had been notified, “which suggests a level of compliance with the regulations and that the notification process is not too onerous.”²²

Producers of e-cigarettes that wish to license their products as medicinal devices must undergo a different procedure and apply to the MHRA for marketing authorization.²³ Such devices may contain more than 20mg/mL of nicotine.²⁴ The MHRA has approved the first electronic inhaler for medicinal purposes as nicotine replacement therapy,²⁵ but this product has not yet been placed on the market in the UK.²⁶

B. Product Standards for E-Cigarettes

In order to meet the requirements contained in the Tobacco and Related Products Regulations 2016, the following product standards must be met:

- Disposable e-cigarettes, single use cartridges, and the tanks of refillable e-cigarettes may not exceed 2mL.
- Refill containers may not be larger than 10mL.
- E-liquids may not contain more than 20mg/mL of nicotine.
- Ingredients and additives, such as coloring, caffeine, and taurine, are prohibited.
- The nicotine dose must be delivered at a consistent level.
- The products must be child-resistant.
- The products must be designed to show evidence of any tampering.

²⁰ Id.

²¹ Tobacco and Related Products Regulations 2016, *supra* note 14, ¶ 32.

²² Public Health England, *supra* note 4, at 51.

²³ Guidance: Licensing Procedure for Electronic Cigarettes as Medicines (Dec. 14, 2017), <https://perma.cc/YU8M-G5XQ>.

²⁴ *Guidance, Health Matters: Stopping Smoking – What Works?* Public Health England, *supra* note 2.

²⁵ MHRA, UK Public Assessment Report (UKPAR), *Voke 0.45mg Inhaler PL 39589/0001; Nicotine 0.45mg Inhaler PL 39589/0002* (last updated Nov. 2014), <https://perma.cc/GSR4-62R3>.

²⁶ *Guidance, Health Matters: Stopping Smoking – What Works?*, Public Health England, *supra* note 2.

- The products must be protected against breakage and leakage.
- Refills must be able to be performed without leakage.
- Product information meeting certain criteria must be included.²⁷

The restrictions on volume of tanks in e-cigarettes along with restrictions on the amount of nicotine has effectively prohibited the sale of Juul e-cigarettes across the UK in their current design.²⁸ The regulations ban characterizing the flavors, such as menthol or vanilla, in tobacco, but there is currently no restriction that bans or restricts the sale of flavored e-cigarettes in England²⁹ and the government has stated it has no plans to implement such a ban.³⁰

These regulations are enforced by Trading Standards, although Public Health England has noted that due to staffing cuts and reduced funding, Trading Standards “may not have the capacity to deal with [e-cigarette] issues, or enforce relevant regulations.”³¹

C. Safety Standards for E-Cigarettes

Producers of e-cigarettes are also required to comply with the Restriction of Hazardous Substances in Electrical and Electronic Equipment Regulation 2012, which regulates the components used to make the e-cigarette itself and limits specified hazardous substances in certain electrical equipment.³² The purpose of this regulation is to help control hazardous substances and help reduce the entry of these products into the waste system. It is enforced by the Office for Product Safety and Standards, which is part of the Department for Business, Energy and Industrial Strategy.³³

D. Labeling and Packaging

The labeling and packaging of e-cigarettes is subject to strict requirements. Labels must display warnings that include all substances contained in the product, the nicotine strength, the batch number, and the admonition that the item should be kept out of the reach of children.³⁴ A leaflet should also be included that details

²⁷ Tobacco and Related Products Regulations 2016, *supra* note 14, ¶ 36.

²⁸ A. Mathur & O.J. Dempsey, *Electronic Cigarettes: A Brief Update*, 48(4) J. Royal C. Physicians Edinburgh 350 (Dec. 2018), <https://perma.cc/2M6S-6RGQ>.

²⁹ House of Commons Library, *The Regulation of E-Cigarettes*, Briefing Paper No. 8114, Oct. 31, 2017, ¶ 2.3, <https://perma.cc/E3CP-EMRB>.

³⁰ Parl. Deb. HC (2016) WQ 48248 <https://perma.cc/G5DG-SJ97>.

³¹ Public Health England, *supra* note 4, at 45.

³² Restriction of the Use of Certain Hazardous Substances in Electrical and Electronic Equipment Regulations 2012, SI 2012/3032, <https://perma.cc/GHB8-N8JX>.

³³ *Guidance, E-Cigarettes: Regulations for Consumer Products*, MHRA, *supra* note 18.

³⁴ Tobacco and Related Products Regulations 2016, *supra* note 14, ¶ 37.

- information about the addictiveness and toxicity of the product;
- contraindications;
- instructions on the use and storage of the e-cigarette;
- possible adverse effects;
- the contact details of the producer;
- warnings of risks for specific groups of people; and
- a statement that the product is not recommended for use by young people.³⁵

In addition a health warning stating that “[t]his product contains nicotine which is a highly addictive substance” must cover 30% of the surface of the packaging.³⁶ This must appear in bold type on a white background “in a font size which ensures that the text occupies the greatest possible proportion of the surface area reserved for it.”³⁷

The packaging of e-cigarettes may not include an element or feature that

- (a) promotes an electronic cigarette or refill container, or encourages its consumption by creating an erroneous impression about its characteristics, health effects, risks or emissions;
- (b) suggests that a particular electronic cigarette or refill container –
 - (i) is less harmful than other electronic cigarettes or refill containers,
 - (ii) has vitalising, energising, healing, rejuvenating, natural or organic properties, or
 - (iii) has other health or lifestyle benefits;
- (c) refers to taste, smell or other additives (except flavourings) or the absence of any such thing;
- (d) resembles a food or a cosmetic product; or
- (e) suggests that a particular electronic cigarette or refill container has improved biodegradability or other environmental advantages.³⁸

Packaging may not include any kind of offer or discounts, such as coupons, free products, or two-for-one deals.³⁹

E. Advertising

The law relating to the advertising of e-cigarettes is complex. There is a general prohibition on the advertising of nonmedicinal e-cigarettes and refill products that contain nicotine⁴⁰ in

³⁵ Id. ¶ 37.

³⁶ Id.

³⁷ Id. ¶ 37(5).

³⁸ Id. ¶ 38(3)(a)-(e).

³⁹ Id. ¶ 38(4).

⁴⁰ House of Commons Library, *Advertising: Vaping and E-Cigarettes*, supra note 7, at 7.

newspapers, periodicals, magazines, television, radio, online, and via electronic media as well as the product placement of these items.⁴¹ The Committee of Advertising Practice (CAP) has noted in its guidance that ads placed via commercial emails, commercial text messages, on commercial websites and social media, through banners and pop up ads, paid search listings and social media ads, in-game advertisements, affiliate links, and in-app advertising “are likely to be prohibited” under current regulations.⁴² The prohibition does not extend to newspapers printed in third countries that are not primarily for the EU market, or to publications that are exclusively for professionals in the e-cigarette and refill product trade.⁴³ The regulation also does not cover domestic advertising, such as billboards, posters on public transportation, direct mail, advertisements in the cinema, or leaflets.⁴⁴ Factual information about products by retailers on their own websites does not breach these restrictions, according to a recent decision from the Advertising Standards Authority (ASA).⁴⁵

The differences in regulation between media types is due to the regulation being based on EU law and is “a result of the limits on the European Parliament’s jurisdiction when it comes to prohibiting advertising and not from an underlying policy rationale regarding the relative impact of different media.”⁴⁶

CAP has considered that ads for e-cigarette components and accessories fall outside the law and are “unlikely to be prohibited.”⁴⁷ While e-cigarette components and non-nicotine e-cigarettes may be advertised, the cross-promotion or indirect promotion of nicotine e-cigarettes and products is not permitted. CAP and the Broadcast Committee of Advertising Practice (BCAP) have stated that

any of the following are likely to be in breach of the prohibition on indirect promotion:

- a brand or range name under which a nicotine e-cigarette is sold. That name could be featured on non-nicotine products or other products but is strongly associated with a nicotine product.
- an identifiable nicotine e-cigarette
- a strapline, celebrity, licensed character or branding which is synonymous with a nicotine-product

⁴¹ Communications Act 2003, c. 21, Part 4A & sched. 11A, <https://perma.cc/FGS6-GJUL>. See also Tobacco and Related Products Regulations 2016, *supra* note 14, ¶ 42; House of Commons Library, *Advertising: Vaping and E-cigarettes*, *supra* note 7, at 32.

⁴² *Advice Online: Electronic Cigarettes: Media Prohibitions*, Advertising Standards Authority (ASA) & CAP (Dec. 14, 2018), <https://perma.cc/QE3V-YVLM>.

⁴³ Tobacco and Related Products Regulations 2016, *supra* note 14, ¶ 42.

⁴⁴ House of Commons Library, *The Regulation of E-Cigarettes*, *supra* note 29, ¶ 3.4. See also *BCAP Code: 10 Prohibited Categories*, ASA & BCAP, <https://perma.cc/7TNF-46QE>; *The CAP Code: 22 Electronic Cigarettes*, ASA & CAP, <https://perma.cc/C3LT-Z3P8> and the House of Commons Library, *Advertising: Vaping and E-cigarettes*, *supra* note 7, at 7.

⁴⁵ *The CAP Code: 22 Electronic Cigarettes*, ASA & CAP, *supra* note 44.

⁴⁶ House of Commons Library, *Advertising: Vaping and E-Cigarettes*, *supra* note 7, at 7.

⁴⁷ CAP, *Electronic Cigarette Advertising Prohibitions: Advertising Guidance (Non-broadcast and Broadcast)* 4 (Feb. 2017), <https://perma.cc/LK9F-SB5V>.

- a direct response mechanic relating to a nicotine e-cigarette. In practice this means that banner ads, for example, which link directly to pages or sites where nicotine products can be bought, are unlikely to be acceptable.⁴⁸

The ASA has issued several rulings relating to e-cigarettes. A number of advertisements were declared to breach industry standards as they used unpermitted media and featured images of people who appeared to be under the age of twenty-five.⁴⁹

Any e-cigarettes licensed as a medicinal product must comply with different rules relating to these types of products.⁵⁰ The government has issued a direction to UK communications regulator Ofcom “clarifying that under the current code on television and radio advertising it is permissible for public health campaigns to promote the generic use of e-cigarettes for quitting smoking.”⁵¹

F. Aftermarket Safety Measures

Producers of e-cigarettes and refills are required to both establish and maintain a system of collecting information about any suspected adverse effects of their products on human health.⁵² They are also under a duty to immediately act if they consider, or have reason to believe, that one of their products that is intended to be supplied, or has been supplied, does not comply with the regulations or is not safe or of good quality. In such situations, the producer must immediately take action to ensure the product complies with the regulations, withdrawing or recalling the product. The producer must also inform the Secretary of State, providing the details of the risk to human health and safety, any corrective action that it has taken, and the results of this action.⁵³

The Secretary of State is also provided with the authority to prohibit the supply of an e-cigarette or refill product or require the supplier to recall the product if he or she has reasonable grounds to believe that the e-cigarette or refill product could present a serious risk to human health.

Adverse effects that are suspected from the use of an e-cigarette may also be reported to the MHRA using the yellow card system, which is a means through which incidents or problems involving medicines, medical devices, and e-cigarettes may be reported and recorded.⁵⁴ The

⁴⁸ Id. at 8.

⁴⁹ *ASA Ruling on British American Tobacco UK Ltd.*, ASA (Dec. 18, 2019), <https://perma.cc/KVL3-TVK3>.

⁵⁰ *CAP Code: 12 Medicines, Medical Devices, Health-Related Products and Beauty Products*, ASA & CAP, https://www.asa.org.uk/type/non_broadcast/code_section/12.html.

⁵¹ Department of Health & Social Care, *The Government Response to the Science and Technology Committee's Seventh Report of the Session 2017-19 on E-Cigarettes* (Dec. 2018) Cm 9738, <https://perma.cc/8T93-WXD3>.

⁵² *Electronic Cigarettes etc. (Fees) Regulations 2016*, SI 2016/521, ¶ 39.

⁵³ Id.

⁵⁴ *Report a Problem with a Medicine or Medical Device*, Gov.uk, <https://perma.cc/2V4S-V56F>; *About Yellow Card*, Yellow Card (2020), <https://yellowcard.mhra.gov.uk/the-yellow-card-scheme/>. As noted on the Yellow Card website, the Yellow Card system

... collects information on suspected problems or incidents involving

1. side effects (also known as adverse drug reactions or ADRs)
2. medical device adverse incidents

MHRA received thirty-seven reports through this system with suspected adverse reactions to e-cigarettes between January 1, 2015, and October 20, 2017.⁵⁵

G. Age Restrictions on the Sale and Use of E-Cigarettes

E-cigarettes and refill products may not be sold to children under the age of 18, and it is an offense, punishable with a fine, to purchase these items on behalf of a child under the age of 18.⁵⁶ The law provides exemptions for prescription and other authorized medicinal products.

While there have been concerns about children using e-cigarettes, the numbers of children using these devices has been consistently reported as low.⁵⁷ The Royal College of Surgeons has stated,

[o]verall the evidence suggests that despite more young people experimenting with e-cigarettes, and an increasing proportion using e-cigarettes before tobacco cigarettes, the overall trend in tobacco use over time is downwards. However, we cannot be complacent – we should remain extremely vigilant, monitor the situation diligently and should increase our efforts to prevent children from taking up smoking.⁵⁸

A study commissioned by Public Health England also found that smoking among young people had not been “renormalised . . . in the period when [e-cigarettes] were becoming popular and were relatively unregulated,”⁵⁹ and that the use of e-cigarettes was not “undermining the long-term decline in cigarette smoking in England and Wales among young people, despite some vaping experimentation among never smokers.”⁶⁰ Public Health England noted that trends in the use of e-cigarettes should continue to be monitored,

particularly in the light of concerns in North America about youth smoking and vaping. Surveillance is needed on purchase sources of [e-cigarettes] by young people More

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3. defective medicines (those that are not of an acceptable quality)
 4. counterfeit or fake medicines or medical devices
 5. safety concerns for e-cigarettes or their refill containers (e-liquids).

⁵⁵ Public Health England, *supra* note 4, at 152.

⁵⁶ Children and Families Act 2014, c. 6, §§ 91-92, <https://perma.cc/N5AB-KDVJ>; Nicotine Inhaling Products (Age of Sale and Proxy Purchasing) Regulations 2015, SI 2015/895, ¶ 3, <https://perma.cc/2VMS-FUX6>. Similar legislation exists in Scotland and Northern Ireland: Health (Tobacco, Nicotine etc. and Care) (Scotland) Act 2016, ASP 14, <https://perma.cc/6U34-JQCM>; Health (Miscellaneous Provisions) Act (Northern Ireland) 2016, c. 26, <https://perma.cc/6XMS-BBYZ>.

⁵⁷ British Medical Association (BMA), *E-Cigarettes: Balancing Risks and Opportunities* (2017) ¶ 1.1 & ¶ 2.2, <https://perma.cc/TCA5-HEKN>.

⁵⁸ RCP *Advice on Vaping Following Reported Cases of Deaths and Lung Disease in the US*, Royal College of Physicians (RCP) (Oct. 25, 2019), <https://perma.cc/Y6PK-5MWY>.

⁵⁹ Public Health England, *Vaping in England: An Evidence Update February 2019* ¶ 44 (Feb. 2019), <https://perma.cc/TPX3-LE7F>.

⁶⁰ Mathur & Dempsey, *supra* note 28. See also Public Health England, *supra* note 4.

research is also needed on how young people move from [e-cigarettes] to smoking and vice versa.⁶¹

H. Disposal of E-Cigarettes

E-cigarette filters and canisters should be disposed of with the user's regular trash. The electrical part of e-cigarettes and batteries of these devices can be recycled.⁶²

III. Criticisms of the Regulation of E-cigarettes

The limits on the amount of nicotine in e-cigarettes has been criticized by a government committee, which found that it could discourage heavy smokers from using e-cigarettes instead of traditional cigarettes due to the effort required to get the nicotine they need. The government committee also noted that the restriction on the size of the tank of the e-cigarette "does not appear to be founded on scientific evidence, and should therefore urgently be reviewed."⁶³ The House of Lords also criticized the regulation of e-cigarettes, expressing concern that it was "stifling an exciting innovation that is saving lives."⁶⁴

In defense of regulation, the government stated

[t]he intention of the regulations is to make vaping safer and less variable than it currently is. The intention of the directive is to make it a better product and to cause more people to use it. If it does indeed result in smokers not giving up smoking, then it will have achieved the reverse of what the Government wish to do. The Government's view is clear: we wish people to quit altogether but if, as a way of quitting, they can give up smoking and take up vaping, that is something that we wish to encourage.⁶⁵

IV. Government Policy

In 2015, Public Health England published a report stating that a consensus had been agreed between it and twelve other organizations that e-cigarettes provided an opportunity to help smokers stop using traditional cigarettes and that this should be combined with other services to help stop smoking.⁶⁶ The government has stated that "[t]he context for policy on e-cigarettes is the continuing tobacco epidemic"⁶⁷ and that it

⁶¹ *Research and Analysis, Vaping in England: Evidence Update Summary February 2019*, Public Health England ¶ 4.2 (Feb. 27, 2019), <https://perma.cc/879H-BFJB>.

⁶² *Recycling Collection – What Goes in My Bin*, Elmbridge Borough Council, <https://perma.cc/BG77-M5QX>.

⁶³ House of Commons Science and Technology Committee, *supra* note 5, at 4.

⁶⁴ 771 Parl. Deb. HL (5th ser.) 2016 64GC, <https://perma.cc/V88E-3WT6>.

⁶⁵ 771 Parl. Deb. HL (5th ser.) 2016 77GC, <https://perma.cc/Y9G4-DSG2>.

⁶⁶ Public Health England, *E-Cigarettes: An Evidence Update a Report Commissioned by Public Health England* (2015), <https://perma.cc/KZ8J-W88A>.

⁶⁷ Department of Health & Social Care, *supra* note 52, at 1.

believes in proportionate regulation of e-cigarettes, recognising that they are not risk-free . . . but the evidence is increasingly clear that e-cigarettes are significantly less harmful to health than smoking tobacco, and can help smokers to quit, particularly when combined with stop smoking service.⁶⁸

The current Tobacco Control Plan provides that the government will continue to

- monitor the impact of the regulations on e-cigarettes through Public Health’s annual e-cigarette publications;
- provide evidence-based and accurate information to smokers and the public about “the relative harm of nicotine, e-cigarettes, other nicotine delivery systems and smoked tobacco, to enable informed decision making”;⁶⁹
- give evidence-based guidance to health professionals responsible for supporting smokers that want to use e-cigarettes to help them stop smoking traditional cigarettes; and
- review the route for the regulation of e-cigarettes as a medicinal device to potentially provide them for prescription through the NHS.⁷⁰

Public Health England has committed to include information about the “relative safety” of e-cigarettes within their quit smoking campaigns.⁷¹ The MHRA is responsible for ensuring “that the route to medicinal regulation for e-cigarette products is fit for purpose so that a range of safe and effective products can potentially be made available for NHS prescription.”⁷²

V. National Studies on the Use of E-Cigarettes for Smoking Cessation

Several leading UK health organizations and government committees, including the Royal College of General Practitioners, the Royal College of Physicians, the British Medical Association (BMA), the Committee on Science and Technology, and Cancer Research UK, have agreed that e-cigarettes cause less harm than traditional smoking.⁷³ The Committee on Science and Technology found that as e-cigarettes do not contain the most dangerous components of traditional cigarettes, they “present an opportunity to significantly accelerate already declining smoking rates.”⁷⁴

⁶⁸ Id.

⁶⁹ Department of Health & Social Care, *Tobacco Control Plan Delivery Plan 2017-2022* ¶ 2.3 (June 2018), <https://perma.cc/22FZ-5HGL>.

⁷⁰ Id.

⁷¹ Public Health England, *supra* note 4, Table 5.

⁷² Id.

⁷³ Royal College of General Practitioners, *RCGP Position Statement on the Use of Electronic Nicotine Vapour Products (E-Cigarettes)* (last updated Sept. 6, 2017), <https://perma.cc/ES62-9NDV>.

⁷⁴ House of Commons Science and Technology Committee, *supra* note 5, at 3.

The Royal College of Physicians has noted a positive link between the use of e-cigarettes and people quitting traditional cigarettes,⁷⁵ with 54% of users of e-cigarettes having given up traditional smoking, 40% of users of e-cigarettes using both e-cigarettes and traditional cigarettes, and only 6% of e-cigarette users never having smoked traditional cigarettes.⁷⁶ The Office of National Statistics reported that 52.8% of people using e-cigarettes in 2018 were doing so to help them stop smoking⁷⁷ and a government committee investigating e-cigarettes reported in 2018 that 2.9 million people across the UK were using e-cigarettes to stop smoking and “tens of thousands” had quit smoking successfully using e-cigarettes.⁷⁸

The Royal College of General Practitioners has recommended that Primary Care Clinicians should, while “[u]sing their clinical judgement on an individual patient basis . . . promote [e-cigarette] use as a means to stopping.”⁷⁹ The UK’s Royal College of Physicians published a report in 2016, which concluded that e-cigarette use “has been beneficial to UK public health”⁸⁰ and that smokers should be encouraged to use them as they are considered to be safer than smoking.

While the government position on e-cigarettes is that they are less harmful than cigarettes and that the presence of concentrated nicotine does “not pose a risk of nicotine poisoning if used as intended,”⁸¹ there have been reports of e-cigarettes resulting in toxic exposure.⁸² Fires have also been attributed to e-cigarettes and it is thought these are a result of a malfunction in the lithium-ion battery that powers the devices. There have also been reports of devices exploding, which also have been attributed to malfunctioning batteries.⁸³

No deaths or instances of lung disease connected to e-cigarettes have been reported. The Royal College of Surgeons has noted that regular users of e-cigarettes continue to be predominantly current or ex-smokers:⁸⁴

Promotion of the use of non-tobacco nicotine, including e-cigarettes, as widely as possible as a substitute for smoking, in the context of a regulatory framework designed to discourage use among youth and never-smokers, is therefore likely to generate significant health gains in the UK.⁸⁵

⁷⁵ *E-Cigarettes May Help over 50,000 Smokers to Quit in England Each Year*, University College London, Oct. 17, 2019, <https://perma.cc/GG6Y-28QW>.

⁷⁶ *RCP Advice on Vaping Following Reported Cases of Deaths and Lung Disease in the US*, RCP, *supra* note 59.

⁷⁷ *Adult Smoking in the UK: 2018*, Office for National Statistics (July 2, 2019), <https://perma.cc/U7BK-J8CQ>.

⁷⁸ House of Commons Science and Technology Committee, *supra* note 5, at 3.

⁷⁹ *RCGP Position Statement on the Use of Electronic Nicotine Vapour Products (E-Cigarettes)*, *supra* note 74.

⁸⁰ RCP, *Nicotine Without Smoke: Tobacco Harm Reduction* 188 (Apr. 2016), <https://perma.cc/X674-UFV5>

⁸¹ Public Health England, *E-Cigarettes: An Evidence Update*, *supra* note 67, at 67.

⁸² *Id.* at 63.

⁸³ *Id.* at 84.

⁸⁴ Public Health England, *Vaping in England: An Evidence Update February 2019*, *supra* note 60; RCP Advice on Vaping Following Reported Cases of Deaths and Lung Disease in the US, RCP, *supra* note 59.

⁸⁵ RCP, *Nicotine Without Smoke: Tobacco Harm Reduction*, *supra* note 81, at 131.

While expressing optimism over the potential of the use of e-cigarettes to reduce rates of traditional smoking, the BMA issued a more cautious statement in 2017, noting,

[t]here are clear potential benefits to their use in reducing the substantial harms associated with smoking, and a growing consensus that they are significantly less harmful than tobacco use. With appropriate regulation, e-cigarettes have the potential to make an important contribution towards the BMA's ambition to achieve a tobacco-free society, leading to substantially reduced mortality from tobacco-related disease.

It is important, however, that in realising these benefits, any potential risks associated with e-cigarette use are minimised. These include preventing uptake and use by children and young people; ensuring their use does not promote smoking; and limiting health risks to users and bystanders. A regulatory framework for e-cigarettes should seek to minimise these risks while maximising their potential to reduce the health burden associated with smoking.⁸⁶

In its 2018 *E-Cigarettes* report, the Committee on Science and Technology also expressed concern over the potential of long-term health issues of e-cigarette use due to the recent introduction of these products, but noted,

[u]ltimately, however, any judgement of risks has to take account of the risk of not adopting e-cigarettes—that is, continuing to smoke conventional cigarettes, which are substantially more harmful. Existing smokers should be encouraged to give up, but if that is not possible they should switch to e-cigarettes as a considerably less harmful alternative.⁸⁷

The Committee recommended that the government should continue with its annual evidence review on e-cigarettes and recommended that it consider introducing licensed e-cigarettes to enable medical professionals to discuss them as a treatment to help smokers stop smoking.⁸⁸ The report concluded that

[e]-cigarettes present an opportunity to significantly accelerate already declining smoking rates, and thereby tackle one of the largest causes of death in the UK today. They are substantially less harmful—by around 95%—than conventional cigarettes.⁸⁹

It recommended as follows:

There should be a shift to a more risk-proportionate regulatory environment; where regulations, advertising rules and tax duties reflect the evidence of the relative harms of the various e-cigarette and tobacco products available. While an evidence-based approach is important in its own right, it also would help bring forward the behaviours that we want

⁸⁶ BMA, *E-Cigarettes: Balancing Risks and Opportunities*, supra note 58, at 2.

⁸⁷ House of Commons Science and Technology Committee, supra note 5, at 3.

⁸⁸ Id.

⁸⁹ Id.

as a society—less smoking, and greater use and acceptance of e-cigarettes and novel tobacco products if that serves to reduce smoking rates.⁹⁰

The government responded to the report, noting “[t]he Government believes in proportionate regulation of ecigarettes, recognising that they are not risk-free.”⁹¹

VI. Royal College of Surgeons Statement Regarding E-Cigarette Deaths in the US

Following an increase in health incidents in the US connected to e-cigarettes, the Royal College of Surgeons issued additional advice, noting that the UK has a vastly different situation with regard to both the regulatory framework and types of e-cigarette products available to consumers, in that the UK regulates e-cigarettes containing nicotine through its medicines regulator and does not allow the inclusion of cannabis or other ingredients that have been linked to the US vaping-related deaths.⁹²

The Royal College of Physicians stated that it still considers the use of e-cigarettes in the UK is “far less harmful than smoking” and reiterated that the health hazards caused from the long-term use of e-cigarettes is “unlikely to exceed 5% of the harm from smoking tobacco.”⁹³ It continues to provide the same advice that while the use of e-cigarettes is not risk free, it is less harmful than the use of traditional cigarettes, and encourages people who had switched to e-cigarettes as an aid to stop smoking to continue to use them rather than return to regular smoking.⁹⁴ It warned consumers to only purchase e-cigarettes from mainstream suppliers, who can confirm their products are regulated.⁹⁵

⁹⁰ Id. at 4.

⁹¹ Department of Health & Social Care, *supra* note 52.

⁹² *RCP Advice on Vaping Following Reported Cases of Deaths and Lung Disease in the US*, RCP, *supra* note 59.

⁹³ Id.

⁹⁴ Id.

⁹⁵ Id.

European Union

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SUMMARY The Tobacco Products Directive of the European Union aims to harmonize, among other things, some aspects relating to nicotine-containing e-cigarettes and their refill containers. Other aspects like the introduction of an age limit, smoke-free environments, rules on flavors, or the regulation of nicotine-free e-cigarettes are left to the Member States. There are various rules in place to guarantee the safety of e-cigarettes, among them limits on nicotine concentrations, prohibitions on certain additives, technical standards for product design, notification and reporting requirements for manufacturers and importers, and monitoring requirements for Member States.

In general, advertisements or promotions of e-cigarettes and their refill containers in online media, the press and other printed publications, on the radio, or on television are prohibited.

In 2016, the European Commission published a report on the potential risks to public health associated with the use of refillable e-cigarettes. The report identified poisoning from accidentally ingesting e-liquids that contain nicotine, skin reactions related to dermal contact with e-liquids, home blending/customization of e-liquids, and using untested combinations of e-liquid and device or hardware customization as potential risks.

I. Introduction

In 2014, the electronic cigarettes (e-cigarettes) market in the European Union (EU) was estimated to be worth €2.16 billion (about US\$2.41 billion), with the biggest shares in the United Kingdom (UK), Italy, Poland, and France. The most popular types of e-cigarettes were generally either rechargeable with disposable cartridges or refillable e-cigarettes.¹ A 2017 Eurobarometer survey found that, in general, 15% of respondents in the EU overall have tried e-cigarettes, an increase of 3% since the survey was last conducted in 2014.² There is not much variation between the individual Member States.³ However, the younger the respondents were, the higher was the number of people who have tried e-cigarettes.⁴

¹ EUREST Consortium, *Study on the Identification of Potential Risks to Public Health Associated with the Use of Refillable Electronic Cigarettes and Development of Technical Specifications for Refill Mechanisms: Final Report* (May 2016), at 8, <https://perma.cc/USX8-BUEF>.

² European Commission, *Special Eurobarometer 458, Report: Attitudes of Europeans Towards Tobacco and Electronic Cigarettes 6* (May 2017), <https://perma.cc/88TX-JKD3>.

³ *Id.* at 104.

⁴ *Id.* at 108.

The Tobacco Products Directive of the EU was adopted to “facilitate the smooth functioning of the internal market for tobacco and related products, taking as a base a high level of protection of human health, especially for young people . . .”⁵ It aims to harmonize, among other things, some aspects relating to nicotine-containing e-cigarettes and their refill containers. Nicotine-free e-cigarettes are not covered. Directives must be transposed into national law by the Member States. They are only binding with regard to the goal that the EU countries must achieve. The means are up to the individual Member States.⁶ The deadline to transpose the directive into Member State law was May 20, 2016.⁷

II. Legal Framework

The Tobacco Products Directive defines e-cigarettes as products that

can be used for consumption of nicotine-containing vapour via a mouth piece, or any component of that product, including a cartridge, a tank and the device without cartridge or tank. Electronic cigarettes can be disposable or refillable by means of a refill container and a tank, or rechargeable with single use cartridges.⁸

The directive only establishes rules for the placing on the market and the labeling of e-cigarettes and their refill containers.⁹ Other aspects like the introduction of an age limit, smoke-free environments, or rules on flavors are left to the Member States.¹⁰ Member States that choose to prohibit flavored products must notify the European Commission.¹¹

A. Nicotine Concentrations and Other Ingredients

Member States must ensure that nicotine-containing liquids do not contain nicotine in excess of 20 mg/mL and that nicotine-containing liquids are only placed on the market in dedicated refill containers not exceeding a volume of 10 mL in disposable e-cigarettes or in single-use cartridges. Cartridges or tanks must not contain a volume of more than 2 mL.¹² The nicotine in the e-cigarettes must be delivered at consistent levels.¹³ The maximum nicotine concentration

⁵ Tobacco Products Directive, art. 1, 2014 O.J. (L 127) 1, <https://perma.cc/HZ22-QSSX>.

⁶ Consolidated Version of the Treaty on the Functioning of the European Union, art. 288, para. 3, 2016 O.J. (C 202) 47, <https://perma.cc/432S-DKZ8>.

⁷ Tobacco Products Directive, art. 29, para. 1.

⁸ Id. art. 2, no. 16.

⁹ Id. art. 1(f).

¹⁰ Id. recitals 47, 48.

¹¹ Id. recital 47.

¹² Id. art. 20, para. 3 (a), (b).

¹³ Id. art. 20, para. 3 (f).

requirement of 20 mg/mL was chosen because it is comparable to the one derived from smoking a conventional cigarette.¹⁴

Furthermore, nicotine-containing liquids may not contain certain prohibited additives, such as vitamins, caffeine, or carcinogenic, mutagenic, or reprotoxic properties (CMR properties) in unburnt form.¹⁵ To manufacture them, only high-purity ingredients may be used.¹⁶ In general, with the exception of nicotine itself, only ingredients that do not pose a risk to human health in heated or unheated form may be used.¹⁷

B. Product Design and Safety Requirements

E-cigarettes and their containers must be child- and tamper-proof, be secured against breakage and leakage, and have a mechanism that ensures refilling without leakage.¹⁸ The European Commission has adopted an implementing decision that lays down the technical standards for the refill mechanism of e-cigarettes to minimize the risk of leakage.¹⁹

The unit packet and outside packaging must contain a list of ingredients and a health warning.²⁰ Furthermore, a leaflet with information on use and storage, contraindications, warnings for specific risk groups, possible adverse effects, addictiveness and toxicity, and contact details of the manufacturer or importer must be included.²¹

Manufacturers and importers are subject to notification requirements before a product can be placed on the market.²² An electronic notification must be submitted to the Member State in question six months before the intended placement on the market. The notification must contain certain information that will allow the Member State authorities to determine whether the e-cigarette complies with the requirements of the Tobacco Products Directive and is safe to use, among them a list of ingredients and emissions, toxicological data, nicotine doses and uptake, and a description of the components of the product.²³

Furthermore, manufacturers, importers, and distributors must collect information on suspected adverse effects on human health of their products and take immediate corrective action if they believe their products to be unsafe or not of good quality.²⁴ They must also inform the competent

¹⁴ Id. recital 38.

¹⁵ Id. art. 20, para. 3(c) in conjunction with art. 7, para. 6.

¹⁶ Id. art. 20, para. 3(d).

¹⁷ Id. art. 20 para. 3(e).

¹⁸ Id. art. 20, para. 3(g).

¹⁹ Commission Implementing Decision 2016/58, 2016 O.J. (L101) 15, <https://perma.cc/P97H-A3QS>.

²⁰ Tobacco Products Directive, art. 20, para. 4(b).

²¹ Id. art. 20, para. 4(a).

²² Id. art. 20, para. 2.

²³ Id.

²⁴ Id. art. 20, para. 9.

authorities in the Member State of the risks and the actions taken.²⁵ Member States may also take provisional measures if they believe a product constitutes a serious risk to human health, even though it complies with the requirements of the Tobacco Products Directive. It must inform the European Commission of such provisional measures, which in turn will determine whether they were justified and what follow-up action is needed.²⁶ If three Member States or more take such measures on justified grounds and prohibit a certain product, the European Commission is authorized to adopt delegated acts to extend that prohibition to all Member States.²⁷

C. Advertisements

The EU has adopted a restrictive approach to cross-border advertising of e-cigarettes and their containers, because they are seen as a “gateway to nicotine addiction and ultimately traditional tobacco consumption, as they mimic and normalize the action of smoking.”²⁸ Domestic advertising is not covered by EU law.²⁹ In general, advertisements or promotions of e-cigarettes and their refill containers in online media, the press and other printed publications, on the radio, or on television are prohibited.³⁰ Exceptions are publications for trade professionals or those that are printed and published in third countries outside of the EU.³¹

D. Regulation of Environmental Waste

There is no specific legislation in the EU that addresses environmental waste from the disposal, storage, and recycling of e-cigarettes. However, the general legislation on environmental waste is applicable. Directive 2006/66/EC on spent batteries and accumulators obliges Member States to ensure that by September 2016, the level of collection of portable batteries is 45%.³² In addition, Directive 2012/19/EU requires Member States to achieve a collection level of 65% of waste of electric and electronic equipment from 2019 and to take appropriate measures to minimize the disposal of such waste as unsorted municipal waste.³³

E. Health Risks

In 2016, the European Commission published a report on the potential risks to public health associated with the use of refillable e-cigarettes as mandated by the Tobacco Products Directive.³⁴ The report identified the following four risks:

²⁵ Id.

²⁶ Id. art. 20, para. 11.

²⁷ Id.

²⁸ Id. recital 43.

²⁹ Id. recital 48.

³⁰ Id. art. 20, para. 5.

³¹ Id. art. 20, para. 5(a).

³² Consolidated Version of Directive 2006/66/EC, 2006 O.J. (L 266) 1, <https://perma.cc/9Z4C-Q9U2>.

³³ Consolidated Version of Directive 2012/19/EU, arts. 5, 7, 2012 O.J. (L 197) 38, <https://perma.cc/23AG-4EBD>.

³⁴ Commission Report, COM(2016) 269 final (May 20, 2016), <https://perma.cc/6KQA-2TF8>.

- Poisoning from accidentally ingesting e-liquids containing nicotine, especially for children;
- Skin reactions related to dermal contact with e-liquids;
- Risks associated with home blending/customization of e-liquids; and
- Risks due to using untested combinations of e-liquid and device or hardware customization.³⁵

In order to minimize these risks, safety and product design requirements as described above are in place. Furthermore, the monitoring obligations of the Member States to identify additional risks might help minimize risks resulting from home blending and customization.³⁶ Manufacturers and importers are encouraged to consider all potential uses of their products by consumers when they notify the Member States.³⁷ The report recommends further study and monitoring of e-cigarettes and their safety and national educational campaigns to raise awareness of risks associated with e-cigarettes.³⁸

F. Statistics

As mentioned, a 2017 Eurobarometer survey found that, in general, 15% of respondents in the EU overall have tried e-cigarettes, with limited variation among the Member States.³⁹ The highest rate was found in the UK.⁴⁰ Young people and people 25 to 39 years of age are more likely to have tried e-cigarettes, by 25% and 21%, respectively. In comparison, only 6% of respondents older than 55 years of age have tried them.⁴¹ Smokers, in particular occasional smokers, are more likely than nonsmokers to have tried e-cigarettes.⁴²

Among those who use e-cigarettes, two-thirds reported daily use.⁴³ The most popular flavor is fruit (49%), followed by tobacco (36%), menthol or mint (22%), and candy (18%).⁴⁴ Women preferred the tobacco flavor, whereas men leaned toward the fruit flavor.⁴⁵

Sixty-one percent of respondents reported that they started vaping e-cigarettes as a way to stop or reduce tobacco consumption.⁴⁶ However, only 14% said that it actually helped them stop

³⁵ Id. at 3.

³⁶ Id. at 6.

³⁷ Id. at 7.

³⁸ Id.

³⁹ European Commission, *supra* note 2, at 103-04.

⁴⁰ Id. at 104.

⁴¹ Id. at 108.

⁴² Id.

⁴³ Id. at 110.

⁴⁴ Id. at 114.

⁴⁵ Id. at 115.

⁴⁶ Id. at 118.

smoking entirely.⁴⁷ Other reasons to take up e-cigarettes were that they are seen as less harmful and that the costs are lower. Social factors and available flavors were relatively unimportant as reasons for starting using e-cigarettes, according to the survey.⁴⁸

Over half of respondents overall indicated they thought e-cigarettes are harmful to users' health, however, the answer to this question varied significantly among the Member States.⁴⁹ At least 80% of respondents in Latvia, Lithuania, Finland, and the Netherlands gave that answer, whereas only 34% of respondents in Italy agreed.⁵⁰ Younger people were more likely to agree with the statement.⁵¹ Sixty-three percent of respondents are in favor of a ban on e-cigarettes in places where smoking is banned.⁵²

⁴⁷ Id. at 121.

⁴⁸ Id. at 118.

⁴⁹ Id. at 124 et seq.

⁵⁰ Id. at 125.

⁵¹ Id. at 127.

⁵² Id. at 134.

France

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SUMMARY French legislation on e-cigarettes is largely based on European Union law, which was transposed into the French Public Health Code. The maximum allowable nicotine concentration of vaping products is 20 mg/mL, and French law requires that only “highly pure ingredients” be used. In theory, a vaping product may contain more than 20 mg/mL of nicotine if it is authorized for medical use, but no vaping product has yet been authorized by the French pharmaceutical authorities. Additionally, certain additives are prohibited in vaping products. E-cigarettes must also have a safety mechanism to prevent children from using them, must be leak-proof and shatterproof, and may not hold more than 2 mL of vaping liquid at a time.

Only adults may buy vaping products, and they may not be packaged or designed in a way that would attract the attention or curiosity of children. Furthermore, the use of e-cigarettes is banned in schools and other places meant for the use, education, or housing of minors. Vaping is also forbidden in certain enclosed public spaces, such as on public transportation. Advertising for vaping products is prohibited with some limited exceptions, and there are limits on how they may be displayed and packaged.

E-cigarette manufacturers and importers are subject to certain reporting requirements. They must submit certain information to the French government agency for food, environmental and occupational health, and safety, and must maintain a data collection system for all presumed undesirable effects of their products on human health. Should a manufacturer or importer of vaping products have reason to believe that their products present a grave danger to human health, they must immediately inform the Ministry of Health.

The French national public health agency estimates that e-cigarettes may have helped up to 700,000 people to stop smoking tobacco in France over the past decade. At the same time, the national public health agency has recognized that the health effects of e-cigarettes warrant further study. Following the alarm raised by the US Centers for Disease Control and Prevention in October 2019 regarding the possible risks of e-cigarettes, French health authorities have set up a reporting mechanism to monitor for severe vaping-related illnesses in France.

I. Introduction

French legislation on e-cigarettes is largely based on European Union law—specifically the EU Tobacco Products Directive of 2014.¹ This Directive was transposed into French law in 2016 by Ordonnance n° 2016-623 du 19 mai 2016 portant transposition de la directive 2014/40/UE sur la

¹ Tobacco Products Directive, art. 1, 2014 O.J. (L 127) 1, <https://perma.cc/HZ22-QSSX>.

fabrication, la présentation et la vente des produits du tabac et des produits connexes (Ordinance No. 2016-623 of 19 May 2016 to Transpose Directive 2014/40/UE concerning the manufacture, presentation, and sale of tobacco and related products).² Most legislative and regulatory provisions concerning e-cigarettes have been incorporated into the Code de la santé publique (Public Health Code).³

II. Regulation of Nicotine and Other Chemical Ingredients

A. Caps on Nicotine Concentration

The maximum allowable nicotine concentration of vaping products is 20 milligrams (mg) per milliliter (mL).⁴ Under normal conditions of use, vaping products must dispense nicotine in a constant manner.⁵

B. Other Chemical Ingredients

Disposable e-cigarettes, refill bottles, and single-use cartridges that contain nicotine must only contain “highly pure ingredients, except for trace elements that are technically inevitable in the manufacturing process.”⁶ Furthermore, the following additives are prohibited in disposable e-cigarettes, refill bottles, and single-use cartridges that contain nicotine:⁷

- Additives that could cause consumers to believe that the product is beneficial to health, or that the health risks are reduced
- Additives and stimulants “associated with energy and vitality”
- Additives that impart a color to the emissions
- Additives that enhance the inhalation or absorption of nicotine
- Additives that, without combustion, are carcinogenic, mutagenic, or toxic for human reproduction

Furthermore, vaping products that contain nicotine may not contain any other ingredient that may be dangerous for human health.⁸

² Ordonnance n° 2016-623 du 19 mai 2016 portant transposition de la directive 2014/40/UE sur la fabrication, la présentation et la vente des produits du tabac et des produits connexes, May 19, 2016, <https://perma.cc/A4LM-656D>.

³ Code de la santé publique, arts. L3513-1 to L3513-19, D3513-1 to D3513-10, <https://perma.cc/2RNQ-9KQV>.

⁴ Arrêté du 19 mai 2016 relatif aux produits du vapotage contenant de la nicotine, art. 1, May 19, 2016, <https://perma.cc/6BQ9-T7BA>.

⁵ Code de la santé publique, art. L3513-8.

⁶ Id. art. L3513-7.

⁷ Id.

⁸ Id. art. L3513-8.

III. Product Design and Safety Requirements

Vaping products must have a safety mechanism to prevent children from using them.⁹ Furthermore, e-cigarettes and refill bottles must be leak-proof and shatterproof.¹⁰ Reservoirs and pre-filled cartridges may not hold more than 2 mL, and the volume of refill bottles may not be more than 10 mL.¹¹

In addition to these physical safety features, e-cigarettes and their refills must be labeled according to the European regulation on classification, labeling, and packaging of substances and mixtures.¹² This includes a requirement that these products display a label warning of their danger, have a tactile sign of danger (to warn blind people), and include safety recommendations.¹³ The packaging must also state the average nicotine content of the liquid, the average quantity of nicotine dispensed by each dose, and a list of all the ingredients of the liquid.¹⁴

E-cigarettes are not subject to any specific safety regulations beyond the above-mentioned requirements. However, e-cigarettes are subject to the same safety regulations that apply to all consumer products in France under the Code de la consommation (Consumer Code).¹⁵ Similarly, e-cigarettes are not subject to any specific environmental regulations beyond those that apply to all electric and electronic products in France.¹⁶

IV. Restrictions on Use and Sales

A. Sales to Underage Customers Prohibited

French law prohibits the sale, as well as the provision for free, of e-cigarettes and other vaping products to anyone under the age of 18.¹⁷ The providers of e-cigarettes and vaping products must require their clients to provide proof that they are above the age of 18.¹⁸

⁹ Id. art. L3513-9; Arrêté du 19 mai 2016 relatif aux produits du vapotage contenant de la nicotine, art. 2.

¹⁰ Arrêté du 19 mai 2016 relatif aux produits du vapotage contenant de la nicotine, art. 2.

¹¹ Id.

¹² Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, *Cigarette électronique* 2 (Sept. 2019), <https://perma.cc/WW2Q-4QNJ>; Regulation (EC) No. 1272/2008 of the European Parliament and of the Council, 2008 O.J. (L 353) 1, <https://perma.cc/2FEW-N4GA>.

¹³ Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, *supra* note 12, at 2.

¹⁴ Code de la santé publique, art. L3513-16.

¹⁵ Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, , *supra* note 12, at 3; Code de la consommation, arts. L421-1 to L421-7, <https://perma.cc/6HZU-5M85>.

¹⁶ Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, *supra* note 12, at 3; Code de l'environnement, arts. R543-171-1 to R543-206-4, <https://perma.cc/37UW-NQVG>; E.U. Directive on Waste Electrical and Electronic Equipment, 2012 O.J. (L 197) 38, <https://perma.cc/NJS6-652M>.

¹⁷ Code de la santé publique, art. L3513-5.

¹⁸ Id.

B. Use of E-Cigarettes is Prohibited in Certain Public Spaces

Use of e-cigarettes is prohibited in schools and other establishments meant for the use, education, or housing of minors.¹⁹ Vaping is also prohibited in enclosed public transportation, and in collective work areas that are enclosed and covered.²⁰ Vaping is therefore prohibited in places such as buses, trains, and offices where several people work. Conversely, vaping would be permitted on an open-air train platform, at a bus stop, or in a private office.

V. Advertising

Advertising for vaping products is prohibited.²¹ There are, however, some exceptions. Small posters promoting vaping products may be displayed inside shops that sell those products, as long as they are not visible from outside the shop.²² Additionally, publications and websites published by e-cigarette manufacturers or distributors that are only available to subscribers, or that are only available to professionals of the vaping industry, are allowed to contain advertising for vaping products.²³ Furthermore, the government may exempt certain specialized publications from this prohibition on advertising. Publications and websites from outside the European Union and the European Economic Area are also exempt from this prohibition, except if they are primarily meant for the European market.²⁴

Vaping products may not display, whether on the product itself or on the packaging, anything that may encourage vaping through misleading suggestions regarding the products characteristics, health risks, or emissions.²⁵ A vaping product may not suggest that it is less harmful to health than other vaping products, or that it designed to reduce certain harmful components in its smoke.²⁶ Vaping products may not suggest that they have properties that promote vitality, energy, healthiness, or youthfulness, or that they have natural, organic properties or positive effects on health or lifestyle.²⁷ They may not contain any element that looks like a cosmetic or food product, or that suggests that the product is more easily biodegradable or otherwise environmentally friendly.²⁸ Furthermore, vaping products may not be designed or packaged in such a way as to attract the attention or curiosity of children.²⁹

¹⁹ Id. art. L3513-6.

²⁰ Id.

²¹ Id. art. L3513-6.

²² Id.

²³ Id.

²⁴ Id.

²⁵ Id. art. L3513-18.

²⁶ Id.

²⁷ Id.

²⁸ Id.

²⁹ Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, *supra* note 12, at 3.

Additionally, vaping products may not be promoted through coupons, discounts, free samples, “two-for-one” deals, or other similar offers.³⁰

VI. Reporting Requirements

E-cigarette manufacturers and importers must report certain information to the Agence nationale de sécurité sanitaire de l'alimentation, de l'environnement et du travail (ANSES) (National Agency for Food, Environmental and Occupational Health & Safety).³¹ Six months before putting a vaping product on the market, they must submit a dossier to ANSES that describes the product's composition, components, emissions and toxicology data, and manufacturing process.³² The dossier must also include the identity of the persons responsible for putting the product on the market.³³ If a vaping product contains nicotine, the manufacturers and importers must declare their yearly sales data for that product every year.³⁴ ANSES may request additional information regarding a vaping product's safety, quality, or any undesirable effect.³⁵

Manufacturers and importers of vaping products containing nicotine are also required to maintain a data collection system for all presumed undesirable effects of their products on human health. If any of them has reason to believe that their products are not safe, are not of good quality, or are not legally compliant, they must immediately take the measures necessary to make their product compliant, or to withdraw or recall it.³⁶ If the manufacturer or importer of a vaping product has reason to believe that its product could present a grave danger to human health, it must immediately inform the Ministry of Health and suggest appropriate provisional measures.³⁷

VII. E-Cigarettes for Medical Use

In theory, some e-cigarettes could be considered a medical device if they are sold as a method to quit smoking,³⁸ and if they contain a nicotine concentration that is above the limit for recreational vaping products (20 mg/mL, see above).³⁹ Vaping products marketed for medical use must be authorized by the Agence nationale de sécurité du médicament et des produits de santé

³⁰ Code de la santé publique, art. L3513-18.

³¹ Id. art. L3513-10; Arrêté du 19 mai 2016 relatif aux produits du vapotage contenant de la nicotine, art. 12.

³² Code de la santé publique, art. L3513-10.

³³ Id.

³⁴ Id. art. L3513-11.

³⁵ Id. art. L3513-13.

³⁶ Id.

³⁷ Id. art. L3513-14.

³⁸ Id. art. L5121-2; Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, *supra* note 12, at 1.

³⁹ Arrêté du 19 mai 2016 relatif aux produits du vapotage contenant de la nicotine, art. 1; Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, *supra* note 12, at 1.

(ANSM).⁴⁰ It appears that, as of September 2019, no vaping product had yet been marketed as a medical product in France.⁴¹

VIII. National Studies and Statistics

A. Statistics

France still has a fairly high number of tobacco smokers: according to a 2017 survey by Santé publique France, the French national public health agency, 31.9% of respondents between the ages of 18 and 75 claimed to smoke at least occasionally, and 26.9% smoked regularly.⁴² Nevertheless, these numbers represent a decrease from previous years. Indeed, the number of respondents who claimed to smoke at least occasionally was 3.2 percentage points lower in 2017 than in 2016, and the number who claimed to smoke regularly was 2.5 percentage points lower.⁴³ The usage of e-cigarettes appears to have remained stable, however. The same study found that while 41.7% of respondents between the ages of 18 and 75 had at least tried e-cigarettes, only about 3.8% actually vaped, and only 2.7% vaped daily.⁴⁴ These numbers were found to be similar to the previous year's survey.

The French national public health agency found that the number of daily tobacco smokers among e-cigarette users appears to have diminished steadily between 2014 and 2017, from 64.5% in 2014, to 48% in 2016, to 39.7% in 2017.⁴⁵ Concurrently, the proportion of former tobacco smokers among e-cigarette users appears to have risen over the same period, from 23.5% in 2014, to 41.2% in 2016, to 49.5% in 2017.⁴⁶ The study infers that since e-cigarettes started being sold in France around 2010, they may have helped (either by themselves or in conjunction with other weaning methods) an estimated 700,000 people to stop smoking tobacco.⁴⁷

B. Health Studies

The French public health agency has said that further study of the health effects of e-cigarettes is warranted:

⁴⁰ *Informations réglementaires relatives à la cigarette électronique*, ANSM (July 19, 2016), <https://perma.cc/EV8P-SVZT>.

⁴¹ Direction Générale de la Concurrence, de la Consommation, et de la Répression des Fraudes, *supra* note 12, at 1.

⁴² Anne Pasquereau et al., Santé publique France, *La consommation de tabac en France : Premiers résultats du baromètre santé 2017*, Bulletin épidémiologique hebdomadaire, No. 14-15, May 29, 2018, at 265, <https://perma.cc/G4W8-Y88B>.

⁴³ *Id.*

⁴⁴ *Id.* at 269.

⁴⁵ Anne Pasquereau et al., Santé publique France, *Baromètre de santé publique 2017 : usage de la cigarette électronique, tabagisme et opinions des 18-75 ans*, June 2019, at 5, <https://perma.cc/7CGG-4LZE>.

⁴⁶ *Id.*

⁴⁷ *Id.*

[e]-cigarettes remain controversial because their benefits/risks ratio is still not well known. The harmfulness of the emissions generated by electronic cigarettes in the long term is under question, as is their efficacy in helping to wean [smokers] from tobacco, and the scientific literature does not yet permit [us] to come to an indisputable consensus.⁴⁸

In October 2019, following the alarm raised by the US Centers for Disease Control and Prevention regarding the possible risks of e-cigarettes, French health authorities set up a reporting mechanism to monitor for severe vaping-related illnesses in France.⁴⁹ The purpose of this program is to detect severe cases of lung disease related to vaping, similar to those that have been observed in the US, and to identify the epidemiological, clinical, and toxicological characteristics of these cases, should they occur.⁵⁰ This program requires doctors who diagnose cases that fall within certain defined parameters to inform the national public health agency, Santé publique France, within 24 hours.⁵¹ This mechanism may yield more data on the health risks of e-cigarettes.

⁴⁸ Id. at 2.

⁴⁹ *Dispositif de signalement des pneumopathies sévères liées au vapotage*, Santé Publique France (Oct. 9, 2019), <https://perma.cc/KS7U-YAEB>.

⁵⁰ Id.

⁵¹ Id.

Germany

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SUMMARY The regulation of e-cigarettes in Germany is determined both by European Union (EU) legislation and domestic German law. In 2016, Germany amended the Youth Protection Act to prohibit the use and sale of all e-cigarettes and e-shishas to people under eighteen years of age. This prohibition includes nicotine-free products.

Nicotine-containing e-cigarettes and refill containers may not contain nicotine in excess of 20 mg/mL or 10 mg respectively. E-cigarettes and their containers must be child- and tamper-proof, be secured against breakage and leakage, and have a mechanism that ensures refilling without leakage. The packages must contain a list of ingredients, health warnings, and an informational leaflet.

In general, it is prohibited to advertise nicotine-containing e-cigarettes and their refill containers on the radio, in the press and other printed publications, in online media, and on television. Currently, a prohibition to advertise tobacco products and e-cigarettes on billboards and in movie theaters at all times is being debated.

The Federal Administrative Court concluded in 2014 that nicotine-containing liquids in e-cigarettes are not medicinal products.

I. Introduction

The Association of E-Cigarette Merchants in Germany reported a sales volume of €420 million (about US\$467 million) in 2016, a significant increase from the €5 million (about US\$5.6 million) reported in 2010.¹ The Association predicted a further increase to €750 million to €900 million (about US\$834 million to US\$ 1 billion) for the years 2017 and 2018.² In a press conference in September 2019, the German Federal Center for Health Education (BZgA) stated that, even though adolescents and young adults smoke less tobacco, the use of e-cigarettes has risen. The head of the BZgA explained that

Smoking is uncool. There have never before been fewer adolescents who completely avoid smoking: 82.7% of 12-17 year olds report that they have never smoked in their life. The trend among young adults is also encouraging. Among that group, 44.3% declared that they have never smoked. In 2001, that number was 23.1%. However, the consumption of

¹ Verband des eZigarettenhandels e.V., *Daten & Fakten zur E-Zigarette* (Sept. 2017), <https://perma.cc/4WEH-WC2D>.

² *Id.*

water pipes and e-cigarettes remains troubling, in particular because the long-term effects on the user's health from the inhaled substances are still unclear.³

II. Legal Framework

The regulation of e-cigarettes in Germany is determined both by European Union (EU) legislation and domestic German law. The Tobacco Products Directive of the EU aims to harmonize rules for the placing on the market and the labeling of nicotine-containing e-cigarettes in the Member States.⁴ Other aspects like the introduction of an age limit, smoke-free environments, or rules on flavors are left to the Member States.⁵ The deadline to transpose the directive into Member State law was May 20, 2016.⁶ Germany transposed the EU requirements in the Tobacco Products Act (Tabakerzeugnisgesetz, TabakerzG).⁷ The German law adopts the definitions of the EU Tobacco Products Directive.⁸ In addition, the Youth Protection Act (Jugenschutzgesetz, JuSchG)⁹ contains provisions regarding age limits for e-cigarettes and e-shishas.

A. Age Restrictions

In 2016, the Youth Protection Act was amended to include e-cigarettes and e-shishas among the products and containers that cannot be sold to children and adolescents in public places and that they are forbidden from smoking. The prohibition also applies to mail-order offers and sales.¹⁰ An adolescent is defined as a person between the age of fourteen and eighteen.¹¹

The prohibition applies to tobacco products, other products that contain nicotine such as e-cigarettes, and nicotine-free products, including e-cigarettes and e-shishas where liquids are evaporated through an electronic heating element and generate aerosols that are inhaled through the mouth, as well as the products' containers.¹² The definitions of tobacco products, related products, and refill containers are taken from the EU Tobacco Products Directive.¹³

According to the explanatory memorandum to the act that amended the Youth Protection Act, reasons to include not only nicotine-containing e-cigarettes but also nicotine-free e-cigarettes and

³ Press Release, BZgA, Nichtrauchen bleibt im Trend – Aber: Konsum von Wasserpfeifen und E-Produkten steigt bei jungen Erwachsenen an (Sept. 12, 2019), <https://perma.cc/7ZBR-TF6A>.

⁴ Tobacco Products Directive, art. 1(f), 2014 O.J. (L 127) 1, <https://perma.cc/HZ22-QSSX>.

⁵ Id. recitals 47, 48.

⁶ Id. art. 29, para. 1.

⁷ Gesetz über Tabakerzeugnisse und verwandte Erzeugnisse [Tabakerzeugnisgesetz] [TabakerzG], Apr. 4, 2016, BGBl. I at 569, as amended, <https://perma.cc/YQD3-4MAK>.

⁸ TabakerzG, § 1, para. 1, no. 1 in conjunction with Tobacco Products Directive, art. 2.

⁹ Jugenschutzgesetz [JuSchG], July 23, 2002, BGBl. I at 2730, as amended, § 10, <https://perma.cc/HGX6-Q2B9>.

¹⁰ Id. § 10, para. 3.

¹¹ Id. § 1, para. 1, no. 2.

¹² Id. § 10, paras. 1, 4.

¹³ TabakerzG, § 1, para. 1, no. 1 in conjunction with Tobacco Products Directive, art. 2.

e-shishas in the prohibition were, among others, that studies have found that the additional ingredients of the liquids such as carbonyl compounds (formaldehyde, acrolein, and acetaldehyde) may cause cancer and might affect proper lung function and development. Furthermore, using nicotine-free e-cigarettes may tempt children and adolescents to try e-cigarettes with nicotine or conventional cigarettes.¹⁴

B. Nicotine Concentrations and Other Ingredients

Nicotine concentrations and the use of other chemical ingredients of e-cigarettes are determined by the EU Tobacco Products Directive.¹⁵ E-cigarettes may therefore only be placed on the market if the nicotine-containing liquids do not contain nicotine in excess of 20 mg/mL, if the refill containers do not exceed a volume of 10 mL, and if the cartridges or tanks do not contain a volume of more than 2 mL.¹⁶ In addition, the nicotine must be delivered at consistent levels.¹⁷ E-cigarettes and their refill containers may not be placed on the market if they contain certain prohibited additives, such as vitamins; caffeine; ones that have carcinogenic, mutagenic, or reprotoxic properties; certain flavoring substances like coumarin; or bitter almond oil.¹⁸

In a position paper published in December 2019, the Christian Democratic Union (CDU) party spoke out in favor of extending the regulation of ingredients and additives to nicotine-free e-cigarette refill containers.¹⁹ The paper points out that the rules applicable to nicotine-containing containers are oftentimes circumvented by selling “shake and vape” mixtures, the practice of adding nicotine shots to nicotine-free e-liquids.²⁰ The CDU party together with the coalition partner the Social Democratic Party of Germany plans to submit a draft act soon.²¹

C. Product Design and Safety Requirements

Product design and safety requirements are based on the requirements of the EU Tobacco Products Directive. E-cigarettes and their containers must therefore be child- and tamper-proof, be secured against breakage and leakage, and have a mechanism that ensures refilling without leakage.²² With regard to the technical standards for the refill mechanism of e-cigarettes to

¹⁴ Deutscher Bundestag: Drucksachen und Protokolle [BT-Drs.] 18/6858, at 7, <https://perma.cc/2HG3-NSRT>.

¹⁵ Tobacco Products Directive, *supra* note 4.

¹⁶ TabakerzG, § 14, para. 1.

¹⁷ *Id.* § 14, para. 2.

¹⁸ *Id.* § 28 in conjunction with annex 2.

¹⁹ *Verbraucher- und Gesundheitsschutz bei Tabakprodukten und E-Zigaretten: Positionspapier der CDU/CSU-Fraktion im Deutschen Bundestag* (Dec. 10, 2019), at 4, <https://perma.cc/3E4L-T9R5>.

²⁰ *Id.*

²¹ *Id.*

²² TabakerzG, § 14, para. 3.

minimize the risk of leakage, the German Tobacco Products Regulation refers back to the European Commission Implementing Decision on this topic.²³

The unit packet and outside packaging must contain a list of ingredients and a health warning.²⁴ Furthermore, a leaflet with information on use and storage, contraindications, warnings for specific risk groups, possible adverse effects, addictiveness and toxicity, and contact details of the manufacturer or importer must be included.²⁵

Manufacturers and importers are subject to notification requirements before a product can be placed on the market. The notification has to be submitted six months before placement on the market.²⁶ Manufacturers, importers, and distributors must also take appropriate measures to ensure the safety of their products and conduct spot checks once the product is placed on the market.²⁷ Such measures must be appropriate and include warnings and recalls if necessary.²⁸ Manufacturers, importers, and distributors must also inform the competent authorities of the risks and the actions taken without undue delay.²⁹ In addition, they must inform the competent authorities of the other EU Member States in which the e-cigarette and refill containers were placed or supposed to be placed on the market.³⁰

D. Advertisements

In general, it is prohibited to advertise nicotine-containing e-cigarettes and their refill containers on the radio, in the press and other printed publications, in online media, and on television.³¹ Exceptions exist for publications for trade professionals or those that are printed and published in third countries outside of the EU and are not principally intended for the EU market.³²

However, Germany still allows advertising for tobacco and related products on billboards and in movie theaters after 6 p.m.,³³ even though it ratified the WHO Framework Convention on Tobacco Control,³⁴ which states in article 13 that “[e]ach Party shall, in accordance with its

²³ Verordnung über Tabakerzeugnisse und verwandte Erzeugnisse [Tabakerzeugnisverordnung] [TabakerzV], Apr. 27, 2016, BGBl. I at 980, as amended, <https://perma.cc/NK86-AGR9> in conjunction with Commission Implementing Decision 2016/586, 2016 O.J. (L101) 15, <https://perma.cc/P97H-A3QS>.

²⁴ TabakerzG, § 15 in conjunction with TabakerzV, § 27.

²⁵ TabakerzG, § 15 in conjunction with TabakerzV, § 26.

²⁶ TabakerzV, § 24.

²⁷ TabakerzG, § 16.

²⁸ Id.

²⁹ Id.

³⁰ Id. § 16, para. 4.

³¹ Id. § 19, paras. 1-3, § 20.

³² Id. § 19, para. 2, sentence 2.

³³ JuSchG, § 11, para. 5.

³⁴ WHO Framework Convention on Tobacco Control, May 21, 2003, 2302 U.N.T.C. 166, <https://perma.cc/K2N8-7CLQ>.

constitution or constitutional principles, undertake a comprehensive ban of all tobacco advertising, promotion and sponsorship.” It has been argued that such a ban would violate the German Basic Law, in particular the freedom of expression of tobacco manufacturers.³⁵ Until recently, this argument has been used to prevent passing a ban, and a bill submitted in the last legislative period in 2016 was never adopted.³⁶

However, a ban might get enacted soon. In April 2018, the Green Party submitted a draft act that would prohibit advertising for tobacco products and electronic cigarettes and their refill containers on billboards and in movie theaters.³⁷ In addition, the draft act would prohibit giving out free samples of tobacco products and e-cigarettes.³⁸ In a hearing in parliament, most experts spoke out in favor of such a ban.³⁹ In addition, the CDU party, which has historically been opposed to a ban, issued a position paper in support of a ban in December 2019, citing health and youth protection as reasons for the reversal.⁴⁰ According to the proposal, advertisements on billboards and in movie theaters for all types of e-cigarettes would be prohibited from January 1, 2024, on.⁴¹

E. Smoking Cessation

1. Decision of the Federal Administrative Court

In 2014, the Federal Administrative Court held that e-cigarettes filled with nicotine-containing liquids do not fall under the definition of medicinal products in the Medicinal Products Act.⁴² The definition of medicinal products covers both “medicinal products by presentation” and “medicinal products by function.”⁴³ Medicinal products by presentation are defined as “substances or preparations made from substances that are intended for use on or in the human or animal body and are intended for curing, alleviating, or preventing human or animal diseases or disease symptoms.”⁴⁴ According to the Court, a product fulfills these requirements if it is explicitly presented as possessing such characteristics or if the

³⁵ Grundgesetz [GG], May 23, 1949, BGBl. I at 1, as amended, art. 5, <https://perma.cc/G5EP-KNMY> (original), <https://perma.cc/7EKT-M3Z7> (unofficial English translation, updated through Mar. 28, 2019); Christoph Degenhart, *Verfassungsfragen marktbezogener Kommunikation: Werbeverbote für Tabakprodukte – Rechtsgutachten* (2015), <https://perma.cc/GKX6-KUGK>.

³⁶ Deutscher Bundestag, Gesetz zur Änderung des Tabakerzeugnisgesetzes, <https://perma.cc/KH5N-N2U4>.

³⁷ Deutscher Bundestag: Drucksachen und Protokolle [BT-Drs.] 19/1878, at 3, <https://perma.cc/N6SJ-E68T>.

³⁸ Id. at 3.

³⁹ Deutscher Bundestag, *Experten befürworten mehrheitlich umfassendes Tabakwerbeverbot*, <https://perma.cc/YH6S-44GG>.

⁴⁰ *Verbraucher- und Gesundheitsschutz bei Tabakprodukten und E-Zigaretten*, supra note 19.

⁴¹ Id. at 4.

⁴² Bundesverwaltungsgericht [BVerwG], Nov. 20, 2014, Docket No. 3 C 25.13, <https://perma.cc/8E39-JDJ9>.

⁴³ Arzneimittelgesetz [AMG], Dec. 12, 2005, BGBl. I at 3394, § 2, para. 1, no. 1, as amended, <https://perma.cc/Y7PQ-GWPU> (original), <https://perma.cc/LC7Z-PG3J> (unofficial English translation, updated through May 6, 2019).

⁴⁴ Id.

presentation of the product gives the average consumer, either explicitly or implicitly, the unambiguous impression that the product possesses these traits.⁴⁵ As the nicotine-containing liquids were not presented or advertised as substances to cure nicotine and tobacco addictions, they were not covered by the definition.⁴⁶

Medicinal products by function are defined as “substances or preparations made from substances that can be used in or on the human or animal body or can be administered to a human being or an animal . . . to restore, correct or influence the physiological functions through a pharmacological, immunological or metabolic effect.”⁴⁷ The Federal Administrative Court stated that the decision of whether a product falls under this definition must be made on a case-by-case basis, taking into account all the characteristics of the product, in particular its composition; its pharmacological properties, to the extent to which they can be established in the present state of scientific knowledge; the manner in which it is used; the extent of its distribution; its familiarity to consumers; and the risks that its use may entail.⁴⁸ In the opinion of the Court, it is not sufficient that the product have properties beneficial to health in general—it must objectively have the function of treating or preventing disease.⁴⁹

The Court applied the definition to the nicotine-containing liquids in e-cigarettes and concluded that even though nicotine is a substance with pharmacological effects, an overall assessment shows that the liquids are food products by function and not medicinal products.⁵⁰ The Court noted that nicotine-containing e-cigarettes closely resemble tobacco cigarettes in their appearance, presentation, and use. The variety of flavors the liquids come in are intended to taste good, and the flavors differentiate the liquids from approved medicinal products used as smoking cessation aids that contain only menthol and nicotine. In addition, the liquids do not contain the dosage instructions typical of medicinal products. Moreover, even if the liquids provide temporary relief from withdrawal symptoms, they cannot objectively be used for therapeutic purposes because nicotine can damage health.⁵¹

2. *Study on the Use of E-Cigarettes as Smoking Cessation Aids*

A study commissioned by the German Ministry of Health examined the use of e-cigarettes as a smoking cessation aid among a group of around 600 people who participated in a smoking cessation program.⁵² Among program participants, 12.6% used e-cigarettes to help them stop

⁴⁵ BVerwG, supra note 42, para. 14.

⁴⁶ Id. para. 15.

⁴⁷ AMG, § 2, para. 1, no. 2.

⁴⁸ BVerwG, supra note 42, para. 18.

⁴⁹ Id. at 19.

⁵⁰ Id. at 21.

⁵¹ Id. at 22.

⁵² Christoph Kröger et al., *Abschlussbericht, Sachbericht, Nutzung und Nutzen der E-Zigarette bei der Tabakentwöhnung: Nachbefragung der Teilnehmer am “Rauchfrei Programm” der IFT-Gesundheitsförderung zur Einstellung, Nutzung und Effekten der E Zigarette im Jahr 2015* (Mar. 2016), <https://perma.cc/W53Q-4TEP>.

smoking, some of them in addition to other aids.⁵³ However, a year after the program ended, participants who had used e-cigarettes as a smoking cessation aid were significantly less smoke-free than other participants.⁵⁴ The study concluded that e-cigarettes had a negative effect on their abstinence and participants should be advised not to use it as a smoking cessation aid.⁵⁵

F. Health Risks

In July 2019, the German Cancer Research Center published a report on e-cigarettes and heated tobacco products.⁵⁶ The report found that even though e-cigarettes are less harmful than tobacco cigarettes, they are nonetheless not harmless consumer products, in particular because they might potentially be harmful to the user's health and trigger addiction.⁵⁷ Furthermore, it might increase the possibility that young people will try tobacco cigarettes.⁵⁸ On the other hand, the study found that e-cigarettes improve the health of smokers who switch to e-cigarettes. They might be helpful to stop smoking, at least over a short period of time.⁵⁹ However, the report also points out that there might be a risk from passive consumption of e-cigarettes from breathing in aerosols, especially for vulnerable persons.⁶⁰

G. National Statistics

According to the latest report of the German Commissioner of Drugs of the Federal Government, the use of e-cigarettes in Germany has increased over the last years, in particular among young people between 16 and 29 years of age.⁶¹ About one-fifth in that age group indicated that they have tried e-cigarettes. The number decreases continuously with age.⁶²

The most common stated reason to use e-cigarettes was the desire to smoke less tobacco or to stop smoking tobacco altogether.⁶³

Another survey conducted by the BZgA found that men were more likely than women to have tried and continue to use e-cigarettes.⁶⁴ Furthermore, the BZgA study found a correlation between

⁵³ Id. para. 7.2.

⁵⁴ Id. para. 9.

⁵⁵ Id.

⁵⁶ Deutsches Krebsforschungszentrum (DKFZ), *Projekt: "Review zu E-Zigaretten und Tabakerhitzern," Abschlussbericht* (July 2019), <https://perma.cc/4LRU-TT3D>.

⁵⁷ Id. at 4, no. 3.

⁵⁸ Id.

⁵⁹ Id.

⁶⁰ Id.

⁶¹ Die Drogenbeauftragte der Bundesregierung beim Bundesministerium für Gesundheit, *Drogen- und Suchtbericht 2019* (Oct. 2019), at 47, <https://perma.cc/6BX8-QLAK>.

⁶² Id.

⁶³ Id.

⁶⁴ BZgA, *Rauchen bei Jugendlichen und jungen Erwachsenen in Deutschland: Ergebnisse des Alkoholsurveys 2018 und Trends, BZgA-Forschungsbericht* (Sept. 2019), at 22, <https://perma.cc/9JMQ-BNCV>.

the level of education and the use of water pipes, e-cigarettes, and e-shishas among 12- to 17-year-old adolescents. The higher the level of education, the less likely they were to use these products. No such correlation was found for heated tobacco products.⁶⁵ Another BZgA study conducted over the course of six months concluded that smoking e-cigarettes can be a gateway drug to conventional cigarettes for young adults.⁶⁶ Twenty-two percent of respondents who were nonsmokers at the beginning of the study but had tried e-cigarettes started smoking tobacco at the end of the study, whereas only 10% of the other nonsmoker respondents had started smoking tobacco at the end of the study.⁶⁷

⁶⁵ Id.

⁶⁶ Press Release, BZgA, Neue Studienergebnisse: Konsum von E-Zigaretten kann Jugendliche zum Experimentieren mit Tabakzigaretten anregen (Apr. 4, 2018), <https://perma.cc/4FH5-9FB5>.

⁶⁷ Id.

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SUMMARY Initially the Indian government tried to ban the use of e-cigarettes and similar products through advisories and agency orders but these measures were stayed by the Delhi High Court. In 2019, the Union (or central) Indian government promulgated the Prohibition of Electronic Cigarettes Ordinance, which imposed a prohibition (and made it a cognizable offense) to produce, import, export, transport, distribute, manufacture, sell (including online sales), and advertise e-cigarettes. In November 2019 this Ordinance was enacted as an Act of Parliament.

I. Federal Legislative Ban

On September 18, 2019, the Union (or central) Indian government promulgated the Prohibition of Electronic Cigarettes Ordinance,¹ which imposed a prohibition (and made it a cognizable offense) to produce, import, export, transport, distribute, manufacture, sell (including online sales) and advertise e-cigarettes.² The Ordinance makes the above acts punishable with a term of imprisonment of up to one year, a fine of up to Rs. 100,000 (approx. US\$1,394), or both for the first offense and up to three years' imprisonment and an Rs. 500,000 fine for a subsequent offense.³ The ordinance also makes the storage of e-cigarettes a punishable offense with imprisonment for up to six months, a fine of up to Rs. 50,000, or both.⁴

Ordinances cease to be in force if they are not approved by Parliament within six weeks of commencement of the next session of Parliament. By early December 2019, both houses of India's Parliament had passed the Prohibition of Electronic Cigarettes (Production, Manufacture, Import, Export, Transport, Sale, Distribution, Storage and Advertisement) Act, 2019.⁵

The Act also intends to prohibit the production, manufacture, import, export, transport, sale, distribution, storage, and advertisement of e-cigarettes and like devices, considering the highly

¹ Prohibition of Electronic Cigarettes (production, manufacture, import, export, transport, sale, distribution, storage and advertisement) Ordinance, No. 14 of 2019, The Gazette of India Extraordinary, pt. II, § I, <https://perma.cc/S25Q-28VF>.

² Id. § 4. Note that prior to this ban, the Ministry of Electronics and Information Technology (MEITY) had proposed an amendment to the Information Technology (Intermediary Guidelines) Rules 2018 "to inter alia ban the advertisement of ENDS (including e-cigarettes) except for the purpose & in the manner and to the extent, as may be approved under the DCA and rules made thereunder," but this amendment does not appear to have been implemented. *Electronic Cigarettes: Regulatory Framework in India*, Ikigai Law (May 26, 2019), <https://perma.cc/3J49-GGL8>.

³ Id. § 7.

⁴ Id. §§ 5&8.

⁵ Prohibition of Electronic Cigarettes (Production, Manufacture, Import, Export, Transport, Sale, Distribution, Storage and Advertisement) Act, 2019, <https://perma.cc/72X2-2LJC>.

addictive nature of nicotine. The Ordinance and the Bill do not contain any provisions regarding the possession or use of e-cigarettes.⁶

II. Status Prior to the 2019 Federal Legislative Ban

Before the 2019 ban on e-cigarettes was implemented, the Indian government had attempted to regulate e-cigarettes through various advisories and agency orders.

In August 2018, the Ministry of Health and Family Welfare issued an advisory to all states to ensure that “Electronic Nicotine Delivery Systems (ENDS) including e-Cigarettes, Heat-Not-Burn devices, Vape, e-Sheesha, e-Nicotine Flavoured Hookah, and the like devices that enable nicotine delivery are not sold (including online sale), manufactured, distributed, traded, imported and advertised in their jurisdictions,” except those devices approved under the Drugs and Cosmetics Act, 1940 and Rules.⁷ Pursuant to this advisory, “16 states including Delhi, Maharashtra, and Uttar Pradesh” banned e-cigarettes.⁸ However, this advisory was challenged in the Delhi High Court and in November 2018, the Court held that the advisory was “not binding and it would be open to the respective states and union territories to take an informed decision in this regard.”⁹

In November 2018, the Central Board of Indirect Taxes and Customs also issued a circular referring to the Health Ministry advisory and directing customs officers to implement it by referring import consignments of ENDS to the Assistant and Deputy Drugs Controllers in their jurisdictions so that these authorities could check the compliance of such products with India’s laws.¹⁰ Subsequently, in February 2019, the central drug regulator, the Central Drugs Standards Control Organisation (CDSCO) issued a similar order¹¹ requesting the state licensing authorities to ensure that these products “and the like devices that enable nicotine delivery are not sold (including online sale), manufactured, distributed, traded, imported and advertised in their jurisdictions, except for the purpose and in the manner and to the extent, as may be approved under the Drugs and Cosmetics Act, 1940.”¹² However, in March 2019, the Delhi High Court imposed a stay on the ban, holding that these products “do not fall within the definition of a

⁶ Gayatri Mann, *Explaining the Recent Ban on E-Cigarettes*, PRS Legislative Research (Sept. 19, 2019), <https://perma.cc/9KUY-9J5A>.

⁷ Ministry of Health & Family Welfare, Circular F. No-P-16012/19/2017-TC (Aug. 28 2018), <https://perma.cc/8LQP-M6Y7>.

⁸ *The Prohibition of Electronic Cigarettes (Production, Manufacture, Import, Export, Transport, Sale, Distribution, Storage and Advertisement) Ordinance, 2019*, PRS Legislative Research (Sept. 18, 2019), <https://perma.cc/56PG-S2WB>.

⁹ *Piush Ahluwalia v. Union of India*, W.P.(C) 12163/2018 (Nov. 14, 2018), <https://perma.cc/H7HN-VAMP>.

¹⁰ Government of India, Ministry of Finance, Department of Revenue, Central Board of Indirect Taxes & Customs (Anti-Smuggling Unit), Advisory on Electronic Nicotine Delivery Systems (ENDS) including E-Cigarettes, Heat-Not-Burn Devices, Vape, E-Sheesha, E-Nicotine Flavored Hookah, and the Like Products, F. No. 394/121/2018-Cus(AS) (Nov. 27, 2018), <https://perma.cc/DH2Q-VEA6>.

¹¹ *Temporary Win for E-Cigarettes as Delhi High Court Stays Ban*, The Wire (Mar. 20, 2019), <https://perma.cc/C9MW-9GZZ>.

¹² *M/S Focus Brands Trading (India) Private Limited & Anr. v. Directorate General of Health Services & Ors.*, W.P.(C) 2688/2019, <https://perma.cc/FWH4-MTA9>.

‘drug’, as defined under section 3(b) of the Drugs and Cosmetics Act 1940.”¹³ In late May 2019, the Indian Council of Medical Research published a white paper¹⁴ on ENDS that “recommended a complete prohibition of e-cigarettes in India.”¹⁵

¹³ Id. para. 9; Mann, *supra* note 6.

¹⁴ Press Release, Indian Council of Medical Research, White Paper on Electronic Nicotine Delivery System (ENDS) Released at ICMR Hqrs (May 31, 2019), <https://perma.cc/TFT8-6SW9>.

¹⁵ PRS Legislative Research, *supra* note 8.

Israel

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SUMMARY The Prohibition on Advertising and Restriction on the Marketing of Tobacco and Smoking Products Law 5743-1983, as amended, prohibits the manufacture, marketing or storage for purpose of distribution of an electronic cigarette (e-cigarette), cartridge or filler which contains nicotine at a concentration exceeding 20 mg/mL. It similarly prohibits the sale and rental of e-cigarettes to minors.

The law imposes extensive restrictions on advertising of smoking products, including e-cigarettes, and requires the display of warnings and inclusion of warning inserts in packaging. The law further imposes reporting requirements for chemical ingredients and flavors, and requires that e-cigarettes fillers may only be sold in packaging designed to prevent opening by children, breakage, and leakage.

On September 24, 2019, Israel's Ministry of Health announced its intention to completely ban the distribution of e-cigarettes, even before consideration of the ban in primary legislation. At the time of writing this report, this proposal had not been considered by the legislature.

I. Introduction

On January 8, 2019, the Knesset (Israel's parliament) passed the Prohibition on Advertising and Restriction on the Marketing of Tobacco and Smoking Products Law (Amendment No. 7) 5779-2019.¹ This Law amends the Prohibition on Advertising and Restriction on the Marketing of Tobacco and Smoking Products Law 5743-1983 by specifically addressing the manufacturing, distribution, and advertising of electronic cigarettes (e-cigarettes).² References to relevant provisions of the amended law in this report are to the text of the law incorporating amendment no. 7 (the Prohibition Law).

On September 24, 2019, however, Israel's Ministry of Health expressed its intention to completely ban the distribution of e-cigarettes. The Ministry announced that it was considering an immediate and complete prohibition on the marketing of e-cigarettes (ECs) in Israel, even before additional consideration by legislation. Like most other Knesset committees, the Knesset Committee for Labor, Welfare, and Health (the committee, which has jurisdiction over this issue) has not been

¹ Prohibition on Advertising and Restriction on the Marketing of Tobacco and Smoking Products Law (Amendment No. 7), 5779-2019, Sefer HaHukim (SH) 5779 No. 2776 p. 166, <https://perma.cc/7ETW-DDYV>.

² Prohibition on Advertising and Restriction on the Marketing of Tobacco and Smoking Products Law, 5743-1983, SH 5743 No. 1074 p. 38, as amended.

convening because of the failure to form a government.³ A third national election following two earlier attempts to form a coalition government is scheduled for March 2, 2020.⁴

II. Definitions

The Prohibition Law defines smoking products as including e-cigarettes. An e-cigarette is defined as “a product, including a product similar to a cigarette, a cigar, a pipe or hookah, which can be used for consumption of steam containing nicotine, which is electronically activated and intended for smoking, and can be used for single or repeated use.”⁵

III. The Use of Nicotine Salts in E-Cigarettes and Caps on Nicotine Concentration

The Prohibition Law generally bars the manufacture, marketing or storage of electronic cigarettes, cartridges or fillers for the purpose of distribution if they contain nicotine at a concentration exceeding 20 mg/mL.⁶ Pharmaceutical products authorized for registration in the pharmaceuticals register in accordance with the Pharmacists Ordinance [New Version] 5741-1981,⁷ as amended (authorized registered pharmaceuticals), however, are excluded from these prohibitions.⁸

Nicotine salts, similarly to all other ingredients used in e-cigarettes, must generally be included in the annual report that has to be submitted by the manufacturer or importer of smoking products to the Ministry of Health.⁹

IV. Age Restrictions on E-Cigarettes

Except for authorized registered pharmaceuticals, the sale or rental of smoking products including e-cigarettes to minors is prohibited.¹⁰ An owner or an employee in a business where smoking products, including e-cigarettes, fillers, and cartridges are sold or rented may require a person who wishes to obtain such products to present identification to ascertain the person's age.¹¹ The age of majority is 18.¹²

³ Knesset Committees, Knesset, <https://perma.cc/Q8N3-AP86>.

⁴ See Dissolution of the 22nd Knesset and Advancement of the Election Law, 5780-2019, SH 5780 No. 2788 p. 4, <https://perma.cc/6PPA-26VU>.

⁵ Prohibition Law § 1.

⁶ Id. § 7C(a).

⁷ Pharmacists Ordinance [New Version], 5741-1981, Dinei Medinat Yisrael [Nusach Hadash] No. 35 p. 694, as amended.

⁸ Prohibition Law, § 7C(c), as amended.

⁹ See *Regulating Other Chemical Ingredients and Flavors Used in E-Cigarettes*, *infra* at VI.

¹⁰ Id. § 8A(a) & (a1).

¹¹ Id. § 8A(b).

¹² Legal Capacity and Guardianship Law, 5722-1962, § 3, SH 5722 No. 380 p. 120, as amended.

V. Restrictions on Use and Sale

In addition to the restrictions on sale of smoking products to minors, the law requires the posting of a warning of the health risks associated with the use of such products in any place where they are sold or offered for rental, as well as its inclusion in any authorized printed advertisements.¹³

The law further requires that e-cigarette fillers be sold only in packaging designed to prevent opening by children, breakage, and leakage.¹⁴ In addition, all smoking products' packaging must include an insert containing information about the harm associated with smoking and ways to help with quitting smoking.¹⁵

VI. Regulating Other Chemical Ingredients and Flavors Used in E-Cigarettes

The manufacturer or importer of smoking products, including e-cigarettes, must provide to the Ministry of Health's Director-General or the Director-General's designee, by June 1 of each year:

[a] list of all the ingredients for each of the smoking products it produces or imports, the purpose of using them, their proportion and quantity in the smoking product, and for [a] smoking product containing tobacco, also, a list of each ingredient in the tobacco mixture and its proportion in the product; however, it is possible to list a flavor and odor ingredient without indicating its proportion if it is less than 0.1% of the weight of the tobacco and is not included in the list of carcinogens, [ingredients] that are suspected as carcinogens or potential carcinogens by the International Cancer Research Agency (IARC), as updated from time to time.¹⁶

VII. Product Design and Concealability of E-Cigarettes (Size, Color, Output of Plume or Aerosol)

No specific rules have been identified.

VIII. Safety Requirements for E-Cigarettes

As noted above, e-cigarette fillers may only be sold in packaging designed to prevent opening by children, breakage, and leakage.¹⁷

¹³ Prohibition Law § 8A(c).

¹⁴ Id. § 7(c).

¹⁵ Id. § 9D(a).

¹⁶ Id. § 9E(a)(1); translated here and below by author.

¹⁷ Id. § 7(c).

IX. Advertising, Including on TV, Radio, Social Media, and Billboards

Advertisement of smoking products, including e-cigarettes, is generally prohibited.¹⁸ The prohibition applies to advertisement by oral, written, printed or electronic medium, including through the internet, and other technological means, as well as in a painting, image, or sound, that is intended to be or publicly available, in whole or in part, in any form, overtly or covertly.¹⁹

The following are excluded from the prohibition on advertisement of smoking products

- An advertisement in a section or supplement of a newspaper that is not intended primarily for children and adolescents, or one that is devoted primarily to health, sports, entertainment, recreation or leisure. In the case of e-cigarettes such an advertisement may be permitted if it contains a conspicuous statement at a size larger than 30% of the advertisement in the same language as that of the advertisement stating: "Warning – This product is extremely addictive and harmful to your health."²⁰
- An advertisement that is displayed in an offline store that exclusively sells smoking products or smoking products and alcoholic drinks, as long as it is not visible outside the store.²¹
- An art work or a news report, investigative and documentary articles that were not made for the purpose of promoting a smoking product, or a trademark or a brand of a smoking product, even if they contain an advertisement for smoking products, except if consideration was given or received for such an advertisement.²²
- An art work made with the intention of promoting a smoking product, a smoking product trademark or a brand, which was displayed in public prior to January 8, 2019.²³
- An advertisement for a nonsmoking product or a business with the same or similar name or commercial name or brand of a tobacco smoking product, if:
 - (1) the product or business existed in Israel on July 13, 2004, and for a smoking product other than a tobacco product – the product or business existed in Israel on the day of March 8, 2019;
 - or

¹⁸ Id. § 3(a).

¹⁹ Id. § 1(b).

²⁰ Id. §§ 3(b)(1)(b) & 7(a)(2).

²¹ Id. § 3(b)(2).

²² Id. § 3(b)(3)(a).

²³ Id. § 3(b)(3)(b).

(2) the name of the product or business is displayed in an advertisement that is essentially different from the brand of the smoking product or that the brand of the smoking product is displayed on the nonsmoking product in a manner that is not conspicuous.²⁴

- A non-audio or video written advertisement that was delivered to an adult over 21 years of age who has requested its delivery in advance in writing.²⁵

Additional restrictions generally apply to the use of names or images of humans, animals, fruits and other plants unless they are registered as trademarks,²⁶ as well as to names and forms of products similar to smoking products.²⁷

X. Regulation of E-Cigarettes' Environmental Waste

No specific legislation that addresses environmental waste from the disposal, storage, and recycling of e-cigarettes has been identified.

XI. Government Consideration of Health Risks Associated with E-Cigarettes

On September 24, 2019, Israel's Ministry of Health announced its intention to completely ban the distribution of e-cigarettes, even before consideration of the issue in legislation. According to a press release issued by the Ministry:

At a recent meeting of the Ministry's general manager Moshe Bar- Tov (GM) and professional rank, following recent reports of morbidity and mortality from the use of e-cigarettes and the dramatic increase in the use of e-cigarettes in the United States among teens, and the potential implications for youth in Israel, the GM ordered to examine more significant tools for the complete prohibition of e-cigarettes' marketing in Israel or other restrictions, most notably [a] ban on the marketing of flavors.

An amendment to the law that was approved last December set restrictions on e-cigarettes' marketing, including a comprehensive ban on e-cigarettes' advertising, a ban on sales for minors and more.

Also, restrictions on uniform packaging, e-cigarettes' warnings and a ban on the display of e-cigarettes for sale. These provisions will take effect in January 2020.

In addition, the law stipulates conditions for the manufacture and marketing of e-cigarettes' cartridge and filler material, that include a prohibition on the marketing of an e-cigarette, cartridge or filler at a concentration of nicotine exceeding 20 milligrams per milliliter.

²⁴ Id. § 3(b)(4).

²⁵ Id. § 3(b)(5).

²⁶ Id. § 5.

²⁷ Id. § 7A.

Currently, in light of recent reports, the Ministry of Health is examining the tightening of restrictions and prohibitions, including through the imposition of a temporary injunction to prohibit marketing until the completion of legislative proceedings.

The GM ordered not to wait for primary legislation through the Knesset and parliamentary committees, and try to allow a strict ban such as a total ban on marketing, until it becomes possible [to do so] in primary legislation – by the Knesset, when it will convene.

Moshe Bar Tov, the GM:

“I urge the public not to wait for orders and legislation and simply to avoid consuming health-damaging substances like cigarettes of various kinds and not be deceived by unsubstantiated promises of reduced e-cigarettes’ damage.

Unfortunately, we are witnessing a real risk to public health from the ever-increasing use . . . of such products. The latest wave of morbidity in the United States should serve as a warning sign to all health authorities in the world to act on these measures with the utmost severity.”²⁸

XII. National Studies and Statistics

It appears that the data used by Israeli authorities in consideration of policies on the distribution and manufacture of e-cigarettes relies on foreign studies and statistics, mainly from the US and the UK, rather than on national studies and statistics regarding the use of e-cigarettes for smoking cessation and the rate of smoking cessation connected with their use.²⁹

²⁸ Press Release, Complete Ban on the Distribution of E-Cigarettes, Israel Ministry of Health (Sept. 24, 2019), <https://perma.cc/FAB8-8VKY>.

²⁹ Id. See also Roni Linder, *Ministry of Health in a Dramatic Move: Considering an Absolute Ban on Distribution and Sale of E-Cigarettes in Israel*, Marker (Sept. 24, 2019), <https://perma.cc/E5VF-SN6Z>.

Japan

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SUMMARY Electronic cigarettes (e-cigarettes) are regarded as pharmaceutical products and medical devices under the Pharmaceuticals and Medical Devices Act. The Act requires their manufacturers and sellers to obtain government approval. No such approval regarding e-cigarettes has been granted yet. However, the Act does not require approval for the importation of pharmaceutical products and medical devices by individuals for private use. E-cigarettes not containing nicotine are not regulated. The Ministry of Health, Labour, and Welfare warns about the health risks of e-cigarettes on its website.

E-cigarettes are not widely used in Japan. Instead, heat-not-burn tobacco products are gaining popularity rapidly.

I. Non-Approval of E-Cigarettes with Nicotine

The Ministry of Health, Labour, and Welfare (MHLW) regards nicotine-containing products used by people orally, such as by vaping cartridges or liquids with nicotine, as pharmaceutical products. In addition, atomizers that make nicotine vapor are regarded as medical devices.¹ The Act on Securing the Quality, Efficacy, and Safety of Products Including Pharmaceuticals and Medical Devices (Pharmaceuticals and Medical Devices Act)² requires manufacturers and sellers of such nicotine products to receive government approval.³ It appears that no nicotine products for vaping have received such approval in Japan.⁴ Therefore, vaping cartridges and liquids containing nicotine are not available in Japan.

¹ ニコチンを含有する電子タバコに関する薬事監視の徹底について（依頼）[*Regarding Thorough Monitoring of E-Cigarettes Containing Nicotine (Request)*], MHLW Circular 薬食監麻発 0818 No. 5 (Aug. 18, 2010), <https://perma.cc/542R-AZQN>. See also 無承認無許可医薬品の指導取締りについて [*Regarding Guidance and Regulation of Unapproved or Not-Permitted Pharmaceuticals*], 薬発 No. 476 (June 1, 1971), amended by 薬生発 0418 No. 4 (Apr. 18, 2018), <https://perma.cc/5YQJ-SBZW>.

² Act on Securing the Quality, Efficacy, and Safety of Products Including Pharmaceuticals and Medical Devices (Pharmaceuticals and Medical Devices Act), Act No. 145 of 1960, as amended by Act No. 108 of 2016, <https://perma.cc/KD62-3N49>.

³ 医薬品の製造販売手順について [*Regarding Process of Manufacturing and Sales of Pharmaceuticals*], Pharmaceuticals & Med. Devices Agency, <https://perma.cc/8ZMK-NX5W>.

⁴ ニコチンを含有する電子タバコに対する注意喚起 [*Reminder about E-Cigarettes Containing Nicotine*], Toyama Prefecture (July 10, 2019), <https://perma.cc/ZH4Q-SBGB>.

II. Importation of E-Cigarettes with Nicotine for Personal Use

The Pharmaceuticals and Medical Devices Act also requires approval for importing pharmaceuticals and medical devices for sale or transfer, including e-cigarette cartridges, liquids containing nicotine, and atomizers for nicotine liquids.⁵ However, the Act does not require approval of the importation of these products for personal use. In principle, the government requires individuals who import pharmaceuticals or medical devices for personal use to prove that the imported items are not for sale or transfer. Nevertheless, depending on the item, the government may exempt an individual from proving this if the quantity imported is no more than a two-months' supply for one person.⁶ In the case of pharmaceuticals classified by the Enforcement Ordinance of the Pharmaceuticals and Medical Devices Act as poisonous or deleterious drugs,⁷ the standard quantity for the exemption is up to one month's supply for a person.⁸ Nicotine salt is classified as a poisonous or deleterious drug, depending on its concentration level.⁹ Therefore, up to one month's supply of it for vaping qualifies for the exemption. The MHLW sets the standard of one month for e-cigarette liquids with nicotine as 60 cartridges or 120 mL (about 4 oz.) of liquid.¹⁰

III. Non-Nicotine E-Cigarettes

Non-nicotine e-cigarettes are currently not regulated. No national law prohibits smoking of non-nicotine e-cigarettes by minors.¹¹

In 2010, the National Consumer Affairs Center of Japan tested 47 cartridges of e-cigarettes to analyze whether they contained diethylene glycol or nicotine. The Center did not find diethylene glycol in any of the cartridges but did find nicotine in 15 cartridges. The Center also examined the descriptions on the cartridges' labeling and found improper descriptions such as baseless claims about the safety of the products and inaccurate or missing descriptions of their ingredients. The Center issued a warning to consumers and discouraged the use of e-cigarettes.¹²

⁵ Pharmaceuticals and Medical Devices Act, art. 2, para. 13.

⁶ *Information for Those Who Are Bringing Medicines for Personal Use into Japan*, MHLW, <https://perma.cc/QG3H-TDDD>.

⁷ Pharmaceuticals and Medical Devices Act, art. 44, para. 1; and Enforcement Ordinance of the Act on Securing the Quality, Efficacy, and Safety of Products Including Pharmaceuticals and Medical Devices (Pharmaceuticals and Medical Devices Act Enforcement Ordinance), Ministry of Health and Welfare Ordinance No. 1 of 1961, amended by MHLW Ordinance No. 34 of 2019, art. 204 & attached tbl.3, <https://perma.cc/9FT7-5JE9>.

⁸ MHLW, *Information for Those Who Are Bringing Medicines for Personal Use into Japan*, supra note 6.

⁹ Pharmaceuticals and Medical Devices Act Enforcement Ordinance, attached tbl.3.

¹⁰ 医薬品等輸入手続質疑応答集 (Q & A) [Q&A: Importation Procedures of Pharmaceuticals], Question 63 (Nov. 17, 2016), <https://perma.cc/DE26-W5RN>.

¹¹ MHLW, 電子たばこ [Electronic Cigarette], e-Health Net, (June 18, 2019), <https://perma.cc/3TFC-M8X3>.

¹² 電子タバコの安全性を考える [Examining the Safety of E-Cigarettes], National Consumer Affairs Center of Japan (Aug. 18, 2010, updated May 9, 2019), <https://perma.cc/NA4A-L5LT>.

IV. Health Risks Study and Warning

In 2015, the Technical Committee for Health Risk Assessment of Tobacco of the MHLW discussed the health risks of e-cigarettes. The material submitted by a committee member, who is also a researcher for the National Institute of Advanced Industrial Science and Technology, summarized research on aldehyde generated by e-cigarettes. It stated that e-cigarettes, in general, generated less aldehyde than cigarettes, however, some ingredients in some e-cigarette products raised health risk concerns.¹³ Based on the discussion, the website of the MHLW warns people that e-cigarettes may be harmful to users.¹⁴

V. Noncombustible Cigarettes and Heat-Not-Burn Tobacco Products

While e-cigarettes have a very small market share in Japan,¹⁵ noncombustible cigarettes are quickly gaining popularity. The market share of these products was about 21% in 2018,¹⁶ and was projected to be 30% in 2019.¹⁷ Flavored products are available, such as menthol.¹⁸ These products generally “heat dry tobacco to create an aerosol that the user inhales.”¹⁹ Because these products use tobacco leaves, they are subject to tobacco regulations, such as age restrictions,²⁰ and mandatory health risk warnings on packaging.²¹

¹³ Masashi Gamo, 電子たばこから生成するアルデヒド類のリスク評価 [*Risk Assessment of Aldehyde Generated from Electronic Cigarettes*], submitted to the Sixth Technical Committee for Health Risk Assessment of Tobacco (May 21, 2015), <https://perma.cc/2BLW-KTWJ>.

¹⁴ 電子たばこの注意喚起について [*Regarding Warnings on E-Cigarettes*], MHLW, <https://perma.cc/LF64-RYF7>.

¹⁵ 電子たばこに関するアンケート調査【喫煙者編】 [*Questionnaire Survey on Electronic Cigarettes (Smokers)*], ASMARQ (2017), <https://perma.cc/23YM-324E>.

¹⁶ Fin. Bureau, Ministry of Fin., たばこ・塩を巡る最近の諸情勢について [*Recent Situations Surrounding Tobacco and Salt*], at 1 (Apr. 15, 2019), <https://perma.cc/82FT-7U6W>.

¹⁷ 加熱式たばこ市場拡大 シェア3割超視野 顧客争奪戦が激化 [*Market Share of Heat-Not-Burn Expanding, Expected to be over 30%, Intensified Competition for Customers*], Sankei (Aug. 2, 2018), <https://perma.cc/2PLA-QRFG>.

¹⁸ For example, this website compares the flavors of various heat-not burn tobacco products: IQOS (アイコス) ヒートスティック全銘柄の味・比較 [*Comparison of Tastes of All IQOS Heat Stick Products*], 非アクティブズム。 (Dec. 15, 2019), <https://perma.cc/VF32-UEJM>.

¹⁹ *How Are Non-Combusted Cigarettes, Sometimes Called Heat-Not-Burn Products, Different from E-Cigarettes and Cigarettes?*, US Food & Drug Admin. (Oct. 16, 2019), <https://perma.cc/87AF-XDSH>.

²⁰ Act on Prohibition of Smoking by Minors, Act No. 33 of 1900, amended by Act No. 152 of 2001, <https://perma.cc/N8ZA-63SN>.

²¹ Tobacco Business Act, Act No. 68 of 1984, amended by Act No. 37 of 2019 (Reiwa 1), art. 39, <https://perma.cc/J4HL-QC9M>.

South Korea

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SUMMARY In South Korea e-cigarettes are classified as tobacco under the Tobacco Business Act if their liquids contain nicotine derived from tobacco leaves. In such cases, e-cigarettes are subject to tobacco regulations, such as those related to age restrictions and advertising. The maximum allowable nicotine concentration level for e-cigarette liquids is 2%.

Foreign tobacco businesses such as Juul that wish to do business in South Korea must register their import-and-sales business with the appropriate authority. A registered importer may sell imported tobacco products to wholesalers and retailers, and may also establish direct retail shops in accordance with regulations.

Following reports of lung injury associated with e-cigarette use in the US, the Korean government issued recommendations that people stop using e-cigarettes in September and October 2019 because of health concerns. The government has been investigating health risks and has adopted plans to enhance the regulation of e-cigarettes. After the government recommendations were issued, major Korean retailers stopped selling flavored e-cigarettes.

Heat-not-burn tobacco products are gaining popularity in South Korea. The government announced in June 2018 that the level of tar detected in some of these products exceeded that of conventional cigarettes. Phillips Morris Korea filed a lawsuit in October 2018, seeking disclosure of the government's information.

I. E-Cigarette Regulation

According to a news article, e-cigarettes have been gaining popularity and “accounted for 13% of South Korea’s tobacco market by sales” as of June 2019.¹ However, noncombustible cigarettes (mentioned in Part IV, below) are more popular than e-cigarettes.²

A. Definition of “Tobacco” under the Tobacco Business Act

The Tobacco Business Act prescribes matters concerning the production and distribution of tobacco.³ The term “tobacco” is defined in the Act as “what is manufactured in a state suitable for smoking, sucking, inhaling steam, chewing or smelling, by using tobacco leaves as all or any part

¹ Sangmi Cha, *South Korea Warns of ‘Serious Risk’ from Vaping, Considers Sales Ban*, Reuters (Oct. 22, 2019), <https://perma.cc/SW2B-JBZY>.

² Id.

³ Tobacco Business Act, Act No. 4065, Dec. 31, 1988, amended by Act No. 14839, July 26, 2017, art. 1, <https://perma.cc/ZQB4-PWZ5>.

of the raw materials.”⁴ Therefore, if e-cigarette liquid contains nicotine derived from tobacco leaves, the product is covered by the Act.⁵ If e-cigarette liquid does not contain nicotine, or contains only synthetic nicotine or nicotine from the roots and stems of tobacco plants, the product is not covered by the Act.

B. Nicotine Concentration Limit

Each manufacturer or importer of e-cigarettes containing nicotine must indicate the amount of liquid nicotine on any packaging for a product that directly contains liquid nicotine, a disposable product that combines electronic cigarette kits with liquid nicotine, or an end package that accommodates container packs.⁶ The maximum allowable nicotine concentration level for e-cigarette liquids is 2%.⁷

C. Age Restrictions

A person may legally buy tobacco from January 1 of the year that he or she reaches the age of 19 under the Youth Protection Act.⁸ As noted above, the definition of “tobacco” is determined by the Tobacco Business Act.⁹ Therefore, persons under 19 may buy non-nicotine e-cigarettes and e-cigarettes with nicotine not derived from tobacco leaves.

D. Restrictions on the Sale, Advertising, and Promotion of Tobacco

The Tobacco Business Act prohibits postal or electronic sales of tobacco to consumers.¹⁰ The Act also requires warning messages on the packaging of tobacco products. These messages must clearly express that smoking is harmful to health. Tobacco advertisements via posters and in magazines must also include such clear messages.¹¹ Methods of advertising are limited to the following:

⁴ Id. art. 2, item 1.

⁵ According to a news article, the Supreme Court upheld a lower court judgment that ruled that electronic cigarettes constitute cigarettes under the Tobacco Business Act in 2018. Hyeon-ho Yeo, *Supreme Court Rules that E-Cigarettes Are Same as Regular Cigarettes and Require Production Permits*, Hankyoreh (Oct 3, 2018), <https://perma.cc/HL28-9FSR>.

⁶ Tobacco Business Act art. 25-2, para. 1; Enforcement Decree of the Tobacco Business Act, Presidential Decree No. 17267, June 30, 2001, amended by Presidential Decree No. 28471, Dec. 12, 2017, art. 9-2, para. 3, <https://perma.cc/LJ5S-6JL9>.

⁷ Kyonug-son Song, *Juul E-Cigarettes to Hit Korean Stores Tomorrow*, Korea Joongang Daily (May 23, 2019), <https://perma.cc/CG2D-ZKJX>.

⁸ Youth Protection Act, Act No. 11048, Sept. 15, 2011, amended by Act No. 15987, Dec. 18, 2018, art. 2, item 1 & item 4 (a)(ii), <https://perma.cc/3PU6-6ATY>.

⁹ Id. art. 2, item 4 (a)(ii).

¹⁰ Tobacco Business Act art. 12, para. 4.

¹¹ Id. art. 25, para. 1; Enforcement Decree of the Tobacco Business Act art. 8.

- Displaying or posting advertising materials within the retailer's place of business in a manner that is not visible from outside of the business
- Inserting an advertisement up to 10 times per year, of no more than two pages each time, in magazines, excluding those intended for women or juveniles
- Sponsoring social, cultural, musical, and sports events, excluding those intended for women or juveniles, without product advertisements
- Placing an advertisement in an airplane or a passenger ship operating on an international line¹²

These advertisement must not directly or indirectly encourage or induce non-smokers to smoke, depict the figures of women or juveniles, or include contents contrary to the smoking warning message.¹³ When these advertisement regulations are violated, the respective authority over manufacturers, importers, wholesalers, and retailers may issue an order that the violation be corrected or restrict the import or sale of the relevant tobacco product.¹⁴

The Act prohibits manufacturers, importers, or wholesalers of tobacco from promoting tobacco sales by offering money or goods to retailers.¹⁵ The Act also prohibits manufacturer or importers of tobacco from using any words, symbols, or any other indications that are likely to cause misconceptions about tobacco by treating health risks of tobacco lightly on the packaging or advertisements for tobacco products.¹⁶

II. Juul's Entry into Korea

Under the Tobacco Business Act, to import tobacco products into Korea an importer must register its import-and-sales business with the local government (*Do* level) that has jurisdiction over the place where the importer's headquarters is located.¹⁷ A registered importer may sell imported tobacco products to wholesalers¹⁸ registered with municipal governments and retailers¹⁹ designated by municipal governments.²⁰ Only designated retailers may sell tobacco products to consumers.²¹ An importer must file a report on the price of imported tobacco sold to consumers at least six days prior to commencement of sale.²²

¹² Enforcement Decree of the Tobacco Business Act art. 9, para. 1.

¹³ Id. art. 9, para. 3.

¹⁴ Tobacco Business Act art. 25, para. 3.

¹⁵ Id. art. 25-4.

¹⁶ Id. art. 25-5.

¹⁷ Tobacco Business Act art. 13, para. 1.

¹⁸ Id.

¹⁹ Id. art. 16.

²⁰ Id. art. 12, para. 1.

²¹ Id. art. 12, para. 2.

²² Enforcement Decree of the Tobacco Business Act art. 6.

According to a news article, Juul²³ established its local subsidiary, Juul Labs Korea, in late 2018.²⁴ Juul Labs Korea reportedly started selling its products at major convenience stores (GS25 and 7-Eleven), Lotte Duty Free Shop, and Shilla Duty Free Shop. Juul Labs Korea further established a direct retail shop.²⁵

III. Health Risk Assessment by the Government

Following reports of lung injury associated with e-cigarette use in the US, South Korea's Ministry of Health and Welfare recommended on September 20, 2019, that people refrain from using e-cigarettes until the causal relationship between the use of e-cigarettes and lung disease was clear. The Ministry also recommended that e-cigarette users experiencing respiratory abnormalities (cough, dyspnea, chest pain) should see a doctor immediately. In addition, the Ministry planned to conduct a study of patients with severe lung disease who visited hospitals and emergency rooms and were e-cigarette users. The Ministry also planned to review cases of side effects of e-cigarette use reported to the Consumer Protection Agency. Further, the Ministry planned to examine tetrahydrocannabinol (THC) and Vitamin E Acetate, which are suspected to be the cause of lung disease.²⁶

On October 23, 2019, the government again strongly recommended that people stop using e-cigarettes after Korea's first suspected case of lung damage due to e-cigarette use. The government stated that it planned to take the following measures:

- Amend the law and change the definition of "tobacco" to eliminate loopholes by the end of 2019
- Promptly complete research on the link between lung damage and e-cigarette use
- Ask e-cigarette manufacturers and importers to submit product data in accordance with the Basic Product Safety Act and the Consumer Basic Act

²³ Juul Labs, Inc., manufactures electronic cigarettes in the United States. *Juul Labs Inc.*, Bloomberg, <https://perma.cc/E6QZ-4GFB>. Its product, Juul, has a dominant 71% e-cigarette market share in the US, according to a recent market survey. Richard Craver, *Nielsen Report Finds Electronic Cigarette Sales Remaining on Downward Trend*, Winston-Salem Journal (Oct. 15, 2019), <https://perma.cc/FMZ8-ZX8T>.

²⁴ Cho Chung-un, *E-cigarette Maker Juul Labs Seeks Korean Market Entry*, Korea Herald (Mar. 12, 2019), <https://perma.cc/M3LR-D8TD>.

²⁵ Joohyun Lee, *JUUL and KT&G Go Head to Head in South Korea's Liquid E-Cigarette Market*, Etnews (May 31, 2019), <https://perma.cc/MTB9-U72W>.

²⁶ Press Release, Ministry of Health and Welfare, 보건복지부, 액상형 전자담배 사용 자제 권고 [Ministry of Health and Welfare Recommends Not to Use Liquid E-Cigarettes] (Sept. 20, 2019), <https://perma.cc/UM55-RX7R>.

- Strengthen import customs clearance procedures for nicotine solutions
- Control the illegal import and sale of e-cigarettes and educate the public about the harm associated with e-cigarette use²⁷

As part of its planned research, the government tested whether THC, Vitamin E Acetate, flavoring agents (diacetyl, acetoin, and 2,3-pentanedione), and other ingredients were detected in the liquids of 153 e-cigarettes distributed in Korea. On December 12, 2019, the government released the test results. THC was not detected, the government report said, but some Vitamin E Acetate was detected in 15 products. Flavoring agents were also detected in some products. Based on these results, the government reiterated its October 2019 recommendation that people refrain from using e-cigarettes. In addition, the government advised manufacturers, importers, and sellers of e-cigarette products to thoroughly control the quality of liquid e-cigarettes to exclude Vitamin E Acetate from liquids.²⁸

Following the Korean government's recommendation to stop using e-cigarettes due to health concerns, the South Korean Army has banned the use and possession of liquid e-cigarettes on its bases, according to a news article.²⁹ In addition, some major retailers of e-cigarettes in Korea suspended sales of flavored e-cigarettes.³⁰ After the government's reinforced recommendation in December, even more retailers suspended sales of flavored e-cigarettes.³¹

IV. Noncombustable Cigarettes

Noncombustable cigarettes, also known as “heat-not-burn” tobacco products, such as IQOS by Phillip Morris International, “generally heat dry tobacco to create an aerosol that the user inhales.”³² Because these products use tobacco leaves, they are subject to tobacco regulations, such as the age restrictions and sales regulations described above. Heat-not-burn tobacco products are rapidly becoming popular in South Korea.³³

According to a news article, the Ministry of Food and Drug Safety announced to the public in June 18 that five cancer-causing substances were found in heat-not-burn tobacco products sold in Korea and that the level of tar detected in some of them exceeded that of conventional cigarettes.

²⁷ Press Release, Ministry of Health and Welfare, 액상형 전자담배 사용중단 강력 권고 [Strong Recommendation to Stop Liquid E-Cigarette Use] (Oct. 23, 2019), <https://perma.cc/HWK2-WPL7>.

²⁸ Press Release, Ministry of Health and Welfare, 국내 액상형 전자담배 내 유해 의심성분 분석결과 발표 [Announcement of Results of Analysis of Suspected Harmful Substances in Domestic Liquid E-Cigarettes] (Dec. 12, 2019), <https://perma.cc/243N-MDFP>.

²⁹ *South Korea Bans Liquid E-Cigarettes on Army Bases*, Reuters (Nov. 10, 2019), <https://perma.cc/44SN-JGX9>.

³⁰ Han-soo Lee, *Liquid-type E-Cigarettes on Verge of Disappearing from Korean Markets*, Korea Biomedical Review (Oct. 25, 2019), <https://perma.cc/VQC5-JJSU>.

³¹ *Convenience Stores Continue to Halt Sales of Flavored E-Cigarettes*, Yonhap News (Dec. 13, 2019), <https://perma.cc/FMN7-EF9L>.

³² *How Are Non-Combusted Cigarettes, Sometimes Called Heat-Not-Burn Products, Different from E-Cigarettes and Cigarettes?*, USDA (Oct. 16, 2019), <https://perma.cc/87AF-XDSH>.

³³ *Korea World's No. 2 Heated Tobacco Market*, Korea Times (July 9, 2019), <https://perma.cc/3BV4-7T53>.

Philip Morris Korea asked the Ministry to provide relevant information on its research results, including the method of analysis and the experimental data, but the Ministry declined the request. Phillips Morris Korea then filed a lawsuit in October 2018, seeking to force the disclosure of the information.³⁴ The Ministry filed a response on November 26, 2019.³⁵ No subsequent information on the status of the case was found.

V. Consumption Tax Hike for Vaping Products

According to a news article, the National Assembly of South Korea enacted a law to raise taxes on “vaping products” in November 2017.³⁶ The law calls for an increase in the consumption tax for “vaping products” from 126 Won (about US\$0.11) to 529 Won (US\$0.45).³⁷

³⁴ *Philip Morris Files Suit against Seoul Govt. for Information Disclosure*, Korea Herald (Oct. 1, 2018), <https://perma.cc/V5H7-LJP5>.

³⁵ *S. Korea Counters Philip Morris’ Info Disclosure Lawsuit*, Korea Bizwire (Nov. 26, 2018), <https://perma.cc/M4TM-YQCJ>.

³⁶ Deok-hyun Kim, *Battle for E-Cigarettes Set to Intensify in S. Korea*, Yonhap (Nov. 17, 2017), <https://perma.cc/R497-6VJU>. This article includes noncombustible cigarettes as e-cigarettes.

³⁷ *Id.*

Sweden

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SUMMARY The use of e-cigarettes, like the use of ordinary nicotine cigarettes, is relatively limited in Sweden.

Sweden regulates e-cigarettes similarly to ordinary cigarettes. As a result, e-cigarettes may not be used in outdoor seating areas, close to entrances of public buildings, on public transport, etc. E-cigarettes may not be sold to minors and may only be sold by designated vendors, and e-cigarette liquids may not contain nicotine in quantities of more than 20 mg/mL.

All production and imports of e-cigarettes, or products relating to e-cigarettes, must be notified to the Public Health Agency of Sweden (Folkhälsomyndigheten). Currently, there are more than 14,000 e-cigarette products registered in Sweden (not all of which are currently sold in Sweden). Nicotine salts are not forbidden, but must conform to the nicotine limit. While flavored conventional tobacco cigarettes will become illegal in 2020, there are currently no rules limiting flavors in e-cigarettes. Consumption of cannabis, CBD, and THC is illegal in Sweden and e-cigarettes may therefore not contain such ingredients.

Advertising of e-cigarettes on television or radio, through product placement, in print, as well as on billboards is prohibited. E-cigarette packaging must contain health warnings.

Although the Swedish government has not conducted any health surveys on the effects of e-cigarettes, it has made reference to studies in other Nordic countries and issued statements declaring that e-cigarettes should not be used as a smoking cessation device. There have been no reports of fatalities linked to the use of e-cigarettes, but two reported injuries are believed to be linked to vaping.

I. Introduction

A. Swedish Tobacco Policy

Sweden has set a goal of becoming “smoke-free” by the year 2025.¹ Sweden regulates tobacco as well as e-cigarettes in the *Tobakslagen* (Tobacco Act).² The law was amended in 2019 to make

¹ Proposition [Prop.] 2018/19:43 Kompletterande bestämmelser till lagen om tobak och liknande produkter 4445, <https://perma.cc/5DAW-68E5>. “Smoke-free” is defined by the government as when less than 5% of the population smokes. At current levels, it is estimated that 10% of Swedes are smokers. Id.

² 1 kap. 2 § Lag (SFS 2018:2088) om tobak och liknande produkter (Tobakslagen) [Tobacco Act], <https://perma.cc/F4YK-TPZ5>.

smoking illegal in several public places and to increase the regulation of the sale of tobacco.³ The law applies equally to the use of both tobacco products and e-cigarette products, meaning smoking is prohibited generally in most public spaces, irrespective of the product used.⁴ E-cigarettes are also governed by European Union (EU) law.⁵ For tax purposes, e-cigarette products are taxed similar to ordinary nicotine products.⁶

E-cigarettes are defined in EU law,⁷ and that definition has been transposed⁸ into Swedish law: “electronic cigarette: product that may be used for consumption of nicotine vapor via a mouth piece, or a part of that product, including a cartridge, a container, and the device without the cartridge or the container.”⁹

B. Usage Statistics

According to the Public Health Agency of Sweden, approximately 1% of the Swedish population aged between 17 and 84 years smoked e-cigarettes daily in 2017.¹⁰ In 2018, 2% of the Swedish population had used e-cigarettes within the previous 30 days, and one-third of these people (i.e., approximately 0.7% of the entire population, and closer to 1% for the population aged 17-84) used e-cigarettes daily.¹¹ A majority of users used nicotine in their e-cigarettes.¹² Men and persons aged between 17 and 29 years were overrepresented.¹³ Men were twice as likely to have used e-cigarettes as women and as many as 5% of the population aged between 17 and 29 had used e-cigarettes within the 30 day period.¹⁴

³ Regeringens proposition 2017/18:156 Ny lag om tobak och liknande produkter, <https://perma.cc/9MLZ-B4J3>. See also Elin Hofverberg, *Sweden: New Rules on Smoking in Public Places and Sale of Tobacco Enter into Force*, Global Legal Monitor (Sept. 25, 2019), <https://perma.cc/62HM-K5F4>.

⁴ 6. kap. 1 § 3 item Tobakslagen. See also Hofverberg, *supra* note 3.

⁵ Tobacco Products Directive 2014 O.J. (L 127) 1, <https://perma.cc/WQX8-9CMC>. See also Socialutskottetsbetänkande 2016/17:SoU17 (May 2017), <https://perma.cc/P5CC-6E3W>.

⁶ Press Release, Sveriges Riksdag, Skatteutskottets bet 2017/18:SkU17 Beskattning av elektroniska cigaretter och vissa andra nikotinhaltiga produkter (May 30, 2018), <https://perma.cc/NWN9-LDJ4>. See also Elin Hofverberg, *Sweden: New Tax on Electronic Cigarettes and Other Non-Tobacco Nicotine Products Takes Effect*, Global Legal Monitor (July 26, 2018), <https://perma.cc/9HPY-ZCJJ>.

⁷ Tobacco Products Directive art. 2, no. 16.

⁸ Originally transposed through Lag om elektroniska cigaretter och påfyllningsbehållare (SFS 2017:425), <https://perma.cc/3CT3-7P6X>.

⁹ 1 kap. 3 § 1 item Tobakslagen (translation by author). Definition originally included in 2 § Lag om elektroniska cigaretter och påfyllningsbehållare (SFS 2017:425).

¹⁰ *E-cigaretthbruk och hälsoeffekter*, Folkhälsomyndigheten, <https://perma.cc/7MSQ-2W52>.

¹¹ Martina Zetterqvist & Mats Ramstedt, *Tobaksvanor i Sverige 2003-2018*, at 6 & 30 (CAN Rapport 183, 2019), <https://perma.cc/9WL3-BZCX>.

¹² *Id.* at 30.

¹³ *Id.* at 6.

¹⁴ *Id.* at 6 & 31.

A Centralförbundet för Alkohol och Narkotika Upplysning (CAB) report from 2018 that surveyed tobacco use in Sweden between 2003 and 2018 found that e-cigarettes are more commonly used by persons who also use other tobacco products, such as cigarettes or snus (moist snuff), with 6% of smokers using e-cigarettes within the last 30 days compared to only 1% of non-smokers.¹⁵ According to the report, people surveyed consistently underestimate their own use, especially purchases.¹⁶ Overall, as measured in 2018, the use of e-cigarettes was markedly low in Sweden.¹⁷ In contrast, as many as 15% sporadically used ordinary tobacco cigarettes and 16% used snus on a sporadic basis (defined as at least once in the last 30 days).¹⁸ About 7% of the population used ordinary tobacco cigarettes daily.¹⁹ Some have argued that Swedes have switched from cigarettes (which are increasingly hard to use as their use is prohibited in several public places) to instead use snus, which can be used anywhere.²⁰ Sweden's largest producer of snus, Swedish Match, has declared that it shares this view, and that replacing smoking with moist snuff (snus) is in fact its mission.²¹

A 2019 report by the Nordic Welfare Centre estimated that Sweden was, together with Finland, the Nordic country where e-cigarettes were least prevalent.²² Both countries were estimated to have 1% of the population that used e-cigarettes, compared to 4.8% in Iceland, 3% in Denmark, and 1.2% in Norway.²³ The report did not manage to address the percentage of e-cigarette users that use flavored additives, even though the title of the report was the significance of flavor additives in the use of moist snuff and e-cigarettes.²⁴ The report still concluded that the flavors are “a leading cause” for youths starting to use these products, relying on US data.²⁵

¹⁵ Id. at 31.

¹⁶ Id. at 18.

¹⁷ Id. at 33.

¹⁸ Id. at 19.

¹⁹ Id. at 21.

²⁰ Ingeborg Lund & Karl Erik Lund, *How Has the Availability of Snus Influenced Cigarette Smoking in Norway?*, 11(11) Int. J. Environ. Res. Public Health 11705 (2014), <https://perma.cc/24VJ-AFDS>

²¹ @Swedish_Match, Twitter (Jan. 2, 2017, 5:33 am), <https://perma.cc/WY8T-WSB8>; @Swedish_Match, Twitter (Jan. 2, 2017, 5:34 am), <https://perma.cc/A9HK-2HQ8>.

²² Nadja Frederikse, *The Significance of Flavor Additives in the Use of Moist Snuff and E-Cigarettes – With a Focus on Young People and the Nordic Region* (Nordic Welfare Center, Jan. 2019), <https://perma.cc/SQ7Z-EETY>.

²³ Id. at 9.

²⁴ Id. at 18.

²⁵ Id.

II. Rules Applicable to E-Cigarettes

A. Restrictions on Imports, Sale, and Use

The sale of tobacco and e-cigarettes is strictly regulated in Sweden. Six months prior to placing a new e-cigarette product on the Swedish market, the producer, importer, or vendor must notify the Public Health Agency of its planned introduction of its product.²⁶ Such notification must include the following information:

1. the name and contact information of the producer, a responsible legal or physical person within the European Union and, where applicable, the importer to the Union,
2. a list of all ingredients that are included in the product as well as all the emissions that result from the use of the product, divided by brand and version, with information on quantity,
3. toxicological information on the ingredients of the product and emissions, including when heated, especially on the effects on the consumer's health during inhalation, and taking into account possible addictive effects,
4. information regarding nicotine levels and nicotine uptake during consumption under conditions that are normal or which can be anticipated,
5. a description of the product's parts, including the electronic cigarette or the refill container's opening and refill mechanism,
6. a description of the production process, including whether it includes serial production, and an assurance that the production process is compliant with the requirements imposed on electronic cigarettes and refill containers, and
7. an assurance that the producer and the importer will accept full responsibility for the quality of the product and for its safety when it is offered to consumers on the market and is used under normal conditions as well as conditions that can be anticipated.²⁷

The Public Health Agency keeps a list of products for which it has received notifications.²⁸ As of November 29, 2019, a total of 14,128 e-cigarette related ingredients/products were registered with the Public Health Agency.²⁹ Out of these, 178 (about 1%) are produced in Sweden, whereas 992 (about 7%) are made in the United States.³⁰ Not all of these products are currently sold in Sweden.

In October 2019, the Swedish Tobaksfakta (an independent tobacco think-tank) reported that Juul e-cigarettes were going to be imported and launched in Sweden.³¹ This type of e-cigarette has previously not been widespread in Sweden.³²

²⁶ 2 kap. 7 § Tobakslagen.

²⁷ 2 kap. 3 § Förordning (2019:223) om tobak och liknande produkter, <https://perma.cc/T2W8-SL2P> (translation by author).

²⁸ Folkhälsomyndigheten, *Ingrediensuppgifter gällande E-cigaretter*, <https://perma.cc/5CYK-X638>.

²⁹ Id.

³⁰ Id.

³¹ *Omstridd e-cigarette på väg till Sverige*, Tobaksfakta (Oct. 3, 2019), <https://perma.cc/GDU5-SR5U>. Note that as the Public Health Agency received the notification in October 2019, the sale of these products can start no sooner than April 2020.

³² Id.

E-cigarettes that contain nicotine may only be sold by approved vendors, following a written application to the local municipality.³³ To become an approved vendor the applicant must show that “he or she, considering the personal and financial conditions and other pertinent circumstances, is suitable to perform [tobacco sale] activity and that the activity will be operated in accordance with the legal requirements [thereof].”³⁴ E-cigarettes that do not contain nicotine, and therefore are not considered a tobacco product, may be sold upon notification to the municipality where the product is to be sold.³⁵ The vendor is responsible for setting up and maintaining a self-monitoring system that shows how the vendor plans to oversee its own compliance with the rules of sale for e-cigarettes, both those containing nicotine and those that do not.³⁶

As mentioned above, e-cigarettes may only be used in areas where ordinary cigarettes may be used, and may generally not be used indoors, in public outdoor seating areas or wait areas, or close to child care facilities.³⁷ Specifically, e-cigarettes and ordinary cigarettes may not be used in the following places:

1. Venues and facilities used for child care, school activities, or other activities for children or youths, including school yards, and other similar outdoor areas in connection to preschools and after care facilities,
2. venues and facilities to be used for health care,
3. venues and facilities that are used for common use in living spaces or facilities with special service or care [i.e. including senior living facilities],
4. on public transport or in facilities that are used as waiting areas for such facilities, both indoor and outdoor,
5. in restaurants and other places where food and beverages are served,
6. facilities used for public assembly,
7. other facilities that the public has access to,
8. fenced areas outside that are used for sport activities,
9. at playgrounds that the public has access to, and
10. at entrances to such spaces that are mentioned in 1-7 that the public has access too.³⁸

The restrictions on use do not apply to a person’s own residence or indoor facilities that are specifically designated for smoking, including separate smoking rooms in restaurants.³⁹ Notably, rooms in restaurants that are used for smoking may not also be used to serve customers food or

³³ 5 kap. 1, 3 §§ Tobakslagen.

³⁴ Id. 5 kap. 2 §.

³⁵ Id. 5 kap. 15 §.

³⁶ Id. 5 kap. 6 and 17 §§.

³⁷ Id. 6. kap. 1 § 3 item, 2 §.

³⁸ Id. 6 kap. 2 § (translation by author).

³⁹ Id. 6 kap. 4 §, and 6 kap. 5-6 §§.

beverages.⁴⁰ Owners, or responsible users such as lessees, are responsible for enforcing the smoking restrictions at and outside their facilities, and must inform patrons of the smoking ban.⁴¹

B. Age Restrictions

A person must be aged over 18 years in order to purchase e-cigarettes. The rules relating to importing and selling e-cigarettes also require that the relevant person be aged over 18 years.⁴²

C. Safety Requirements

By law, “producers, importers, and distributors of electronic cigarettes and refill containers must establish and maintain a system to collect information on all suspected harmful effects that these products have on people’s health. Upon request, the information must be provided to the Public Health Agency.”⁴³ In addition, producers, importers, and distributors have a special responsibility to withdraw or recall the product when it has a reason to suspect that the product is not safe,⁴⁴ and must also notify the Public Health Agency.⁴⁵

D. Caps on Nicotine Concentration and Use of Nicotine Salts

The EU Tobacco Products Directive sets the maximum nicotine content limit for e-cigarettes at 20 mg/mL.⁴⁶ Sweden has chosen to adopt this limit, rather than setting a stricter limit.⁴⁷ Nicotine salts typically contain a higher nicotine content than other nicotine products. Nicotine salts are not specifically banned under Swedish law, but must abide by Swedish nicotine limits. Individual cigarettes may not contain more than 1 mg nicotine.⁴⁸ Fluids that contain nicotine may not contain more than 20 mg/mL.⁴⁹ Approved salts that can be found among the products listed by the Public health Agency and include “Strawberry Gone Wild Salt 20mg,”⁵⁰ SaltNicShot 50/50,⁵¹ and

⁴⁰ Id. 6 kap. 6 §.

⁴¹ Id. 6 kap. 8-9 §§.

⁴² Id. 5 kap. 20 § (import), 5 kap. 18 § (sale), 5 kap. 19 § (control of age).

⁴³ Id. 2 kap. 10 § 1 para and 2 para.

⁴⁴ Id. 2 kap. 11 § 1 para and 2 para.

⁴⁵ Id. 2 kap. 11 § 2 para.

⁴⁶ Tobacco Products Directive art. 20, para. 3 (a), (b).

⁴⁷ 2 kap. 9 § 2 item, and 10 § Förordning (2019:223) om tobak och liknande produkter.

⁴⁸ 2 kap. 1 § Folkhälsomyndighetens föreskrifter om gränsvärden och mätmetoder av tjära, nikotin och kolmonoxid samt krav för laboratorier vid verifiering av mätningar (HSLF-FS 2016:43), <https://perma.cc/R8GN-BYHB>.

⁴⁹ 2 kap. 10 § Förordning (2019:223) om tobak och liknande produkter.

⁵⁰ *Ingrediensuppgifter gällande E-cigarett*, supra note 28, No. 165.

⁵¹ Id. No. 646.

SaltNicShot 70/30,⁵² and “NIKOTIN-SALT 20MG/ML 50/50 VG/PG, Salt Shot VPG-20, NicSalt Shot VPG-20.”⁵³

E. Flavors of E-Cigarettes

Swedish e-cigarettes may contain flavors, but they may not in conjunction with nicotine.⁵⁴

F. Other Chemical Ingredients Used in E-Cigarettes

E-cigarettes may only contain other chemicals if they do not also contain nicotine.⁵⁵ Thus, vitamins may be used in e-cigarettes, but not if the e-cigarette also contains nicotine.⁵⁶ Cannabis is illegal in Sweden, thus e-cigarettes may not contain cannabis, CBD, or THC.⁵⁷

G. Packaging

Producers and importers are responsible for ensuring that the packaging of e-cigarettes and refill containers provides health warnings:⁵⁸

If a packaging for an electronic cigarette or refill container lacks health warnings, the product may not be provided to consumers on the market. The same applies if the health warnings do not comply with regulations on the design of the warnings that have been issued with the support of Chapter 11. § 7.

...

4 § The marking on electronic cigarettes and refill containers or on the packaging of such products shall not be permitted if it

1. indicates that a certain electronic cigarette or refill container is less harmful than other such products;
2. contains information on the content of tar or carbon monoxide in the product;
3. resembles a food or cosmetic product;
4. indicates that a particular product has environmental benefits; or
5. refers to fragrance or additives, except for seasonings.

Individual packages and any outer packaging for electronic cigarettes and refill containers may not imply financial benefits by including printed coupons, discount offers, free distribution, two items at the price of one or similar offers.

⁵² Id. No. 734.

⁵³ Id. No. 2310.

⁵⁴ Jonas Löfvenberg, *Här är vad som gäller för e-cigaretter i Sverige*, SVT (Nov. 9, 2019), <https://perma.cc/NJ6S-NL8J>. For the impact of flavors generally on the use of tobacco and e-cigarettes in the Nordic countries, see Frederikse, *supra* note 22.

⁵⁵ Löfvenberg, *supra* note 54.

⁵⁶ Id.

⁵⁷ Förordning om ändring i förordningen (1992:1554) om kontroll av narkotika (SFS 2019:611), <https://perma.cc/K9N9-QELA>.

⁵⁸ 3 kap. 2 § Tobakslagen.

5 § Individual packaging for electronic cigarettes and refill containers shall contain an information sheet.

Producers and importers of electronic cigarettes and refill containers are responsible for ensuring that individual packaging for such products contains an information sheet.

If an individual packaging for an electronic cigarette or refill container lacks information sheets, the product may not be provided to consumers on the market. The same applies if the information sheet does not have the content and format that follows from regulations that have been communicated with the support of Chapter 11. 6 § 6.

6 § Packages for electronic cigarettes and refill containers shall be provided with a content declaration. Manufacturers and importers are responsible for providing packaging for electronic cigarettes and refill containers with a content declaration.⁵⁹

H. Advertising

All advertising of tobacco products is banned in Sweden.⁶⁰ This includes advertising on television, radio, in print, and on billboards.⁶¹ Indirect advertisement on social media is not directly regulated.

The advertising of e-cigarettes is specifically regulated in the fourth chapter of the Tobacco Act.⁶² E-cigarettes may not be used as a “product placement” on television.⁶³ In addition, producers, vendors, and importers of tobacco products, as well as e-cigarettes, may not sponsor programs or events.⁶⁴

All advertisements made in Sweden must also adhere to the Marketing Act.⁶⁵

The use of Instagram for purposes of advertising or promoting vaping or the use of e-cigarettes is not specifically regulated in Sweden. However, reportedly, watch groups and Instagram have come together to ban such promotions from the site.⁶⁶

⁵⁹ Id. 3 kap. 4-6 §§.

⁶⁰ SOU 2004:88 Marknadsföring av tobaksvaror m.m., <https://perma.cc/9GJJ-ZVPF>.

⁶¹ 4 kap. Tobakslagen.

⁶² 4 kap. 3 § Tobakslagen. See also Löfvenberg, *supra* note 54; *Marknadsföring av elektroniska cigaretter (e-cigaretter)*, Konsumentverket (Oct. 3, 2018), <https://perma.cc/KZ7M-BG4C>.

⁶³ 6 kap. 2 § 6 item Radio-och tvlag (2010:696), <https://perma.cc/2MQ4-8HJP>. For the definition of “product placement” see 3 kap. 1 § 10 item Radio-och tvlag.

⁶⁴ Id. 4 kap. 8 §.

⁶⁵ Marknadsföringslag (2008:486), <https://perma.cc/L8MF-A89S>.

⁶⁶ Mark Sweney, *Advertising Watchdog Bans E-Cigarette Promotion on Instagram*, The Guardian (Dec. 17, 2019), <https://perma.cc/8EG3-B4XT>.

I. Regulation of E-Cigarette Environmental Waste

There is no specific legislation in Sweden or the EU that specifically addresses environmental waste from the disposal, storage, and recycling of e-cigarettes. However, EU requirements on the handling of batteries apply (see the EU survey in this report). Thus, under Swedish law, all electronic and battery-operated equipment, including e-cigarettes, must be sorted and disposed of separately.⁶⁷ Waste management companies also recommend reselling electric equipment (such as e-cigarettes) that still work.⁶⁸

III. Health Effects and Use for Smoking Cessation

The Swedish government agency responsible for the regulation of e-cigarettes is the Public Health Agency, which must

promote good public health, evaluate the effects of methods and strategies in the public health field, monitor the health of the population and factors affecting it, through knowledge building and dissemination of knowledge, promote health and prevent diseases and injuries and promote effective infection prevention. The business must be on a scientific basis. Particular importance should be attached to the groups most at risk of ill health.⁶⁹

The Public Health Agency is therefore responsible for evaluating the effects of e-cigarettes on the Swedish population.⁷⁰ As of December 2019, the Agency has not made its own report on the effects on health of the use of e-cigarettes, but links to a 2015 report from its Norwegian counterpart (Norges Folkehelseinstitutt) on its website.⁷¹ That report found that the nicotine level consumed by using e-cigarettes was roughly the same as the nicotine amount consumed while using ordinary cigarettes, and therefore concluded that the health effects of e-cigarettes were comparable to those of ordinary cigarettes with a similar nicotine content.⁷²

In December 2019, the Public Health Agency issued a press release on the possible relationship between lung injuries and e-cigarettes,⁷³ as well as one on lung disease and vaping.⁷⁴ It specifically links the deaths in the United States to the use of vitamin E-acetat and THC, both being substances that cannot be legally used in e-cigarettes in Sweden.⁷⁵ Two possible cases of lung injuries

⁶⁷ 25 § Avfallsförordning (2011:927), <https://perma.cc/7QUW-L55C>. See also *Elcigarett/e-cigarett sorteras som Elavfall*, Dalavfall, <https://perma.cc/G89A-7ZZD>.

⁶⁸ *Elcigarett/e-cigarett sorteras som Elavfall*, *supra* note 67.

⁶⁹ 1 § Förordning (SFS 2013:1020) med instruktion för Folkhälsomyndigheten, <https://perma.cc/63WX-Y2PB>.

⁷⁰ *Id.* 2 §.

⁷¹ *E-cigarettbruk och hälsoeffekter*, Folkhälsomyndigheten, <https://perma.cc/XRQ7-Q9BT>.

⁷² Folkehelseinstituttet, *Helserisiko ved bruk av e-sigaretter* (2015), <https://perma.cc/3PB9-AGJF> (English summary at pages 13-16).

⁷³ *Elektroniska cigaretter och lungskador*, Folkhälsomyndigheten, <https://perma.cc/59P3-VDVE>.

⁷⁴ *Misstänkta lungskador efter vejpning*, Folkhälsomyndigheten, (Dec. 11, 2019), <https://perma.cc/PAK3-TUNT>.

⁷⁵ *Id.*

connected to the use of e-cigarettes have been reported in Sweden, but a linkage between the two has not been scientifically proven.⁷⁶

According to a September 2019 news article, there are no known deaths linked to e-cigarettes in Sweden.⁷⁷ However, according to a European Commission report, Sweden had 121 reported e-cigarette exposure cases between January 2012 and March 2015.⁷⁸

In its statements, the Public Health Agency clearly expresses that e-cigarettes are “neither approved nor recommended” as a tool to quit smoking.⁷⁹

⁷⁶ Id.

⁷⁷ TT, *Inga svenska dödsfall kopplade till e-cigg*, Aftonbladet (Sept. 10, 2019), <https://perma.cc/2KX3-WP2D>.

⁷⁸ European Commission, *Study on the Identification of Potential Risks to Public Health Associated with the Use of Refillable Electronic Cigarettes and Development of Technical Specifications for Refill Mechanisms: Final Report Annex B-6* (May 2016), <https://perma.cc/USX8-BUEF>.

⁷⁹ *Elektroniska cigaretter och lungskador*, *supra* note 73.

Taiwan

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SUMMARY Taiwan has not passed a law specifically regulating e-cigarettes. The legislature is considering an amendment to its tobacco control law that would ban the manufacture, import, sale, presentation, and advertisement of e-cigarettes or any parts, essence, or liquids that may be used in e-cigarettes. If any e-cigarettes are found effective as smoking cessation aids, they could be evaluated and licensed as drugs or medical devices under the pharmaceutical law and excluded from the proposed ban.

The draft amendment would also expand the definition of “smoking” to include the use of e-cigarettes. If the draft is adopted, the restrictions on smoking conventional tobacco products, such as the age limit and smoke-free environment rules, would also apply to the use of e-cigarettes.

I. Current Regulation of E-Cigarettes

Taiwan has not passed a law specifically regulating e-cigarettes. Currently, e-cigarettes may be subject to several existing laws, in particular the Pharmaceutical Affairs Act¹ and the Tobacco Hazards Prevention Act.²

First, nicotine-containing e-cigarettes are regulated as medicines under the Pharmaceutical Affairs Act. So far, the authority has not granted drug licenses to any e-cigarette products in accordance with this Act. Those not containing nicotine or other medicinal ingredients but claiming to have therapeutic effects such as smoking cessation may also violate this Act, which prohibits labeling or advertising therapeutic effects of nondrug products.³

Furthermore, e-cigarettes that are nicotine-free but look like tobacco products are subject to the Tobacco Hazards Prevention Act, which prohibits the manufacture, import, or sales of any objects in the form of tobacco products.⁴

¹ Pharmaceutical Affairs Act (promulgated Aug. 17, 1970, amended Jan. 31, 2018), <https://perma.cc/8PXG-L3JG> (in Chinese), English translation at <https://perma.cc/L7MS-8NXN>.

² Tobacco Hazards Prevention Act (promulgated Mar. 19, 1997, amended Jan. 23, 2009), <https://perma.cc/VHD2-53JW> (in Chinese), English translation at <https://perma.cc/DJ37-BLXG>.

³ Legislative Yuan, Republic of China (Taiwan), Legal Issues on Tobacco Hazards Prevention Concerning E-Cigarettes and Heated Tobacco Products (Oct. 5, 2019) (Legislative Yuan Report), <https://perma.cc/7JKJ-AVXG> (in Chinese).

⁴ *Id.*; Tobacco Hazards Prevention Act art. 14.

If, however, a product does not contain nicotine, does not look like a tobacco product, or does not claim to have therapeutic effects, it may not be banned under the current legal framework, according to a report released by the Legislative Yuan in October 2019.⁵

II. Legislation under Consideration

On December 21, 2017, the Executive Yuan submitted a draft amendment to the Tobacco Hazards Prevention Act to the Legislative Yuan, proposing to implement a ban on e-cigarettes through this law.⁶

A. Manufacture, Sale, and Advertisement

The draft amendment proposes to add a provision to the Tobacco Hazards Prevention Act to prohibit the manufacture, import, sale, presentation, and advertisement of e-cigarettes or any parts, essence, or liquids that may be used in e-cigarettes, except for those licensed as drugs or medical devices, which are thus subject to the pharmaceutical laws.⁷

B. Smoking Cessation Claims

According to the Legislative Yuan report, Taiwan does not plan to introduce a blanket ban on e-cigarettes, considering the research on their effects has not been concluded. If any of the emerging products are indeed effective as smoking cessation aids, the product can be evaluated and licensed in accordance with the pharmaceutical law and legally go on the market. Currently, however, the scientific statistics are not sufficient to support those therapeutic claims.⁸

C. Restrictions on Age and Use

The draft amendment also proposes to revise the definition of “smoking” under the Tobacco Hazards Prevention Act to include the use of e-cigarettes.⁹ Therefore, the restrictions on the smoking of conventional tobacco products, such as the age limit and smoke-free environment rules, would also apply to e-cigarettes, if the amendment is adopted.

If the amendment is adopted, minors under 18 years of age and pregnant women would be prohibited from using e-cigarettes.¹⁰ Other people would be prohibited from providing e-cigarettes or any parts, essence, or liquids that may be used in e-cigarettes to minors. Forcing,

⁵ Legislative Yuan Report, *supra* note 3.

⁶ Executive Yuan Draft Amendment to Tobacco Hazards Prevention Act, Legislative Yuan Bill No. 1061222070100200 (Dec. 27, 2017) (Draft Amendment), Legislative Yuan website, <https://perma.cc/T9DE-BYQV> (in Chinese).

⁷ *Id.* art. 14.

⁸ Legislative Yuan Report, *supra* note 3.

⁹ Draft Amendment art. 2, *supra* note 6.

¹⁰ *Id.* art. 12.

inducing, or using any other means to cause a pregnant woman to use e-cigarettes would also be prohibited.¹¹

III. Health Risks Addressed by Government

The government has addressed the health risks that may be caused by e-cigarettes, including nicotine addiction, harmful ingredients such as formaldehyde and acetaldehyde that may cause cancer, and the danger of explosions.¹²

A survey conducted by Taiwan's Ministry of Health and Welfare concluded that e-cigarettes pose a threat to the health of Taiwanese children and youth. According to the survey, the rate of e-cigarette smoking grew from 2.0% in 2014 to 3.7% in 2017 among middle school students and from 2.1% to 4.8% during the same period among high school students.¹³

The Ministry of Health and Welfare has launched an e-cigarette prevention column on its official website, providing free resources, such as Q&As and posters, for educating the public about the risks associated with the use of e-cigarettes.¹⁴

¹¹ Id. art. 13.

¹² Draft Amendment, General Description, *supra* note 6.

¹³ Id.

¹⁴ Health Promotion Administration, Ministry of Health and Welfare, *E-Cigarette Prevention Zone*, <https://perma.cc/WWW7-7XQJ> (in Chinese).

Turkey

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SUMMARY Turkish law does not currently provide for an unambiguous legal framework for the regulation of electronic cigarettes (e-cigarettes). The current policy of the Government of Turkey is that the use, sale, and advertisement of e-cigarettes are regulated under the legal framework set for the use, sale, and advertisement of tobacco products. The Government also appears to accept, theoretically, that under the current legal framework, e-cigarettes may be imported as medical devices, provided that their safe use in nicotine cessation therapies is demonstrated to the Ministry of Health. Similarly, the Government's position regarding refills appears to be that e-cigarette refills containing nicotine may be produced and imported as human medicinal products, provided that they are licensed by the Ministry of Health. However, the Government maintains that use of refills (whether or not they contain nicotine) also would be subject to the limitations provided in the legal framework concerning the use, sale, and advertisement of tobacco products. The Government reports that no license or importation permit has been issued for any e-cigarette or refill product so far, and the Ministry of Health has reiterated its position on many occasions that it does not view e-cigarettes as a safe and proven method for nicotine cessation.

The Government recently stated its intention to present a draft bill that would unambiguously ban the marketing of e-cigarettes in Turkey. However, no such bill has been submitted to the Parliament yet.

I. Introduction

It appears that since their introduction to the Turkish market circa 2007-2008, the Turkish government has consistently held that the use of electronic cigarettes (e-cigarettes) should be considered a public health hazard on a par with regular cigarette smoking in the context of Turkey's tobacco control policy. It has developed a control strategy in line with the World Health Organization's Framework Convention on Tobacco Control,¹ to which Turkey is a party.

II. Availability of National Statistics on E-Cigarette Use

It appears that Turkish state institutions have not yet published a statistical study at the national or regional level that contains variables specific for e-cigarette use. The latest relevant publication of Turkey's national statistics agency TURKSTAT, the *Health Statistics Yearbook* (2017), includes statistics for sex and age group distributions for use of "tobacco products." According to this study, in 2016, 26.5% of the population (40.1% of males, 13.3% of females) reported that they used tobacco products daily, 4.1% of either sex reported that they used them occasionally, 12.9%

¹ World Health Org. [WHO] Framework Convention on Tobacco Control, *adopted* May 21, 2003, 2302 U.N.T.S. 166 (entered into force Feb. 27, 2005), <https://perma.cc/7NCT-C3CD>.

responded that they had quit (19.3% of males, 6.7% of females), and 56.5% responded that they had never used tobacco products (36.6% of males, 75.9% of females).²

Our research did not find any published independent statistical survey that addressed e-cigarette usage in Turkey.

III. Regulation of E-Cigarettes and Refills

A. Overview

Currently, there is no legal framework in Turkish law specific to the regulation of e-cigarettes and their refills. The Government's policy appears to be based on the understanding that the use, sale, and advertisement of e-cigarettes are regulated under the legal framework set for the use, sale, and advertisement of tobacco products, and that e-cigarettes may be imported only as medical devices, provided that their safe use in nicotine cessation therapies is demonstrated to the Ministry of Health. Similarly, the Government's position regarding refills appears to be that e-cigarette refills containing nicotine are regulated under both the framework regarding medical substances and that for the use, sale, and advertisement of tobacco products, while refills that do not contain nicotine are only subject to the latter framework.

B. Ministry of Health's Position on Regulation of E-Cigarettes and Refills

On January 22, 2008, the Ministry of Health General Directorate for Pharmaceuticals and Pharmacies issued a circular letter to the attention of provincial health and customs directorates stating that the importation and sale of e-cigarettes and refills were illegal without a license obtained from the Ministry on the basis of the finding of the Ministry's ad hoc Enlarged Scientific Advisory Board that "nicotine refills are to be considered as medical products due to the nicotine content and the devices that are used to introduce the active substance into the body [e-cigarettes] are to be considered medical devices; these articles are to be considered regulated under Law No. 4207 regardless of whether they fulfill the aforementioned criteria or are of a non-nicotine variety."³ Law No. 4207 provides the legal framework relating to the restrictions on the use, sale, and advertisement of tobacco products in Turkey.⁴ According to the Ministry's explanations in the letter, refills with nicotine content are considered medical products and would have to be licensed as such, which could be done upon the submission of documentation evidencing their effectiveness when used for "nicotine replacement therapy." On the other hand, refills that did not contain nicotine could be imported without being considered medical products and, thus,

² TURKSTAT, *Health Statistics Yearbook* 55 (2017), <https://perma.cc/67QV-468Z>. Note that the English version of the publication uses the words "daily smoker," "occasional smoker," "nonsmoker," and "never smoker" respectively, for the four answers. The explanations of the variables and survey questions in the Turkish language suggest that the questions asked about "tobacco product use" and not "smoking." The Turkish language version of the *Yearbook* also uses the latter wording. See <https://perma.cc/4P77-5CRH> for explanations of the variables (in Turkish).

³ Ministry of Health of Turkey, Circular Letter No. 4646 of Jan. 22, 2008, *Electronic Cigarettes* (from the website of the Ankara Chamber of Pharmacists), <https://perma.cc/2LMB-RY84>.

⁴ Law No. 4207 on the Prevention of Harms of Tobacco Products and Their Control (as amended; published and effective Nov. 7, 1996), <https://perma.cc/W66C-NS66>.

without a medical product control certificate issued by the Ministry, provided that a report finding that the refill does not contain nicotine or other harmful substances has been obtained from the Ankara Center for Public Health. Moreover, e-cigarettes, due to their capability of being used with nicotine containing refills, would in any case be considered as medical devices, and their importation would be subject to the relevant medical licensing requirements.

As of May 2013, the Ministry's position remained unchanged. In response to two parliamentary questions addressed to the Minister of Health on whether or how e-cigarettes were regulated under the laws then in force,⁵ the Ministry responded that nicotine-containing e-cigarette refills were subject to the relevant licensing and control framework as medical products. In contrast, e-cigarette devices, regardless of whether they are used with nicotine-containing refills, were classified as medical devices, as they are used for the intake of active substances, and could be imported and were subject to free movement (within the European Union (EU)-Turkey customs union) without any additional importation license, provided they were recorded in the National Database of Pharmaceuticals and Medical Devices by their manufacturers or importers, bore a "CE" sign, and had received the relevant EC Design-Examination Certificate.⁶ However, the Ministry added that, at that time, no nicotine-containing refills had been licensed and no e-cigarette devices were registered for legal importation; moreover, the Ministry pointed out that the (now defunct) Tobacco and Alcohol Market Regulatory Authority (TAPDK) found that e-cigarettes, whether or not nicotine refills are used, should be regulated as tobacco products due to "having the inhalation and stylistic characteristics of a cigarette," in effect, making them subject to the prohibitions on use in public places that are applicable to ordinary tobacco products provided in Law No. 4207.⁷ The Ministry supported this position by claiming that cigarettes were now designated as tobacco products under the provision of the Law, which, following its amendment in May 2013, states: "[A]ll water-pipes and cigarettes that do not contain tobacco but are used in a manner imitating tobacco products are considered tobacco products."⁸

C. Legal Definition of E-Cigarettes and Refills and Applicability of Law No. 4207 to These Products

In Turkish law, the legal framework relating to the restrictions on the use, sale, and advertisement of tobacco products is currently provided by Law No. 4207. The purpose of the Law is described in article 1 as "taking the necessary measures and precautions to protect people and future generations from the harms of tobacco products and advertisement, promotion, and enticement

⁵ Minister of Health Mehmet Müezzinoğlu's Response to Parliamentary Question No. 7/19613 of Apr. 1, 2013, <https://perma.cc/2DQV-LNLQ>; Minister of Health Mehmet Müezzinoğlu's Response to Parliamentary Question No. 7/20564 of Apr. 18, 2013, concerning Electronic Cigarettes (Legislative Year 24/3), <https://perma.cc/254N-EH6F>.

⁶ The placement of medical products in the Turkish market is subject to the Regulation on Medical Devices (published in Official Gazette No. 27957 on June 7, 2011), <https://perma.cc/Z769-N4N7>. This Regulation was prepared in parallel to Council Directive 93/42, 1993 O.J. (L 169) 1 (EC) (as amended), <https://perma.cc/M4M6-KTG5> (latest consolidated version), in order to harmonize Turkish law with EU law concerning medical devices and enable the free movement within the EU-Turkey customs union of medical devices conforming to the relevant requirements. See *infra* Part III(F).

⁷ Response to Parliamentary Question No. 7/20564, *supra* note 5.

⁸ Law No. 4207, art. 2(6) (last sentence); Response to Parliamentary Question No. 7/20564, *supra* note 5.

campaigns that encourage a habit of use of these products, and establishing regulations for the purpose of ensuring everybody can breathe clean air.”

A definition of “tobacco product” is provided in article 2(6) of the Law; however, the definition is not clear as to whether it covers e-cigarettes. As mentioned above, it appears to be the Government’s position that the definition includes e-cigarettes whether or not refills with nicotine content are used, and thus, that the Law is applicable to these products.

Article 2(6) of Law No. 4207 defines a “tobacco product” as

. . . a product completely or partially produced from tobacco leaves for its use by way of smoking, sucking, chewing, or snorting. *All water-pipes and cigarettes that do not contain tobacco but are used in a manner imitating tobacco products are considered tobacco products.* (emphasis added)

The last sentence of article 2(6) (in italics) was added to Law No. 4207 on May 24, 2013, by amending Law No. 6487. In the draft bill that has become amending Law No. 6487, the provision was initially worded “*Water-pipes and electronic cigarettes are subject to the provisions of this Law along with tobacco products,*” explicitly including e-cigarettes in the amended definition of the Law’s subject matter. This provision was changed to read “*Herbal water-pipes and herbal cigarettes that do not contain tobacco but are used in a manner imitating tobacco products are considered tobacco products*” before the bill was submitted to the plenary session of the GNAT,⁹ apparently for the reason that

the Ministry of Health has already banned electronic cigarettes in their entirety . . . [I]f a provision stating that electronic cigarettes cannot be used in certain places becomes law, then electronic cigarettes will become legal by way of finding a place in law and their use in other places will become legal as a consequence.¹⁰

The amending provision was further changed during the plenary session debates to take its final form with a motion that stated the intent for the change only as “to include within the scope of the law water-pipes and cigarettes that are not of herbal variety.”¹¹ In light of the foregoing, the Ministry of Health’s interpretation of the new provision concerning the scope of the term “tobacco products” in Law No. 4207 does not appear to be obvious from the legislative history of the amendment in question. Moreover, our research yielded no judicial rulings that might shed light on the question.

⁹ The Grand National Assembly of Turkey (GNAT) is Turkey’s legislative body.

¹⁰ GNAT Plan. & Budgeting Comm’n Rep. No. 2/1524, at 20 (May 16, 2013) (statement of Istanbul MP Aydın Ayaydın), <https://perma.cc/7VNG-ZG5Y>.

¹¹ Plenary Session Minutes, 24th Term, 3rd Legis. Year, 109th Sess. (May 23, 2013) at 191, <https://perma.cc/L6UM-EDPZ>.

D. Restrictions on Use, Sale, and Advertisement of "Tobacco Products" in Law No. 4207

1. Restrictions on Use

The Law prohibits the use of "tobacco products" in

- indoor spaces of premises allocated to public service;¹²
- indoor spaces of privately owned buildings that are open to the public and are used for all types of education, healthcare, manufacturing, commerce, social, cultural, entertainment, and similar purposes;¹³
- in the driver's seat of private vehicles and in public transportation vehicles, including taxicabs, moving by land, sea, rail or air;¹⁴
- indoor and outdoor spaces of preschool, elementary, and secondary level education institutions and cultural and social services buildings;¹⁵
- in privately owned restaurants and entertainment businesses such as coffee houses, cafeterias, and pubs;¹⁶ and
- in facilities where sports, culture, art, and entertainment activities take place outdoors, including the spectator areas.¹⁷

An isolated and air-conditioned space can be designated for the use of tobacco products in the spectator type of facilities,¹⁸ nursing homes for the elderly, psychiatric hospitals, and penitentiaries,¹⁹ and a space delineated for tobacco product use on the decks of maritime passenger vessels that operate on intercity or international routes.²⁰ In hotels, special rooms can be designated for customers using tobacco products.²¹

¹² Law No. 4207, art. 2(1)(a).

¹³ Id. art. 2(1)(b).

¹⁴ Id. art. 2(1)(c).

¹⁵ Id. art. 2(1)(ç).

¹⁶ Id. art. 2(1)(d).

¹⁷ Id. art. 2(3).

¹⁸ Id.

¹⁹ Id. art. 2(2)(a).

²⁰ Id. art. 2(2)(b).

²¹ Id. art. 2(3).

2. *Restrictions on Sale*

Tobacco products cannot be sold to persons who are not at least 18 years of age,²² and such persons cannot be employed in tobacco product businesses, or in their marketing or sale.²³ Tobacco products cannot be sold in facilities or campuses where healthcare, education, culture, or sports services are provided.²⁴ Tobacco products cannot be sold via automated machines, telephone, television or digital media such as the internet, and these products cannot be sold to retail customers using parcel delivery services.²⁵

3. *Restrictions on Advertising*

The Law prohibits the promotion and advertising of tobacco products and their manufacturers, as well as marketing campaigns aiming to encourage people to use tobacco products.²⁶ Companies producing or marketing tobacco products cannot support any activity by using their names, emblems, trademarks, or signs of their products.²⁷ Names and emblems of companies operating in the tobacco products sector or the trademarks or signs of their products or images that would evoke these cannot be displayed on clothing, jewelry, or accessories.²⁸ Vehicles operated by tobacco products sector companies cannot display images that would evoke the trademarks of such products;²⁹ such companies cannot distribute tobacco products that they produce or market to retailers or consumers as incentives, gifts, and giveaways or as promotion material, or otherwise free of charge or as a donation.³⁰ Names, logos, or emblems of tobacco products cannot be used for whatever reason on public statements or announcements made in the press.³¹ The Law prohibits using or showing images of tobacco products in programs, films, series, music videos, advertisements or promotional films on television or in movie theaters or in live performance theaters; tobacco products cannot be used and their images cannot be shown for commercial or advertising purposes on public social media or similar media.³²

²² Id. art. 3(8).

²³ Id. art. 3(9).

²⁴ Id. art. 3(7).

²⁵ Id. art. 3(11).

²⁶ Id. art. 3(1).

²⁷ Id.

²⁸ Id. art. 3(2).

²⁹ Id. art. 3(3).

³⁰ Id. art. 3(4).

³¹ Id. art. 3(5).

³² Id. art. 3(6).

E. Management of E-Cigarette Waste

Under Turkish law, e-cigarettes, whether or not they are classified as medical devices, must be disposed of and recycled in accordance with the Electronic Waste Regulation of 2012.³³ Consumers are required to sort electronic devices from other domestic waste and dispose of them in collection points set up by distributors, municipalities, or producers.³⁴ The obligations of these actors concerning the processing and recycling of electronic waste are also provided in the Regulation. Waste processors are required to store, recycle, or dispose of batteries separately, in accordance with specific legislation concerning the disposal of batteries.³⁵

F. Regulation of Importation of E-Cigarettes and Refills with Nicotine Content as Medical Devices and Medical Products

Insofar as the Government's position – that e-cigarettes may be certified and imported as medical devices provided that their efficiency and safety in use for nicotine cessation is shown – is valid and maintained under Turkish law, importation of such devices is subject to the Medical Devices Regulation of 2011.³⁶ Similarly, if the Government's position regarding the classification of nicotine refills as medical products is valid, the Licensing Regulation of 2005 and the related legal framework will be applicable to the matters of the manufacturing, licensing, and importation of these products.³⁷

Under the Medical Devices Regulation, medical devices that are found by a standardized quality assurance system to be in conformity with the design and construction requirements regarding the device's chemical, physical, biological, and environmental properties as provided in detail in the Regulation and in parallel to EU law under Council Directive 93/42 (as amended)³⁸ may carry a "CE" marking of conformity and thus enjoy free movement in the Turkish market.

This report will not detail the framework concerning the licensing of human medicinal products in Turkey due to space constraints. Nevertheless, it appears reasonable to assume, given the

³³ Regulation on Control of Waste Electrical and Electronic Equipment of 2012 (published in Official Gazette No. 28300 on May 22, 2012) (Electronic Waste Regulation), <https://perma.cc/EX73-A7BJ>. The Regulation was prepared in parallel to Council Directive 02/96, 2002 O.J. (L 37) 24 (EU), of the European Parliament and of the Council of Jan. 27, 2003, on Waste Electrical and Electronic Equipment (WEEE) to harmonize Turkish law with EU law. Council Directive 02/96 was superseded by Council Directive 12/19, 2012 O.J. (L 197) 38-71 (EU), of the European Parliament and of the Council of July 4, 2012, on Waste Electrical and Electronic Equipment (WEEE) (recast), <https://perma.cc/YXY2-Q8FF> (latest consolidated version). For general information on the relevant EU rules, see the EU survey in this report.

³⁴ Electronic Waste Regulation, art. 11.

³⁵ Id. art. 14(3).

³⁶ Regulation on Medical Devices.

³⁷ Regulation on the Licensing of Medicinal Products for Human Use (published in Official Gazette No. 25705 on Jan. 19, 2005), <https://perma.cc/Q2B3-J9YH>. This Regulation was prepared parallel to Council Directive 01/83, 2001 O.J. (L 311) 67-128 (EC), of the European Parliament and of the Council of Nov. 6, 2001, on the Community Code Relating to Medicinal Products for Human Use, in order to harmonize Turkish law with EU law, <https://perma.cc/6MFM-GMBN> (latest consolidated version).

³⁸ Regulation on Medical Devices, *supra* note 6.

position of the Ministry of Health, that refills containing nicotine can in theory be licensed as medicinal products such as nicotine gums or nicotine patches, provided that the Medicines and Medical Devices Agency under the Ministry of Health is convinced that e-cigarettes used with nicotine refills are a safe option for nicotine cessation therapies. However, the Ministry of Health has consistently pointed out in its statements that it has not been provided with any such scientific evidence, and that no e-cigarette or refill has ever been certified or licensed in Turkey.³⁹

IV. Declared Government Policies and De Facto Situation

In an October 2019 press statement, Minister of Health Fahrettin Koca said that the government was working on a legislative proposal that would completely ban the sale and importation of e-cigarettes. No such proposal has been submitted to the GNAT yet.⁴⁰ Later in October, President Erdogan made a statement declaring that he rejected the proposal of a foreign company to produce e-cigarettes (although it is not clear whether he was referring to e-cigarettes or to “novel tobacco products” that contain tobacco instead of other types of ingredients)⁴¹ and that the government “will never allow [e-cigarette producers] in the country.”⁴² In November 2019, Minister of Commerce Ruhsar Pekcan made a statement to the press that praised the government’s performance in combating the smuggling of e-cigarettes and underlined the government’s continuing commitment to prohibiting the importation of e-cigarettes.⁴³

Nevertheless, there are currently multiple e-commerce websites providing telephone numbers with Turkish area codes and claiming to be based in Turkey that sell e-cigarette devices, refills with or without nicotine content, spare and customizable parts, and do-it-yourself kits and other

³⁹ See, e.g., Response to Parliamentary Question No. 7/20564, *supra* note 5, and “Smokeless Airspace” campaign website, *infra* note 45.

⁴⁰ Düzenleme Meclis’e geliyor: Elektronik sigara yasaklanacak, vatandaşların da katılımıyla “fahri sigara denetçiliği” başlayacak [Bill to Be Introduced to Parliament: Electronic Cigarettes Will Be Banned, Voluntary “Cigarette Inspectorship” Will Be Created with Participation of Citizens], *independentturkish.com* (Oct. 2, 2019), <https://perma.cc/FZ6B-TCC7>.

⁴¹ According to a letter issued by the Ministry of Agriculture and Forestry Department of Tobacco and Alcohol concerning the importation of the “IQOS” device marketed by Philip Morris International and its refills branded “HEETS,” the importation of such electronic devices that enables the “smoking” of tobacco by way of heating but not burning it is subject to Law 4733 on the Regulation of Tobacco, Tobacco Products, and Alcohol Markets. The letter found that such devices could not be categorized as “cigarettes,” but should be defined as “novel tobacco products” per Council Directive 14/40, 2014 O.J. (L 194) 26 (EC), of the European Parliament and of the Council of Apr. 3, 2014, on the Approximation of the Laws, Regulations, and Administrative Provisions of the Member States concerning the Manufacture, Presentation, and Sale of Tobacco and Related Products and Repealing Council Directive 01/37, 2001 O.J. (L 127) 1–38 (EC), <https://perma.cc/JD4K-VRJB> (latest consolidated version). According to the letter, an importation permit issued via a Presidential Decree is required for importing such “novel tobacco products.” See Ministry of Agric. & Forestry Dep’t of Tobacco & Alcohol, Letter No. 38927203-455.99-E.1366338 Attached to Ministry of Com. Gen. Directorate of Customs, Circular Letter No. 18723479-153.16 / 43989855 of May 3, 2019, <https://perma.cc/HGG3-AQNB>.

⁴² *Cumhurbaşkanı Erdoğan: Terör örgütüyle anlaşmadık ABD ile anlaştık* [President Erdoğan: We Did Not Make an Agreement with the Terrorist Organization, We Made an Agreement with the USA], *ntv.com.tr* (Oct. 20, 2019), <https://perma.cc/7EF8-RQJ2>.

⁴³ *Ticaret Bakanlığında elektronik sigaraya geçit yok* [Ministry of Commerce Gives No Quarter to Electronic Cigarettes], *trthaber.com* (Nov. 24, 2019), <https://perma.cc/4HG4-HGYK>.

e-cigarette related paraphernalia. A cursory online investigation by the author of this report of Turkish language online e-cigarette communities suggests that these e-commerce services are doing business in Turkey. The investigation also suggests that there is an active market for second-hand e-cigarette devices and a do-it-yourself community focusing on the home production of refills and at-home customization of e-cigarette devices. A recent exposé published by the newspaper *Hürriyet* reported that the sale of e-cigarettes and refills took place through irregular channels and the articles were brought into the country either by way of smuggling or by travelers as personal items.⁴⁴

The website of the Ministry of Health's public antismoking campaign "Smokeless Airspace" [*Dumansız Hava Sahası*] currently appears to reflect the same position declared by the Ministry in its 2013 response to Parliamentary Question No. 7/20564. The website states that e-cigarettes are subject to the provisions of Law No. 4207 regardless of their content (i.e., whether or not they are used with nicotine-containing refills), that no e-cigarette has been duly licensed, and that the relevant products were smuggled into the country illicitly.⁴⁵ The statement additionally explains that e-cigarettes pose risks of accidentally overdosing on nicotine due to failures in refill systems and that the refills may contain hazardous substances "similar to those contained in cigarettes [including] formaldehyde, acetaldehyde, acrolein, diethylene glycol, nickel, chromium, lead, etc."⁴⁶ Interestingly, the website also cites a 2009 study conducted by the US Food and Drug Administration that found that "some brands of electronic cigarettes contained carcinogenic substances."⁴⁷

The National Tobacco Control Strategy Document and Action Plan 2018-2023 published by the Government lists "the prevention of the trafficking, sale, and use of all unlicensed tobacco products and products imitating tobacco products, such as electronic cigarettes" as an action item under the heading "prevention of illicit trade in tobacco products."⁴⁸

In Government policy statements, no citations are made to any published scientific studies focusing *specifically* on the prevalence or effects of e-cigarette use at the national level in Turkey. Nevertheless, the Ministry of Health has consistently cited the lack of scientific studies on the long-term effects of the inhalation of propylene glycol and other substances that exist in e-cigarette refills and of studies suggesting that e-cigarettes are efficient for nicotine cessation

⁴⁴ Elif Yavuz et al., *Sınır tanımıyorlar! Araçlarının bagajlarında satıyorlar . . .* [They Know No Bounds! They Sell Them Out of the Trunks of Their Vehicles . . .], *Hürriyet* (Dec. 18, 2019), <https://perma.cc/W29T-UGNA>.

⁴⁵ Elektronik Sigara (E-Sigara) [Electronic Cigarette (E-Cigarette)], "Smokeless Airspace" campaign website, <https://perma.cc/A3QQ-7S9U>.

⁴⁶ *Id.*

⁴⁷ *Id.* The 2009 study referred to appears to be the study reported in Consumer Health Information, US Food & Drug Admin., *FDA Warns of Health Risks Posed by E-Cigarettes* (July 2009), <https://perma.cc/W6KG-EHJU>, also reported by Katie Zezima, *Analysis Finds Toxic Substances in Electronic Cigarettes*, *N.Y. Times*, July 23, 2009, at A22.

⁴⁸ Presidency of Turkey et al., *Tütün Kontrolü Strateji Belgesi ve Eylem Planı (2018-2023)* [Tobacco Control Strategy Document and Action Plan (2018-2023)] at 46 (May 30, 2018), <https://perma.cc/HP6K-X575>.

purposes as reasons why the Ministry has not licensed any e-cigarette product as a medical device under the relevant laws.⁴⁹

⁴⁹ See Response to Parliamentary Question No. 7/20564, *supra* note 5; "Smokeless Airspace" campaign website, *supra* note 45.